

STATE OF NEW YORK

9006--B

IN SENATE

January 21, 2026

A BUDGET BILL, submitted by the Governor pursuant to article seven of the Constitution -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to contracts for excellence, foundation aid, and to apportioning aid for universal prekindergarten; to amend chapter 756 of the laws of 1992 relating to funding a program for work force education conducted by the consortium for worker education in New York city, in relation to reimbursement for the 2026-2027 school year and the maximum contract hours, withholding a portion of employment preparation education aid, and the effectiveness thereof; to amend the education law, in relation to the use of apportionments for the EXCEL program; to amend part I of chapter 61 of the laws of 2006 amending the education law and the public authorities law relating to expanding our children's education and learning, in relation to the effectiveness thereof; to amend the education law, in relation to maximum class sizes for special classes for certain students with disabilities; to amend chapter 82 of the laws of 1995 amending the education law and other laws relating to state aid to school districts and the appropriation of funds for the support of government, in relation to the effectiveness thereof; providing for special apportionment for salary expenses; providing for special apportionment for public pension accruals; providing for set-asides from the state funds which certain districts are receiving from the total foundation aid; providing for support of public libraries; and to repeal certain provisions of the education law relating to the statewide universal full-day prekindergarten program (Part A); to amend the education law, in relation to schools, school aid and the education of children; to amend chapter 537 of the laws of 1976 relating to paid, free and reduced price breakfast for eligible pupils in certain school districts, in relation to authorizing school food authorities to attribute moneys spent on purchases of food products from New York state farmers, growers, producers or processors made for its school breakfast or snack programs to the thirty percent of costs for school breakfast and lunch service programs; to amend chapter 507

EXPLANATION--Matter in *italics* (underscored) is new; matter in brackets [] is old law to be omitted.

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of the laws of 1974 relating to providing for the apportionment of state monies to certain nonpublic schools, to reimburse them for their expenses in complying with certain state requirements for the administration of state testing and evaluation programs and for participation in state programs for the reporting of basic educational data, in relation to expanding qualifying schools to be located statewide; to amend chapter 18 of the laws of 2020 authorizing the commissioner of education to appoint a monitor to oversee the Wyandanch union free school district and establishing the powers and duties of such monitor, in relation to establishing a monitor team; to amend chapter 121 of the laws of 1996 authorizing the Roosevelt union free school district to finance deficits by the issuance of serial bonds, in relation to the apportionment amount for such school district; to amend the education law, in relation to establishing the artificial intelligence literacy digital equity competitive grant program; and to repeal paragraph g of subdivision 1 of section 3635 of the education law, relating to providing transportation for students attending a universal pre-kindergarten program (Part A-1); to amend the education law, in relation to evidence-based mathematics instruction (Part B); to amend the education law, in relation to eligibility for the New York opportunity promise scholarship (Part C); to amend the education law, in relation to certificate of residence policies for community colleges (Part D); to amend the education law, in relation to tuition rates of non-resident undergraduate and graduate students at the state university of New York and city university of New York (Part E); to amend the education law, in relation to early childhood educator eligibility for the masters-in-education teacher incentive scholarship program (Part F); to amend the state finance law, in relation to the New York state music grant fund (Part G); to amend the social services law, in relation to child care provider registration and licensing (Part H); to amend the social services law, in relation to the payment of certain expenses by adoptive parents (Part I); to amend the public health law, in relation to authorizing body scanner utilization in detention and youth justice facilities (Part J); to amend part N of chapter 56 of the laws of 2020 amending the social services law relating to restructuring financing for residential school placements, in relation to the effectiveness thereof (Part K); to amend the social services law, in relation to increasing the standards of monthly need for aged, blind and disabled persons living in the community (Part L); to utilize reserves in the mortgage insurance fund for various housing purposes (Part M); to amend the not-for-profit corporation law, in relation to the maximum number of land banks that can simultaneously exist in New York state (Part N); to amend the real property tax law, in relation to authorizing a tax abatement for alterations and improvements to multiple dwellings for purposes of preserving habitability in affordable housing (Part O); to amend the penal law, in relation to the aggravated harassment of a rent regulated tenant (Part P); to amend the private housing finance law, in relation to establishing the New York state first home savings program, which authorizes first time home buyers to establish savings accounts to purchase a home; and to amend the tax law, in relation to establishing a personal income tax deduction for deposits into such accounts (Part Q); to amend the private housing finance law, in relation to establishing an affordable independent senior housing assistance program (Part R); to amend the private housing finance law, in relation to increasing the annual amount of loans made to an agricultural producer

from the housing development fund (Part S); to amend the private housing finance law, in relation to the mobile and manufactured home replacement program (Part T); to amend the social services law and the mental hygiene law, in relation to the 2-1-1 essential community services hotline system (Part U); to amend the education law, in relation to allowing for students in postsecondary education experience or transition program to receive awards from the tuition assistance program (Part V); to amend the education law, in relation to the New York state district attorney and indigent legal services attorney loan forgiveness program (Part W); to amend the education law, in relation to phasing out certain mandatory university fees for graduate students (Part X); to amend the education law, in relation to the criteria for determining tuition assistance program awards (Part Y); establishing a fiscal cliff task force to conduct a study on fiscal cliffs in the state's public assistance programs and to make recommendations related thereto; and providing for the repeal of such provision upon expiration thereof (Part Z); to amend the social services law, in relation to allowances for the costs of diapers (Part AA); to amend the social services law, in relation to enacting the "shelter arrears eviction forestallment act" to provide emergency assistance for rent or mortgage arrears or other fees for the prevention of eviction (Part BB); to amend the state finance law, in relation to establishing the youth justice innovation fund (Part CC); to amend the education law, in relation to requiring institutions within the state university of New York and the city university of New York to have at least one vending machine on campus which makes emergency contraception available for purchase (Part DD); to amend the education law, in relation to establishing an emergency aid grant program to allow the state university of New York or the city university of New York to provide emergency aid grants to certain students (Part EE); to amend the education law, in relation to enacting the "licensure incentives and fee-support for testing (LIFT) act" (Part FF); to amend the social services law and the state finance law, in relation to establishing a SNAP and cash assistance fraud victims compensation fund (Part GG); to amend the social services law, in relation to establishing a full year youth employment immersion pilot program; and in relation to creating a youth or young adult employment immersion pilot program in three social services districts (Part HH); to amend the private housing finance law, in relation to the "jobs and housing act" (Part II); to amend the state finance law, in relation to establishing the New York state worker protection and labor law enforcement fund (Part JJ); to amend the labor law, in relation to requiring training to reduce abusive conduct and bullying in the workplace (Part KK); to amend the education law, in relation to providing free SUNY, CUNY and community college tuition to active volunteer firefighters, volunteer emergency medical services providers, and volunteer auxiliary police officers (Part LL); to amend the workers' compensation law and the insurance law, in relation to increasing short-term disability benefits (Part MM); to amend the real property tax law, in relation to the property tax exemption for certain disabled veterans (Part NN); and to amend the education law, in relation to allowing for a modest increase in annual income to not disqualify someone from the excelsior scholarship (Part OO)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. This act enacts into law major components of legislation necessary to implement the state education, labor, housing and family assistance budget for the 2026-2027 state fiscal year. Each component is wholly contained within a Part identified as Parts A through OO. The effective date for each particular provision contained within such Part is set forth in the last section of such Part. Any provision in any section contained within a Part, including the effective date of the Part, which makes a reference to a section "of this act", when used in connection with that particular component, shall be deemed to mean and refer to the corresponding section of the Part in which it is found. Section three of this act sets forth the general effective date of this act.

PART A

Section 1. Paragraph e of subdivision 1 of section 211-d of the education law, as amended by section 1 of part A of chapter 56 of the laws of 2025, is amended to read as follows:

e. Notwithstanding paragraphs a and b of this subdivision, a school district that submitted a contract for excellence for the two thousand eight--two thousand nine school year shall submit a contract for excellence for the two thousand nine--two thousand ten school year in conformity with the requirements of subparagraph (vi) of paragraph a of subdivision two of this section unless all schools in the district are identified as in good standing and provided further that, a school district that submitted a contract for excellence for the two thousand nine--two thousand ten school year, unless all schools in the district are identified as in good standing, shall submit a contract for excellence for the two thousand eleven--two thousand twelve school year which shall, notwithstanding the requirements of subparagraph (vi) of paragraph a of subdivision two of this section, provide for the expenditure of an amount which shall be not less than the product of the amount approved by the commissioner in the contract for excellence for the two thousand nine--two thousand ten school year, multiplied by the district's gap elimination adjustment percentage and provided further that, a school district that submitted a contract for excellence for the two thousand eleven--two thousand twelve school year, unless all schools in the district are identified as in good standing, shall submit a contract for excellence for the two thousand twelve--two thousand thirteen school year which shall, notwithstanding the requirements of subparagraph (vi) of paragraph a of subdivision two of this section, provide for the expenditure of an amount which shall be not less than the amount approved by the commissioner in the contract for excellence for the two thousand eleven--two thousand twelve school year and provided further that, a school district that submitted a contract for excellence for the two thousand twelve--two thousand thirteen school year, unless all schools in the district are identified as in good standing, shall submit a contract for excellence for the two thousand thirteen--two thousand fourteen school year which shall, notwithstanding the requirements of subparagraph (vi) of paragraph a of subdivision two of this section, provide for the expenditure of an amount which shall be not less than the amount approved by the commissioner in the contract for excellence for the two thousand twelve--two thousand thirteen school

1 year and provided further that, a school district that submitted a
2 contract for excellence for the two thousand thirteen--two thousand
3 fourteen school year, unless all schools in the district are identified
4 as in good standing, shall submit a contract for excellence for the two
5 thousand fourteen--two thousand fifteen school year which shall,
6 notwithstanding the requirements of subparagraph (vi) of paragraph a of
7 subdivision two of this section, provide for the expenditure of an
8 amount which shall be not less than the amount approved by the commis-
9 sioner in the contract for excellence for the two thousand thirteen--two
10 thousand fourteen school year; and provided further that, a school
11 district that submitted a contract for excellence for the two thousand
12 fourteen--two thousand fifteen school year, unless all schools in the
13 district are identified as in good standing, shall submit a contract for
14 excellence for the two thousand fifteen--two thousand sixteen school
15 year which shall, notwithstanding the requirements of subparagraph (vi)
16 of paragraph a of subdivision two of this section, provide for the
17 expenditure of an amount which shall be not less than the amount
18 approved by the commissioner in the contract for excellence for the two
19 thousand fourteen--two thousand fifteen school year; and provided
20 further that a school district that submitted a contract for excellence
21 for the two thousand fifteen--two thousand sixteen school year, unless
22 all schools in the district are identified as in good standing, shall
23 submit a contract for excellence for the two thousand sixteen--two thou-
24 sand seventeen school year which shall, notwithstanding the requirements
25 of subparagraph (vi) of paragraph a of subdivision two of this section,
26 provide for the expenditure of an amount which shall be not less than
27 the amount approved by the commissioner in the contract for excellence
28 for the two thousand fifteen--two thousand sixteen school year; and
29 provided further that, a school district that submitted a contract for
30 excellence for the two thousand sixteen--two thousand seventeen school
31 year, unless all schools in the district are identified as in good
32 standing, shall submit a contract for excellence for the two thousand
33 seventeen--two thousand eighteen school year which shall, notwithstand-
34 ing the requirements of subparagraph (vi) of paragraph a of subdivision
35 two of this section, provide for the expenditure of an amount which
36 shall be not less than the amount approved by the commissioner in the
37 contract for excellence for the two thousand sixteen--two thousand
38 seventeen school year; and provided further that a school district that
39 submitted a contract for excellence for the two thousand seventeen--two
40 thousand eighteen school year, unless all schools in the district are
41 identified as in good standing, shall submit a contract for excellence
42 for the two thousand eighteen--two thousand nineteen school year which
43 shall, notwithstanding the requirements of subparagraph (vi) of para-
44 graph a of subdivision two of this section, provide for the expenditure
45 of an amount which shall be not less than the amount approved by the
46 commissioner in the contract for excellence for the two thousand seven-
47 teen--two thousand eighteen school year; and provided further that, a
48 school district that submitted a contract for excellence for the two
49 thousand eighteen--two thousand nineteen school year, unless all schools
50 in the district are identified as in good standing, shall submit a
51 contract for excellence for the two thousand nineteen--two thousand
52 twenty school year which shall, notwithstanding the requirements of
53 subparagraph (vi) of paragraph a of subdivision two of this section,
54 provide for the expenditure of an amount which shall be not less than
55 the amount approved by the commissioner in the contract for excellence
56 for the two thousand eighteen--two thousand nineteen school year; and

1 provided further that, a school district that submitted a contract for
2 excellence for the two thousand nineteen--two thousand twenty school
3 year, unless all schools in the district are identified as in good
4 standing, shall submit a contract for excellence for the two thousand
5 twenty--two thousand twenty-one school year which shall, notwithstanding
6 the requirements of subparagraph (vi) of paragraph a of subdivision two
7 of this section, provide for the expenditure of an amount which shall be
8 not less than the amount approved by the commissioner in the contract
9 for excellence for the two thousand nineteen--two thousand twenty school
10 year; and provided further that, a school district that submitted a
11 contract for excellence for the two thousand twenty--two thousand twenty-
12 one school year, unless all schools in the district are identified as
13 in good standing, shall submit a contract for excellence for the two
14 thousand twenty-one--two thousand twenty-two school year which shall,
15 notwithstanding the requirements of subparagraph (vi) of paragraph a of
16 subdivision two of this section, provide for the expenditure of an
17 amount which shall be not less than the amount approved by the commis-
18 sioner in the contract for excellence for the two thousand twenty--two
19 thousand twenty-one school year; and provided further that, a school
20 district that submitted a contract for excellence for the two thousand
21 twenty-one--two thousand twenty-two school year, unless all schools in
22 the district are identified as in good standing, shall submit a contract
23 for excellence for the two thousand twenty-two--two thousand twenty-
24 three school year which shall, notwithstanding the requirements of
25 subparagraph (vi) of paragraph a of subdivision two of this section,
26 provide for the expenditure of an amount which shall be not less than
27 the amount approved by the commissioner in the contract for excellence
28 for the two thousand twenty-one--two thousand twenty-two school year;
29 and provided further that, a school district that submitted a contract
30 for excellence for the two thousand twenty-two--two thousand twenty-
31 three school year, unless all schools in the district are identified as
32 in good standing, shall submit a contract for excellence for the two
33 thousand twenty-three--two thousand twenty-four school year which shall,
34 notwithstanding the requirements of subparagraph (vi) of paragraph a of
35 subdivision two of this section, provide for the expenditure of an
36 amount which shall be not less than the amount approved by the commis-
37 sioner in the contract for excellence for the two thousand twenty-two--
38 two thousand twenty-three school year; and provided further that, a
39 school district that submitted a contract for excellence for the two
40 thousand twenty-three--two thousand twenty-four school year, unless all
41 schools in the district are identified as in good standing, shall submit
42 a contract for excellence for the two thousand twenty-four--two thousand
43 twenty-five school year which shall, notwithstanding the requirements of
44 subparagraph (vi) of paragraph a of subdivision two of this section,
45 provide for the expenditure of an amount which shall be not less than
46 the amount approved by the commissioner in the contract for excellence
47 for the two thousand twenty-three--two thousand twenty-four school year;
48 and provided further that a school district that submitted a contract
49 for excellence for the two thousand twenty-four--two thousand twenty-
50 five school year, unless all schools in the district are identified as
51 in good standing, shall submit a contract for excellence for the two
52 thousand twenty-five--two thousand twenty-six school year which shall,
53 notwithstanding the requirements of subparagraph (vi) of paragraph a of
54 subdivision two of this section, provide for the expenditure of an
55 amount which shall be not less than the amount approved by the commis-
56 sioner in the contract for excellence for the two thousand twenty-four-

1 -two thousand twenty-five school year; and provided further that a
2 school district that submitted a contract for excellence for the two
3 thousand twenty-five--two thousand twenty-six school year, unless all
4 schools in the district are identified as in good standing, shall submit
5 a contract for excellence for the two thousand twenty-six--two thousand
6 twenty-seven school year which shall, notwithstanding the requirements
7 of subparagraph (vi) of paragraph a of subdivision two of this section,
8 provide for the expenditure of an amount which shall be not less than
9 the amount approved by the commissioner in the contract for excellence
10 for the two thousand twenty-five--two thousand twenty-six school year;
11 provided, however, that, in a city school district in a city having a
12 population of one million or more, notwithstanding the requirements of
13 subparagraph (vi) of paragraph a of subdivision two of this section, the
14 contract for excellence shall provide for the expenditure as set forth
15 in subparagraph (v) of paragraph a of subdivision two of this section.
16 For purposes of this paragraph, the "gap elimination adjustment percent-
17 age" shall be calculated as the sum of one minus the quotient of the sum
18 of the school district's net gap elimination adjustment for two thousand
19 ten--two thousand eleven computed pursuant to chapter fifty-three of the
20 laws of two thousand ten, making appropriations for the support of
21 government, plus the school district's gap elimination adjustment for
22 two thousand eleven--two thousand twelve as computed pursuant to chapter
23 fifty-three of the laws of two thousand eleven, making appropriations
24 for the support of the local assistance budget, including support for
25 general support for public schools, divided by the total aid for adjust-
26 ment computed pursuant to chapter fifty-three of the laws of two thou-
27 sand eleven, making appropriations for the local assistance budget,
28 including support for general support for public schools. Provided,
29 further, that such amount shall be expended to support and maintain
30 allowable programs and activities approved in the two thousand nine--two
31 thousand ten school year or to support new or expanded allowable
32 programs and activities in the current year.

33 § 2. Subdivision 4 of section 3602 of the education law is amended by
34 adding a new paragraph g to read as follows:

35 g. Foundation aid payable in the two thousand twenty-six--two thousand
36 twenty-seven school year. Notwithstanding any provision of law to the
37 contrary, foundation aid payable in the two thousand twenty-six--two
38 thousand twenty-seven school year shall equal the greater of total foun-
39 dation aid or the product of one and two hundredths (1.02) multiplied by
40 the foundation aid base.

41 § 3. Paragraph a of subdivision 6 of section 3602 of the education law
42 is amended by adding a new subparagraph 13 to read as follows:

43 (13) (a) Renewable energy projects shall be considered part of the
44 cost allowance calculated by the commissioner pursuant to this subpara-
45 graph.

46 (b) Renewable energy projects include: (i) solar photovoltaic or ther-
47 mal systems, whether ground-mounted or roof-mounted; (ii) geothermal
48 systems; and (iii) other commercially proven and cost-effective renewa-
49 ble energy technologies pursuant to regulations of the commissioner.
50 Renewable energy projects may not include capital expenses allowable
51 under subdivision seven of this section.

52 (c) Ground-mounted renewable energy projects shall be sited to mini-
53 mize impacts on athletic fields, outdoor educational spaces, and natural
54 areas serving the school.

55 (d) The portion of project costs attributable to system capacity that,
56 when combined with other renewable energy projects, if any, exceeds one

hundred ten percent of the building's baseline energy consumption shall not constitute an aidable expense. Baseline energy consumption shall be calculated using the historic annual energy consumption as determined by the commissioner.

§ 4. Paragraphs b and c of subdivision 1 of section 3602-e of the education law, as amended by section 19 of part B of chapter 57 of the laws of 2007, are amended and four new paragraphs c-1, f, g, and h are added to read as follows:

b. "Eligible agencies" shall mean a provider of child care and early education, a day care provider, early childhood program or center, non-profit organization, charter school, library, museum, or community-based organization, including but not limited to approved pre-school special education programs, head start, and nursery schools so long as the standards and qualifications set forth pursuant to subdivision twelve of this section have been met.

c. "Eligible four-year-old children" shall mean resident children who are four years of age on or before December first of the year in which they are enrolled or who will otherwise be first eligible to enter public school kindergarten commencing with the following school year.

c-1. "Eligible three-year-old children" shall mean resident children who are three years of age on or before December first of the year in which they are enrolled or who will otherwise be first eligible to enter public school kindergarten commencing two years from the time of enrollment.

f. "Universal access proxy" shall mean the product of eighty-five percent multiplied by the positive difference, if any, between the sum of the public school enrollment and the nonpublic school enrollment of children attending full-day and half-day kindergarten programs in the district in the year prior to the base year less the number of resident children who attain the age of four before December first of the base year, who were served during such school year by a prekindergarten program approved pursuant to section forty-four hundred ten of this chapter, where such services are provided for more than four hours per day.

g. "Half-day program" shall mean a program which serves students for at least two and five-tenths hours but less than five hours per day.

h. "Full-day program" shall mean a program which serves students for at least five hours per day.

§ 5. Subdivisions 9, 10, 11, 18, 19, and 20 of section 3602-e of the education law are REPEALED and two new subdivisions 10 and 11 are added to read as follows:

10. Universal prekindergarten apportionment. School districts shall receive a universal prekindergarten apportionment, in the two thousand twenty-six--two thousand twenty-seven school year and thereafter, equal to the sum of the four-year-old apportionment and the three-year-old apportionment.

a. The four-year-old apportionment shall equal the lesser of (i) the product of aid per four-year-old prekindergarten pupil multiplied by four-year-old prekindergarten pupils served, or (ii) total actual grant expenditures incurred by the school district as approved by the commissioner.

(1) "Aid per four-year-old prekindergarten pupil" shall equal the greater of (A) the school district's selected foundation aid for the current year projection published as of May fifteenth of the prior school year, calculated pursuant to paragraph four of section thirty-six hundred two of this part, (B) ten thousand dollars, or (C) the amount

1 set forth for such school district as "2025-26 4YO MAX UPK AID" on the
2 school aid computer listing produced by the commissioner in support of
3 the executive budget for the two thousand twenty-six--two thousand twen-
4 ty-seven fiscal year and entitled "BT262-7" divided by the amount set
5 forth as "2025-26 4YO MAX FTE" on such listing.

6 (2) "Four-year-old prekindergarten pupils served" shall mean the sum
7 of (i) the unduplicated count of all eligible four-year-old children
8 registered to receive educational services in a full-day program, as
9 registered on the date prior to November first that is specified by the
10 commissioner as the enrollment reporting date for the school district,
11 as reported to the commissioner plus (ii) for the two thousand twenty-
12 six--two thousand twenty-seven school year through the two thousand
13 twenty-seven--two thousand twenty-eight school year, the product of five
14 tenths multiplied by the unduplicated count of eligible four-year-old
15 children registered to receive educational services in a half-day
16 program, as registered on such date and reported to the commissioner.

17 b. The three-year-old apportionment shall equal the lesser of (i) the
18 product of the three-year-old maximum apportionment and the three-year-
19 old maintenance of effort percentage or (ii) total actual grant expendi-
20 tures incurred by the school district as approved by the commissioner.

21 (1) "Three-year-old maximum apportionment" shall equal the greater of
22 the three-year-old maximum apportionment from the base year or the
23 amount set forth for such school district as "2025-26 3YO MAX UPK AID"
24 on the school aid computer listing produced by the commissioner in
25 support of the executive budget for the two thousand twenty-six--two
26 thousand twenty-seven fiscal year and entitled "BT262-7."

27 (2) "Three-year-old maintenance of effort percentage" shall equal the
28 quotient of three-year-old students served divided by the maximum eligi-
29 ble three-year-old students, but shall not exceed one hundred percent.

30 (A) "Three-year-old students served" shall equal the sum of (i) the
31 unduplicated count of eligible three-year-old children registered to
32 receive educational services in a full-day program as registered on the
33 date prior to November first that is specified by the commissioner as
34 the enrollment reporting date for the school district, as reported to
35 the commissioner, plus (ii) the product of five-tenths multiplied by the
36 unduplicated count of eligible three-year-old children registered to
37 receive educational services in a half-day program, as registered on
38 such date and reported to the commissioner, (iii) less the three-year-
39 old overage penalty.

40 (I) "Three-year-old overage penalty" shall equal, for districts with
41 thirty percent fewer three-year-old students served in full-day programs
42 in the current year than the maximum eligible three-year-old full-day
43 students, due to the conversion of the maximum eligible three-year-old
44 full-day students to three-year-old students served in half-day programs
45 in the current year, the difference of the product of seven-tenths
46 multiplied by the maximum eligible three-year-old full-day students,
47 rounded down to the nearest whole number, less the number of three-year-
48 old students served in full-day programs in the current year.

49 (II) School districts may apply to the commissioner for a hardship
50 waiver that would allow a district to convert more than thirty percent
51 of three-year-old students served in full-day programs in the current
52 year to three-year-old students served in half-day programs in the
53 current year. Such waiver shall be granted upon a demonstration by the
54 school district that due to a significant change in the resources avail-
55 able to the school district and absent such hardship waiver, the school
56 district would be unable to serve such pupils in prekindergarten

1 programs, without causing significant disruption to other district
2 programming. If a hardship waiver is granted, the three-year-old overage
3 penalty shall be zero for the current school year. No school district
4 shall be eligible for a waiver in three or more consecutive school
5 years.

6 (B) "Maximum eligible three-year-old students" shall equal the greater
7 of the amount set forth for such school district as "2025-26 3YO MAX UPK
8 FTE" on the school aid computer listing produced by the commissioner in
9 support of the executive budget for the two thousand twenty-six--two
10 thousand twenty-seven fiscal year and entitled "BT262-7" or the sum of
11 (i) the maximum eligible three-year-old students in full-day programs in
12 the base year plus (ii) the product of five-tenths multiplied by the
13 maximum eligible three-year-old students in half-day programs in the
14 base year.

15 c. School districts shall receive up to fifty percent of the universal
16 prekindergarten apportionment defined in this subdivision upon approval
17 of the application submitted pursuant to subdivision five of this
18 section, but not earlier than September first. School districts may be
19 eligible for an additional twenty percent of such apportionment after
20 April first of each school year upon completion of a request for funds
21 on a form designated by the commissioner. The remainder of such appor-
22 tionment shall be paid to each school district upon acceptance of a
23 final expenditure report submitted on a form designated by the commis-
24 sioner in the following school year.

25 11. No later than the two thousand twenty-eight--two thousand twenty-
26 nine school year, all school districts shall serve in a full-day prekin-
27 dergarten program all eligible four-year-old children whose parent or
28 guardian applies to enroll such child in the district's universal prek-
29 indergarten program, whether such services are provided directly through
30 the school district, a board of cooperative educational services, or
31 collaborative efforts between the school district and an eligible agency
32 or agencies.

33 § 6. For the 2026-2027 school year, notwithstanding any inconsistent
34 provision of law, for purposes of section 3602-e of the education law,
35 for a city school district in a city having a population of one million
36 or more the maximum eligible three-year-old students shall equal 31,561
37 and the three-year-old maximum apportionment shall equal the product of
38 the maximum eligible three-year-old students multiplied by the quotient
39 of the amount set forth for such school district as "2025-26 3YO MAX UPK
40 AID" on the school aid computer listing produced by the commissioner in
41 support of the executive budget for the 2026-27 fiscal year and entitled
42 "BT262-7" divided by the amount set forth as "2025-26 3YO MAX FTE" on
43 such listing.

44 § 7. Section 3602-ee of the education law is REPEALED.

45 § 8. Paragraph i of subdivision 12 of section 3602 of the education
46 law, as amended by section 13 of part A of chapter 56 of the laws of
47 2025, is amended to read as follows:

48 i. For the two thousand twenty-one--two thousand twenty-two school
49 year through the two thousand [~~twenty-five~~] ~~twenty-six~~--two thousand
50 [~~twenty-six~~] ~~twenty-seven~~ school year, each school district shall be
51 entitled to an apportionment equal to the amount set forth for such
52 school district as "ACADEMIC ENHANCEMENT" under the heading "2020-21
53 ESTIMATED AIDS" in the school aid computer listing produced by the
54 commissioner in support of the budget for the two thousand twenty--two
55 thousand twenty-one school year and entitled "SA202-1", and such appor-
56 tionment shall be deemed to satisfy the state obligation to provide an

1 apportionment pursuant to subdivision eight of section thirty-six
2 hundred forty-one of this article.

3 § 9. The opening paragraph of subdivision 16 of section 3602 of the
4 education law, as amended by section 14 of part A of chapter 56 of the
5 laws of 2025, is amended to read as follows:

6 Each school district shall be eligible to receive a high tax aid
7 apportionment in the two thousand eight--two thousand nine school year,
8 which shall equal the greater of (i) the sum of the tier 1 high tax aid
9 apportionment, the tier 2 high tax aid apportionment and the tier 3 high
10 tax aid apportionment or (ii) the product of the apportionment received
11 by the school district pursuant to this subdivision in the two thousand
12 seven--two thousand eight school year, multiplied by the due-minimum
13 factor, which shall equal, for districts with an alternate pupil wealth
14 ratio computed pursuant to paragraph b of subdivision three of this
15 section that is less than two, seventy percent (0.70), and for all other
16 districts, fifty percent (0.50). Each school district shall be eligible
17 to receive a high tax aid apportionment in the two thousand nine--two
18 thousand ten through two thousand twelve--two thousand thirteen school
19 years in the amount set forth for such school district as "HIGH TAX AID"
20 under the heading "2008-09 BASE YEAR AIDS" in the school aid computer
21 listing produced by the commissioner in support of the budget for the
22 two thousand nine--two thousand ten school year and entitled "SA0910".
23 Each school district shall be eligible to receive a high tax aid appor-
24 tionment in the two thousand thirteen--two thousand fourteen through two
25 thousand [~~twenty-five~~] twenty-six--two thousand [~~twenty-six~~] twenty-sev-
26 en school year equal to the greater of (1) the amount set forth for such
27 school district as "HIGH TAX AID" under the heading "2008-09 BASE YEAR
28 AIDS" in the school aid computer listing produced by the commissioner in
29 support of the budget for the two thousand nine--two thousand ten school
30 year and entitled "SA0910" or (2) the amount set forth for such school
31 district as "HIGH TAX AID" under the heading "2013-14 ESTIMATED AIDS" in
32 the school aid computer listing produced by the commissioner in support
33 of the executive budget for the 2013-14 fiscal year and entitled
34 "BT131-4".

35 § 10. Intentionally omitted.

36 § 11. Intentionally omitted.

37 § 12. Intentionally omitted.

38 § 13. Intentionally omitted.

39 § 14. Subdivision b of section 2 of chapter 756 of the laws of 1992
40 relating to funding a program for work force education conducted by the
41 consortium for worker education in New York city, as amended by section
42 18 of part A of chapter 56 of the laws of 2025, is amended to read as
43 follows:

44 b. Reimbursement for programs approved in accordance with subdivision
45 a of this section for the reimbursement for the 2018--2019 school year
46 shall not exceed 59.4 percent of the lesser of such approvable costs per
47 contact hour or fourteen dollars and ninety-five cents per contact hour,
48 reimbursement for the 2019--2020 school year shall not exceed 57.7
49 percent of the lesser of such approvable costs per contact hour or
50 fifteen dollars sixty cents per contact hour, reimbursement for the
51 2020--2021 school year shall not exceed 56.9 percent of the lesser of
52 such approvable costs per contact hour or sixteen dollars and twenty-
53 five cents per contact hour, reimbursement for the 2021--2022 school
54 year shall not exceed 56.0 percent of the lesser of such approvable
55 costs per contact hour or sixteen dollars and forty cents per contact
56 hour, reimbursement for the 2022--2023 school year shall not exceed 55.7

1 percent of the lesser of such approvable costs per contact hour or
2 sixteen dollars and sixty cents per contact hour, reimbursement for the
3 2023--2024 school year shall not exceed 54.7 percent of the lesser of
4 such approvable costs per contact hour or seventeen dollars and seventy
5 cents per contact hour, reimbursement for the 2024--2025 school year
6 shall not exceed 56.6 percent of the lesser of such approvable costs per
7 contact hour or eighteen dollars and seventy cents per contact hour,
8 [and] reimbursement for the 2025--2026 school year shall not exceed 58.2
9 percent of the lesser of such approvable costs per contact hour or nine-
10 teen dollars and fifty-five cents per contact hour, and reimbursement
11 for the 2026--2027 school year shall not exceed 59.2 percent of the
12 lesser of such approvable costs per contact hour or twenty dollars and
13 forty cents per contact hour, and where a contact hour represents sixty
14 minutes of instruction services provided to an eligible adult. Notwith-
15 standing any other provision of law to the contrary, for the 2018--2019
16 school year such contact hours shall not exceed one million four hundred
17 sixty-three thousand nine hundred sixty-three (1,463,963); for the
18 2019--2020 school year such contact hours shall not exceed one million
19 four hundred forty-four thousand four hundred forty-four (1,444,444);
20 for the 2020--2021 school year such contact hours shall not exceed one
21 million four hundred six thousand nine hundred twenty-six (1,406,926);
22 for the 2021--2022 school year such contact hours shall not exceed one
23 million four hundred sixteen thousand one hundred twenty-two
24 (1,416,122); for the 2022--2023 school year such contact hours shall not
25 exceed one million four hundred six thousand nine hundred twenty-six
26 (1,406,926); for the 2023--2024 school year such contact hours shall not
27 exceed one million three hundred forty-two thousand nine hundred seven-
28 ty-five (1,342,975); for the 2024--2025 school year such contact hours
29 shall not exceed one million two hundred twenty-eight thousand seven
30 hundred thirty-three (1,228,733); [and] for the 2025--2026 school year
31 such contact hours shall not exceed one million one hundred forty-three
32 thousand three hundred fifty-nine (1,143,359); and for the 2026--2027
33 school year such contact hours shall not exceed one million seventy-sev-
34 en thousand fifty (1,077,050). Notwithstanding any other provision of
35 law to the contrary, the apportionment calculated for the city school
36 district of the city of New York pursuant to subdivision 11 of section
37 3602 of the education law shall be computed as if such contact hours
38 provided by the consortium for worker education, not to exceed the
39 contact hours set forth herein, were eligible for aid in accordance with
40 the provisions of such subdivision 11 of section 3602 of the education
41 law.

42 § 15. Section 4 of chapter 756 of the laws of 1992 relating to funding
43 a program for work force education conducted by the consortium for work-
44 er education in New York city is amended by adding a new subdivision ee
45 to read as follows:

46 ee. The provisions of this subdivision shall not apply after the
47 completion of payments for the 2026--2027 school year. Notwithstanding
48 any inconsistent provisions of law, the commissioner of education shall
49 withhold a portion of employment preparation education aid due to the
50 city school district of the city of New York to support a portion of the
51 costs of the work force education program. Such moneys shall be credited
52 to the elementary and secondary education fund-local assistance account
53 and shall not exceed thirteen million dollars (\$13,000,000).

54 § 16. Section 6 of chapter 756 of the laws of 1992 relating to funding
55 a program for work force education conducted by the consortium for work-

er education in New York city, as amended by section 20 of part A of chapter 56 of the laws of 2025, is amended to read as follows:

§ 6. This act shall take effect July 1, 1992, and shall be deemed repealed June 30, ~~2026~~ 2027.

§ 17. Paragraph a of subdivision 14 of section 3641 of the education law, as added by section 2 of part I of chapter 61 of the laws of 2006, is amended to read as follows:

a. Establishment of the EXCEL program. There is hereby established the expanding our children's education and learning (EXCEL) program to provide project financing or assistance in the form of grants to eligible school districts, in addition to, or in lieu of, the apportionments made pursuant to subdivisions six, six-a, six-b, six-c, six-d, six-e, six-f and paragraph c of subdivision fourteen of section thirty-six hundred two of this article, and subdivisions ten and twelve of this section, for the costs of EXCEL school facility projects. An apportionment for any such project shall initially be available in the state fiscal year commencing April first, two thousand six. Such apportionment shall be used to fund projects certified by the commissioner in accordance with subdivision six of section sixteen hundred eighty-nine-i of the public authorities law prior to December thirty-first, two thousand twenty-eight. Notwithstanding any provision of law to the contrary, the dormitory authority of the state of New York shall be authorized to issue bonds or notes in an aggregate amount not to exceed two billion six hundred million dollars for purposes of the EXCEL program.

§ 18. Subparagraph 1 of paragraph b of subdivision 14 of section 3641 of the education law, as added by section 2 of part I of chapter 61 of the laws of 2006, is amended to read as follows:

(1) "EXCEL project". An EXCEL project shall be certified by the commissioner prior to December thirty-first, two thousand twenty-eight and shall include, but not be limited to, the acquisition, design, planning, construction, reconstruction, rehabilitation, preservation, development, improvement or modernization of an EXCEL school facility, where such project:

§ 19. Section 5 of part I of chapter 61 of the laws of 2006 amending the education law and the public authorities law relating to expanding our children's education and learning is amended to read as follows:

§ 5. This act shall take effect on the same date as a chapter of the laws of 2006 enacting into law major components of legislation which are necessary to implement the education, labor, and budget for the 2006-2007 state fiscal year, family assistance budget for the 2006-2007 state fiscal year, as proposed in legislative bill numbers S.6458-C and A.9558-B, takes effect; provided, however, that sections two, three, and four of this act shall expire and be deemed repealed on December 31, 2029.

§ 20. Subdivision 6 of section 4402 of the education law, as amended by section 21 of part A of chapter 56 of the laws of 2025, is amended to read as follows:

6. Notwithstanding any other law, rule or regulation to the contrary, the board of education of a city school district with a population of one hundred twenty-five thousand or more inhabitants shall be permitted to establish maximum class sizes for special classes for certain students with disabilities in accordance with the provisions of this subdivision. For the purpose of obtaining relief from any adverse fiscal impact from under-utilization of special education resources due to low student attendance in special education classes at the middle and secondary level as determined by the commissioner, such boards of educa-

tion shall, during the school years nineteen hundred ninety-five--ninety-six through June thirtieth, two thousand ~~[twenty-six]~~ **twenty-seven**, be authorized to increase class sizes in special classes containing students with disabilities whose age ranges are equivalent to those of students in middle and secondary schools as defined by the commissioner for purposes of this section by up to but not to exceed one and two tenths times the applicable maximum class size specified in regulations of the commissioner rounded up to the nearest whole number, provided that in a city school district having a population of one million or more, classes that have a maximum class size of fifteen may be increased by no more than one student and provided that the projected average class size shall not exceed the maximum specified in the applicable regulation, provided that such authorization shall terminate on June thirtieth, two thousand. Such authorization shall be granted upon filing of a notice by such a board of education with the commissioner stating the board's intention to increase such class sizes and a certification that the board will conduct a study of attendance problems at the secondary level and will implement a corrective action plan to increase the rate of attendance of students in such classes to at least the rate for students attending regular education classes in secondary schools of the district. Such corrective action plan shall be submitted for approval by the commissioner by a date during the school year in which such board increases class sizes as provided pursuant to this subdivision to be prescribed by the commissioner. Upon at least thirty days notice to the board of education, after conclusion of the school year in which such board increases class sizes as provided pursuant to this subdivision, the commissioner shall be authorized to terminate such authorization upon a finding that the board has failed to develop or implement an approved corrective action plan.

§ 21. Subdivisions 22 and 24 of section 140 of chapter 82 of the laws of 1995 amending the education law and other laws relating to state aid to school districts and the appropriation of funds for the support of government, as amended by section 22 of part A of chapter 56 of the laws of 2025, are amended to read as follows:

(22) sections one hundred twelve, one hundred thirteen, one hundred fourteen, one hundred fifteen and one hundred sixteen of this act shall take effect on July 1, 1995; provided, however, that section one hundred thirteen of this act shall remain in full force and effect until July 1, ~~2026~~ **2027** at which time it shall be deemed repealed;

(24) sections one hundred eighteen through one hundred thirty of this act shall be deemed to have been in full force and effect on and after July 1, 1995; provided further, however, that the amendments made pursuant to section one hundred twenty-four of this act shall be deemed to be repealed on and after July 1, ~~2026~~ **2027**;

§ 22. Special apportionment for salary expenses. 1. Notwithstanding any other provision of law, upon application to the commissioner of education, not sooner than the first day of the second full business week of June 2027 and not later than the last day of the third full business week of June 2027, a school district eligible for an apportionment pursuant to section 3602 of the education law shall be eligible to receive an apportionment pursuant to this section, for the school year ending June 30, 2027, for salary expenses incurred between April 1 and June 30, 2026 and such apportionment shall not exceed the sum of (a) the deficit reduction assessment of 1990--1991 as determined by the commissioner of education, pursuant to paragraph f of subdivision 1 of section 3602 of the education law, as in effect through June 30, 1993, plus (b)

1 186 percent of such amount for a city school district in a city with a
2 population in excess of 1,000,000 inhabitants, plus (c) 209 percent of
3 such amount for a city school district in a city with a population of
4 more than 195,000 inhabitants and less than 219,000 inhabitants accord-
5 ing to the latest federal census, plus (d) the net gap elimination
6 adjustment for 2010--2011, as determined by the commissioner of educa-
7 tion pursuant to chapter 53 of the laws of 2010, plus (e) the gap elimi-
8 nation adjustment for 2011--2012 as determined by the commissioner of
9 education pursuant to subdivision 17 of section 3602 of the education
10 law, and provided further that such apportionment shall not exceed such
11 salary expenses. Such application shall be made by a school district,
12 after the board of education or trustees have adopted a resolution to do
13 so and in the case of a city school district in a city with a population
14 in excess of 125,000 inhabitants, with the approval of the mayor of such
15 city.

16 2. The claim for an apportionment to be paid to a school district
17 pursuant to subdivision 1 of this section shall be submitted to the
18 commissioner of education on a form prescribed for such purpose, and
19 shall be payable upon determination by such commissioner that the form
20 has been submitted as prescribed. Such approved amounts shall be payable
21 on the same day in September of the school year following the year in
22 which application was made as funds provided pursuant to subparagraph 4
23 of paragraph b of subdivision 4 of section 92-c of the state finance
24 law, on the audit and warrant of the state comptroller on vouchers
25 certified or approved by the commissioner of education in the manner
26 prescribed by law from moneys in the state lottery fund and from the
27 general fund to the extent that the amount paid to a school district
28 pursuant to this section exceeds the amount, if any, due such school
29 district pursuant to subparagraph 2 of paragraph a of subdivision 1 of
30 section 3609-a of the education law in the school year following the
31 year in which application was made.

32 3. Notwithstanding the provisions of section 3609-a of the education
33 law, an amount equal to the amount paid to a school district pursuant to
34 subdivisions 1 and 2 of this section shall first be deducted from the
35 following payments due the school district during the school year
36 following the year in which application was made pursuant to subpara-
37 graphs 1, 2, 3, 4 and 5 of paragraph a of subdivision 1 of section
38 3609-a of the education law in the following order: the lottery appor-
39 tionment payable pursuant to subparagraph 2 of such paragraph followed
40 by the fixed fall payments payable pursuant to subparagraph 4 of such
41 paragraph and then followed by the district's payments to the teachers'
42 retirement system pursuant to subparagraph 1 of such paragraph, and any
43 remainder to be deducted from the individualized payments due the
44 district pursuant to paragraph b of such subdivision shall be deducted
45 on a chronological basis starting with the earliest payment due the
46 district.

47 § 23. Special apportionment for public pension accruals. 1. Notwith-
48 standing any other provision of law, upon application to the commission-
49 er of education, not later than June 30, 2027, a school district eligi-
50 ble for an apportionment pursuant to section 3602 of the education law
51 shall be eligible to receive an apportionment pursuant to this section,
52 for the school year ending June 30, 2027 and such apportionment shall
53 not exceed the additional accruals required to be made by school
54 districts in the 2004--2005 and 2005--2006 school years associated with
55 changes for such public pension liabilities. The amount of such addi-
56 tional accrual shall be certified to the commissioner of education by

1 the president of the board of education or the trustees or, in the case
2 of a city school district in a city with a population in excess of
3 125,000 inhabitants, the mayor of such city. Such application shall be
4 made by a school district, after the board of education or trustees have
5 adopted a resolution to do so and in the case of a city school district
6 in a city with a population in excess of 125,000 inhabitants, with the
7 approval of the mayor of such city.

8 2. The claim for an apportionment to be paid to a school district
9 pursuant to subdivision one of this section shall be submitted to the
10 commissioner of education on a form prescribed for such purpose, and
11 shall be payable upon determination by such commissioner that the form
12 has been submitted as prescribed. Such approved amounts shall be payable
13 on the same day in September of the school year following the year in
14 which application was made as funds provided pursuant to subparagraph 4
15 of paragraph b of subdivision 4 of section 92-c of the state finance
16 law, on the audit and warrant of the state comptroller on vouchers
17 certified or approved by the commissioner of education in the manner
18 prescribed by law from moneys in the state lottery fund and from the
19 general fund to the extent that the amount paid to a school district
20 pursuant to this section exceeds the amount, if any, due such school
21 district pursuant to subparagraph 2 of paragraph a of subdivision 1 of
22 section 3609-a of the education law in the school year following the
23 year in which application was made.

24 3. Notwithstanding the provisions of section 3609-a of the education
25 law, an amount equal to the amount paid to a school district pursuant to
26 subdivisions 1 and 2 of this section shall first be deducted from the
27 following payments due the school district during the school year
28 following the year in which application was made pursuant to subpara-
29 graphs 1, 2, 3, 4 and 5 of paragraph a of subdivision 1 of section
30 3609-a of the education law in the following order: the lottery appor-
31 tionment payable pursuant to subparagraph 2 of such paragraph followed
32 by the fixed fall payments payable pursuant to subparagraph 4 of such
33 paragraph and then followed by the district's payments to the teachers'
34 retirement system pursuant to subparagraph 1 of such paragraph, and any
35 remainder to be deducted from the individualized payments due the
36 district pursuant to paragraph b of such subdivision shall be deducted
37 on a chronological basis starting with the earliest payment due the
38 district.

39 § 24. The amounts specified in this section shall be a set-aside from
40 the state funds which each such district is receiving from the total
41 foundation aid:

42 1. for the development, maintenance or expansion of magnet schools or
43 magnet school programs for the 2026--2027 school year. For the city
44 school district of the city of New York there shall be a set-aside of
45 foundation aid equal to forty-eight million one hundred seventy-five
46 thousand dollars (\$48,175,000) including five hundred thousand dollars
47 (\$500,000) for the Andrew Jackson High School; for the Buffalo city
48 school district, twenty-one million twenty-five thousand dollars
49 (\$21,025,000); for the Rochester city school district, fifteen million
50 dollars (\$15,000,000); for the Syracuse city school district, thirteen
51 million dollars (\$13,000,000); for the Yonkers city school district,
52 forty-nine million five hundred thousand dollars (\$49,500,000); for the
53 Newburgh city school district, four million six hundred forty-five thou-
54 sand dollars (\$4,645,000); for the Poughkeepsie city school district,
55 two million four hundred seventy-five thousand dollars (\$2,475,000); for
56 the Mount Vernon city school district, two million dollars (\$2,000,000);

1 for the New Rochelle city school district, one million four hundred ten
2 thousand dollars (\$1,410,000); for the Schenectady city school district,
3 one million eight hundred thousand dollars (\$1,800,000); for the Port
4 Chester city school district, one million one hundred fifty thousand
5 dollars (\$1,150,000); for the White Plains city school district, nine
6 hundred thousand dollars (\$900,000); for the Niagara Falls city school
7 district, six hundred thousand dollars (\$600,000); for the Albany city
8 school district, three million five hundred fifty thousand dollars
9 (\$3,550,000); for the Utica city school district, two million dollars
10 (\$2,000,000); for the Beacon city school district, five hundred sixty-
11 six thousand dollars (\$566,000); for the Middletown city school
12 district, four hundred thousand dollars (\$400,000); for the Freeport
13 union free school district, four hundred thousand dollars (\$400,000);
14 for the Greenburgh central school district, three hundred thousand
15 dollars (\$300,000); for the Amsterdam city school district, eight
16 hundred thousand dollars (\$800,000); for the Peekskill city school
17 district, two hundred thousand dollars (\$200,000); and for the Hudson
18 city school district, four hundred thousand dollars (\$400,000).

19 2. Notwithstanding any inconsistent provision of law to the contrary,
20 a school district setting aside such foundation aid pursuant to this
21 section may use such set-aside funds for: (a) any instructional or
22 instructional support costs associated with the operation of a magnet
23 school; or (b) any instructional or instructional support costs associ-
24 ated with implementation of an alternative approach to promote diversity
25 and/or enhancement of the instructional program and raising of standards
26 in elementary and secondary schools of school districts having substan-
27 tial concentrations of minority students.

28 3. The commissioner of education shall not be authorized to withhold
29 foundation aid from a school district that used such funds in accordance
30 with this paragraph, notwithstanding any inconsistency with a request
31 for proposals issued by such commissioner for the purpose of attendance
32 improvement and dropout prevention for the 2026--2027 school year, and
33 for any city school district in a city having a population of more than
34 one million, the set-aside for attendance improvement and dropout
35 prevention shall equal the amount set aside in the base year. For the
36 2026--2027 school year, it is further provided that any city school
37 district in a city having a population of more than one million shall
38 allocate at least one-third of any increase from base year levels in
39 funds set aside pursuant to the requirements of this section to communi-
40 ty-based organizations. Any increase required pursuant to this section
41 to community-based organizations must be in addition to allocations
42 provided to community-based organizations in the base year.

43 4. For the purpose of teacher support for the 2026--2027 school year:
44 for the city school district of the city of New York, sixty-two million
45 seven hundred seven thousand dollars (\$62,707,000); for the Buffalo city
46 school district, one million seven hundred forty-one thousand dollars
47 (\$1,741,000); for the Rochester city school district, one million seven-
48 ty-six thousand dollars (\$1,076,000); for the Yonkers city school
49 district, one million one hundred forty-seven thousand dollars
50 (\$1,147,000); and for the Syracuse city school district, eight hundred
51 nine thousand dollars (\$809,000). All funds made available to a school
52 district pursuant to this section shall be distributed among teachers
53 including prekindergarten teachers and teachers of adult vocational and
54 academic subjects in accordance with this section and shall be in addi-
55 tion to salaries heretofore or hereafter negotiated or made available;
56 provided, however, that all funds distributed pursuant to this section

1 for the current year shall be deemed to incorporate all funds distrib-
2 uted pursuant to former subdivision 27 of section 3602 of the education
3 law for prior years. In school districts where the teachers are repres-
4 ented by certified or recognized employee organizations, all salary
5 increases funded pursuant to this section shall be determined by sepa-
6 rate collective negotiations conducted pursuant to the provisions and
7 procedures of article 14 of the civil service law, notwithstanding the
8 existence of a negotiated agreement between a school district and a
9 certified or recognized employee organization.

10 § 25. Support of public libraries. The moneys appropriated for the
11 support of public libraries by a chapter of the laws of 2026 enacting
12 the aid to localities budget shall be apportioned for the 2026--2027
13 state fiscal year in accordance with the provisions of sections 271,
14 272, 273, 282, 284, and 285 of the education law as amended by the
15 provisions of such chapter and the provisions of this section, provided
16 that library construction aid pursuant to section 273-a of the education
17 law shall not be payable from the appropriations for the support of
18 public libraries and provided further that no library, library system or
19 program, as defined by the commissioner of education, shall receive less
20 total system or program aid than it received for the year 2025--2026
21 except as a result of a reduction adjustment necessary to conform to the
22 appropriations for support of public libraries.

23 Notwithstanding any other provision of law to the contrary, the moneys
24 appropriated for the support of public libraries for the year 2026--2027
25 by a chapter of the laws of 2026 enacting the aid to localities budget
26 shall fulfill the state's obligation to provide such aid and, pursuant
27 to a plan developed by the commissioner of education and approved by the
28 director of the budget, the aid payable to libraries and library systems
29 pursuant to such appropriations shall be reduced proportionately to
30 assure that the total amount of aid payable does not exceed the total
31 appropriations for such purpose.

32 § 26. Severability. The provisions of this act shall be severable, and
33 if the application of any clause, sentence, paragraph, subdivision,
34 section or part of this act to any person or circumstance shall be
35 adjudged by any court of competent jurisdiction to be invalid, such
36 judgment shall not necessarily affect, impair or invalidate the applica-
37 tion of any such clause, sentence, paragraph, subdivision, section, or
38 part of this act or remainder thereof, as the case may be, to any other
39 person or circumstance, but shall be confined in its operation to the
40 clause, sentence, paragraph, subdivision, section or part thereof
41 directly involved in the controversy in which such judgment shall have
42 been rendered.

43 § 27. This act shall take effect immediately and shall be deemed to
44 have been in full force and effect on and after April 1, 2026; provided,
45 however, that:

46 1. Sections one, two, four, five, six, seven, eight, nine, twenty and
47 twenty-four of this act shall take effect July 1, 2026;

48 2. The amendments to chapter 756 of the laws of 1992 made by sections
49 fourteen and fifteen of this act shall not affect the repeal of such
50 chapter and shall be deemed repealed therewith;

51 3. The amendments to subdivision 14 of section 3641 of the education
52 law made by sections seventeen and eighteen of this act shall not affect
53 the expiration of such subdivision and shall be deemed to expire there-
54 with.

1 Section 1. Subdivision 3 of section 711 of the education law, as
2 amended by section 7 of part B of chapter 57 of the laws of 2007, is
3 amended to read as follows:

4 3. No school district shall be required to purchase or otherwise
5 acquire school library materials, the cost of which shall exceed an
6 amount equal to the library materials factor multiplied by the sum of
7 the public school district enrollment and the nonpublic school enroll-
8 ment in the base year as defined in subparagraphs two and three of para-
9 graph n of subdivision one of section thirty-six hundred two of this
10 chapter. For aid payable in the nineteen hundred ninety-eight--nineteen
11 hundred ninety-nine school year, the library materials factor shall be
12 four dollars. For aid payable in the two thousand seven--two thousand
13 eight school year ~~[and thereafter]~~ through the two thousand twenty-five-
14 -two thousand twenty-six school year, the library materials factor shall
15 be six dollars and twenty-five cents. For aid payable in the two thou-
16 sand twenty-six--two thousand twenty-seven school year and thereafter,
17 the library materials factor shall be eleven dollars and thirty-three
18 cents.

19 § 2. Subdivision 1 of section 3622-a of the education law, as added by
20 chapter 474 of the laws of 1996, is amended to read as follows:

21 1. Transportation of pupils to and from school once daily, including
22 children attending a universal pre-kindergarten program pursuant to
23 section thirty-six hundred two-e of this article, provided, however, in
24 no case shall there be any deduction made in determining aidable regular
25 transportation on the basis of bus mileage travelled in transporting
26 children as part of a regional or joint transportation system;

27 § 3. Paragraph a of subdivision 1 of section 3635 of the education
28 law, as amended by section 11 of part A of chapter 97 of the laws of
29 2011, is amended to read as follows:

30 a. Sufficient transportation facilities (including the operation and
31 maintenance of motor vehicles) shall be provided by the school district
32 for all the children residing within the school district to and from the
33 school they legally attend, who are in need of such transportation
34 because of the remoteness of the school to the child or for the
35 promotion of the best interest of such children. Such transportation
36 shall be provided for all children attending grades kindergarten through
37 eight who live more than two miles from the school which they legally
38 attend and for all children attending grades nine through twelve who
39 live more than three miles from the school which they legally attend and
40 shall be provided for each such child up to a distance of fifteen miles,
41 the distances in each case being measured by the nearest available route
42 from home to school. Such transportation may be provided to children
43 attending a universal pre-kindergarten program pursuant to section thir-
44 -ty-six hundred two-e of this article. The cost of providing such trans-
45 portation between two or three miles, as the case may be, and fifteen
46 miles shall be considered for the purposes of this chapter to be a
47 charge upon the district and an ordinary contingent expense of the
48 district. Transportation for a lesser distance than two miles in the
49 case of children attending a universal pre-kindergarten program pursuant
50 to section thirty-six hundred two-e of this article or grades kindergar-
51 ten through eight or three miles in the case of children attending
52 grades nine through twelve and for a greater distance than fifteen miles
53 may be provided by the district with the approval of the qualified
54 voters, and, if provided, shall be offered equally to all children in
55 like circumstances residing in the district; provided, however, that

1 this requirement shall not apply to transportation offered pursuant to
2 section thirty-six hundred thirty-five-b of this article.

3 § 4. Paragraph e of subdivision 1 of section 3635 of the education
4 law, as amended by chapter 665 the laws of 1990, is amended to read as
5 follows:

6 e. In lieu of the transportation provided pursuant to the foregoing
7 provisions of this subdivision, a board of education may, at its
8 discretion, provide transportation to any child attending a universal
9 pre-kindergarten program pursuant to section thirty-six hundred two-e of
10 this article or grades kindergarten through eight between the school
11 such child legally attends and before-and/or-after-school child care
12 locations. For the purposes of this subdivision, a before-and/or-after-
13 school child care location shall mean a place, other than the child's
14 home, where care for less than twenty-four hours a day is provided on a
15 regular basis for a child who attends school within the school district,
16 provided that such place is situated within the school district. This
17 definition includes, but is not limited to, a variety of child care
18 services such as day care centers, family day care homes and in-home
19 care by non-relatives. Such transportation may be provided for children
20 attending a universal pre-kindergarten program pursuant to section thir-
21 ty-six hundred two-e of this article or grades kindergarten through
22 eight where the distance between the school they legally attend and
23 before-and/or-after-school child care locations is more than two miles,
24 and may be provided for up to a distance of fifteen miles, the distance
25 in each case being measured by the nearest available route from before-
26 and/or-after-school child care locations to the school they legally
27 attend, except that transportation for a lesser distance than two miles
28 or a greater distance than fifteen miles may be provided if transporta-
29 tion for such distances is provided to students between home and school.
30 Where a child receives transportation from a before-school child care
31 location to the school [~~he or she~~] such child legally attends, such
32 child shall be entitled to receive transportation from the school [~~he or~~
33 ~~she~~] such child legally attends to [~~his or her~~] such child's home or to
34 an after-school child care location in accordance with this subdivision.
35 Where a child receives transportation from the school [~~he or she~~] such
36 child legally attends to an after-school child care location, such child
37 shall be entitled to receive transportation from home to the school [~~he~~
38 ~~or she~~] such child legally attends in accordance with this subdivision.
39 Transportation may be provided to any child attending a universal pre-
40 kindergarten program pursuant to section thirty-six hundred two-e of
41 this article or grades kindergarten through eight between the school the
42 child legally attends and before-and/or-after-school child care
43 locations upon written request of the parent or legal guardian submitted
44 not later than the first day of April preceding the next school year,
45 provided, however, a parent or guardian of a child not residing in the
46 district on such date shall submit a written request within thirty days
47 after establishing residence in the district and provided further that
48 in order to be considered eligible for such transportation in the nine-
49 teen hundred eighty-seven--eighty-eight school year, such request must
50 be submitted by August first, nineteen hundred eighty-seven. The
51 provision of transportation to or from before-and/or-after-school child
52 care locations, if provided, shall be offered equally to all children in
53 like circumstances residing in the district, provided that a board of
54 education furnishing transportation pursuant to this paragraph may limit
55 the provision of such transportation to child care locations located
56 within the attendance zone of the school the child attends, and to child

1 day care centers and school age child care programs licensed or regis-
2 tered pursuant to section three hundred ninety of the social services
3 law located anywhere within the school district. The cost of providing
4 such transportation between two or three miles, as the case may be, and
5 fifteen miles shall be considered for the purposes of this chapter to be
6 a charge upon the district. Such substitute transportation expense shall
7 be eligible for state aid in accordance with [~~clause~~] subparagraph one
8 of paragraph b of subdivision seven of section thirty-six hundred two of
9 this [~~chapter~~] article. Nothing in this subdivision shall be construed
10 to impose a duty upon boards of education to provide transportation to
11 or from before-and/or-after-school child care locations. Nothing in this
12 subdivision shall be construed to authorize boards of education to
13 provide to any child transportation between a before-and/or-after-school
14 day care location and that child's home.

15 § 5. Paragraph g of subdivision 1 of section 3635 of the education law
16 is REPEALED.

17 § 6. Subdivision 2 of section 3635-b of the education law, as amended
18 by chapter 422 of the laws of 2004, is amended to read as follows:

19 2. A board of education or board of trustees is authorized to adopt a
20 resolution providing for pupil transportation in child safety zones,
21 where applicable, of a proposition to expend money for such transporta-
22 tion presented pursuant to the provisions of subdivision nineteen of
23 section two thousand twenty-one and section two thousand twenty-two of
24 this chapter. Such transportation may be provided without regard to like
25 circumstances based solely upon the fact that the pupil resides within
26 two miles, in the case of a pupil in a universal pre-kindergarten
27 program pursuant to section thirty-six hundred two-e of this article or
28 grade kindergarten through eight, and within three miles, in the case of
29 a pupil in grade nine through twelve, from the school such pupil legally
30 attends, notwithstanding the provisions of section thirty-six hundred
31 thirty-five of this [~~article~~] part. Such transportation may be provided
32 upon the determination by the board that a hazardous zone exists which
33 in the opinion of the board would be reasonably alleviated by the estab-
34 lishment of a child safety zone. For purposes of this section, child
35 safety zone means a designated area of a school district, including at
36 least one personal residence, within which children who reside at a
37 lesser distance from the school they legally attend than the minimum
38 transportation limit of the district will be provided transportation on
39 the basis that their most direct walking route to school will traverse a
40 hazardous zone.

41 § 7. Paragraph a of subdivision 3 of section 3623-a of the education
42 law, as added by chapter 474 of the laws of 1996, is amended to read as
43 follows:

44 a. The transportation operating expense for any school district
45 furnishing transportation for pupils attending a school within such
46 district shall be reduced by any moneys received for transportation,
47 provided that universal pre-kindergarten program grants awarded pursuant
48 to section thirty-six hundred two-e of this article shall not be consid-
49 ered moneys received for transportation.

50 § 8. Subdivision 1 of section 3602 of the education law is amended by
51 adding a new paragraph kk to read as follows:

52 kk. "Homeless and foster count" shall mean the product of twelve
53 hundredths (0.12) multiplied by the sum of the three-year average of
54 students experiencing homelessness plus the product of the three-year
55 average of foster students, where:

(1) "students experiencing homelessness" shall be equal to the unduplicated count of students who lack a fixed, regular, and adequate nighttime residence, including a student who is sharing the housing of other persons due to a loss of housing, economic hardship, or similar reason; living in motels, hotels, trailer parks or camping grounds due to the lack of alternative adequate accommodations; abandoned in hospitals; or a migratory child, as defined by the commissioner, who qualifies as homeless under any of the above provisions; or has a primary nighttime location that is a supervised publicly or privately operated shelter designed to provide temporary living accommodations including, but not limited to, shelters operated or approved by the state or local department of social services, and residential programs for runaway and homeless youth established pursuant to article nineteen-H of the executive law or a public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for human beings, including a car, park, public space, abandoned building, substandard housing, bus, train station, or similar setting. Homeless students does not include children in foster care placements or who are receiving educational services pursuant to subdivision four, five, six, six-a, or seven of section thirty-two hundred two of this chapter or pursuant to article eighty-one, eighty-five, eighty-seven or eighty-eight of this chapter;

(2) the "three-year average of students experiencing homelessness" shall be equal to the quotient of (i) the unduplicated count of students experiencing homelessness for the school year prior to the base year, plus such number for the school year two years prior to the base year, plus such number for the school year three years prior to the base year, divided by (ii) three, rounded to the nearest whole number;

(3) "foster students" shall be equal to the unduplicated count of students in twenty-four-hour substitute care for children placed away from their parents and for whom the agency under title IV-E of the Social Security Act has placement and care responsibility. This shall include, but is not limited to, placements in foster family homes, foster homes of relatives, group homes, emergency shelters, residential facilities, child care institutions, and pre-adoptive homes. A child is in foster care in accordance with this definition regardless of whether or not the foster care facility is licensed and payments are made by the state, tribal, or local agency for the care of the child, whether adoption subsidy payments are being made prior to the finalization of an adoption, or whether there is federal matching of any payments that are made; and

(4) the "three-year average of foster students" shall be equal to the quotient of (i) the unduplicated count of foster students for the school year prior to the base year, plus such number for the school year two years prior to the base year, plus such number for the school year three years prior to the base year, divided by (ii) three, rounded to the nearest whole number.

§ 9. Paragraph s of subdivision 1 of section 3602 of the education law, as amended by section 4-a of part A of chapter 56 of the laws of 2025, is amended to read as follows:

s. "Extraordinary needs count" shall mean the sum of (i) the product of the English language learner count multiplied by the ELL weight, ~~[plus]~~ (ii) the poverty count ~~[and]~~, (iii) the homeless and foster count, plus (iv) the sparsity count, provided that the 'ELL weight' shall be five tenths (0.50) for the two thousand twenty-four--two thousand twenty-five school year and prior, ~~[and shall be equal to]~~ fifty-three hundredths (0.53) in the two thousand twenty-five--two thousand

twenty-six school year, and six tenths (0.6) in the two thousand twenty-six--two thousand twenty-seven school year and thereafter.

§ 10. Subparagraph 2 of paragraph g of subdivision 3 of section 3602 of the education law, as amended by section 8 of part A of chapter 56 of the laws of 2025, is amended to read as follows:

(2) a value computed by subtracting from one the product obtained by multiplying the combined wealth ratio by sixty-four hundredths (0.64) through the two thousand twenty-five--two thousand twenty-six school year and for the two thousand twenty-six--two thousand twenty-seven school year and thereafter, a value computed by subtracting from one the product obtained when multiplying the combined wealth ratio by fifty-six hundredths (0.56), provided however, that for the purpose of computing

the state sharing ratio for total foundation aid, the tier two value shall be computed by subtracting from one the product obtained when multiplying the combined wealth ratio by six hundred sixteen thousandths (0.616) and such values shall be computed using the combined wealth ratio for total foundation aid in place of the combined wealth ratio; or

§ 11. Subparagraph 4 of paragraph g of subdivision 3 of section 3602 of the education law, as amended by section 13 of part B of chapter 57 of the laws of 2008, is amended to read as follows:

(4) a value computed by subtracting from fifty-one hundredths the product obtained by multiplying the combined wealth ratio by twenty-two hundredths, and, for an apportionment for pupil transportation pursuant to subdivision seven of this section, high need school districts, as determined pursuant to clause (c) of subparagraph two of paragraph c of subdivision six of this section for the school aid computer listing produced by the commissioner in support of the enacted budget for the two thousand seven--two thousand eight school year and entitled "SA0708", such values shall be multiplied by one hundred ten percent; provided, however, that for the purpose of computing the state sharing ratio for total foundation aid, the tier four value shall be computed by subtracting from fifty-one hundredths the product obtained by multiplying the combined wealth ratio by one hundred seventy-three thousandths and such values shall be computed using the combined wealth ratio for total foundation aid in place of the combined wealth ratio, and, for high need school districts, as determined pursuant to clause (c) of subparagraph two of paragraph c of subdivision six of this section for the school aid computer listing produced by the commissioner in support of the enacted budget for the two thousand seven--two thousand eight school year and entitled "SA0708", such values shall be multiplied by one hundred five percent.

§ 12. Clause (b) of subparagraph 2 of paragraph c of subdivision 6 of section 3602 of the education law, as amended by section 15 of part B of chapter 57 of the laws of 2008, is amended to read as follows:

(b) For aid payable in the school years two thousand--two thousand one and thereafter for all school building projects approved by the voters of the school district or by the board of education of a city school district in a city with more than one hundred twenty-five thousand inhabitants, and/or the chancellor in a city school district in a city having a population of one million or more, on or after July first, two thousand, any school district shall compute aid under the provisions of this subdivision using the sum of the high-need supplemental building aid ratio, if any, computed pursuant to clause (c) of this subparagraph and the greater of (i) the building aid ratio computed for use in the current year; or (ii) a building aid ratio equal to the difference of the aid ratio that was used or that would have been used to compute an

1 apportionment pursuant to this subdivision in the nineteen hundred nine-
2 ty-nine--two thousand school year as such aid ratio is computed by the
3 commissioner based on data on file with the department on or before July
4 first of the third school year following the school year in which aid is
5 first payable, less one-tenth; or (iii) for all such school building
6 projects approved by the voters of the school district or by the board
7 of education of a city school district in a city with more than one
8 hundred twenty-five thousand inhabitants, and/or the chancellor in a
9 city school district in a city having a population of one million or
10 more, on or after July first, two thousand and on or before June thirti-
11 eth, two thousand four, for any school district for which the pupil
12 wealth ratio is greater than two and five-tenths in the school year in
13 which such school building project was approved by the voters of the
14 school district or by the board of education of a city school district
15 in a city with more than one hundred twenty-five thousand inhabitants,
16 and/or the chancellor in a city school district in a city having a popu-
17 lation of one million or more and for which the alternate pupil wealth
18 ratio is less than eighty-five hundredths in such school year, and for
19 all such school building projects approved by the voters of the school
20 district or by the board of education of a city school district in a
21 city with more than one hundred twenty-five thousand inhabitants, and/or
22 the chancellor in a city school district in a city having a population
23 of one million or more, on or after July first, two thousand five and on
24 or before June thirtieth, two thousand eight, for any school district
25 for which the pupil wealth ratio was greater than two and five-tenths in
26 the two thousand--two thousand one school year and for which the alter-
27 nate pupil wealth ratio was less than eighty-five hundredths in the two
28 thousand--two thousand one school year or for a city school district in
29 a city with more than one hundred twenty-five thousand inhabitants as of
30 the two thousand twenty federal decennial census, the additional build-
31 ing aid ratio; provided that, school districts who are eligible for aid
32 under paragraph f of subdivision fourteen of this section may compute
33 aid under the provisions of this subdivision using the difference of the
34 highest of the aid ratios so computed for the reorganized district or
35 the highest of the aid ratios so computed for any of the individual
36 school districts which existed prior to the date of the reorganized
37 school district less one-tenth.

38 § 13. Clause (c) of subparagraph 2 of paragraph c of subdivision 6 of
39 section 3602 of the education law, as added by section 12-b of part L of
40 chapter 57 of the laws of 2005, is amended to read as follows:

41 (c) For aid payable in the school years two thousand five--two thou-
42 sand six and thereafter for all school building projects approved by the
43 voters of the school district or by the board of education of a city
44 school district in a city with more than one hundred twenty-five thou-
45 sand inhabitants, and/or the chancellor in city school district in a
46 city having a population of one million or more, on or after July first,
47 two thousand five, high need school districts, as defined pursuant to
48 regulations of the commissioner, may compute aid under the provisions of
49 this subdivision using the high-need supplemental building aid ratio,
50 which shall be the lesser of (A) the product, computed to three decimals
51 without rounding, of the greater of the building aid ratios computed
52 pursuant to subclauses i, ii and iii of clause (b) of this subparagraph
53 multiplied by five percent through the two thousand twenty-five--two
54 thousand twenty-six school year and ten percent for aid payable in the
55 two thousand twenty-six--two thousand twenty-seven school year and ther-
56 eafter, or (B) the positive remainder of ninety-eight one-hundredths

1 less the greater of the building aid ratios computed pursuant to
2 subclauses i, ii and iii of clause (b) of this subparagraph.

3 § 14. Subdivision 6-i of section 3602 of the education law, as added
4 by section 6 of part A of chapter 56 of the laws of 2022, is amended and
5 a new subdivision 6-j is added to read as follows:

6 6-i. Building aid and the New York state energy research and develop-
7 ment authority P-12 schools: clean green schools initiative. 1. For aid
8 payable in the school years two thousand twenty-two--two thousand twen-
9 ty-three and thereafter, notwithstanding any provision of law to the
10 contrary, the apportionment to any district under subdivision six,
11 six-a, six-b, six-c, six-e, six-f, ~~or~~ six-h, or six-j of this section
12 for capital outlays for school building projects for energy efficiency
13 shall not exclude grants authorized pursuant to the New York state ener-
14 gy research and development authority P-12 schools: clean green schools
15 initiative from aidable expenditures, provided that the sum of appor-
16 tionments for these projects calculated pursuant to subdivision six,
17 six-a, six-b, six-c, six-e, six-f, ~~or~~ six-h, or six-j of this section
18 and such grants shall not exceed the actual project expenditures.

19 2. The New York state energy research and development authority shall
20 provide a list of energy efficiency grants awarded to each school
21 district to the commissioner no later than one month prior to the end of
22 each calendar year and each school year. This list shall include the
23 capital construction project or projects funded by the grants, the award
24 amounts of each individual project grant, the district receiving such
25 grants, the schools receiving such grants, the date on which the grant
26 was received, and any other information necessary for the calculation of
27 aid pursuant to subdivision six, six-a, six-b, six-c, six-e, six-f, ~~or~~
28 six-h, or six-j of this section.

29 6-j. Building aid for incremental zero-emission school bus infrastruc-
30 ture costs. a. For the purposes of this subdivision, the following terms
31 shall have the following meanings:

32 (1) "Incremental zero-emission school bus storage costs" shall mean
33 the sum of additional costs for the storage of zero-emission school
34 buses as compared to traditional school buses. Such incremental costs
35 shall reflect new or increased costs from, but not be limited to:
36 modifications to bus facilities such as wider and taller doors and/or
37 garages, modifications to bus facilities to address higher weights such
38 as higher power lifts, equipment and software for advanced fire
39 suppression systems, installation and operation of charge management
40 systems, and the cost of entire storage facilities or preparation of
41 storage locations where one would not have been necessary but for the
42 storage of zero-emission school buses.

43 (2) "Incremental customer-owned make-ready costs" shall mean the sum
44 of additional costs of any capital investment in equipment or infras-
45 tructure beyond the utility service point necessary to make a site ready
46 to accept an electric vehicle charger, including conductors, trenching,
47 and panels, where such costs would not have been present but for the
48 preparation of the site to be able to charge zero-emission school buses.

49 b. In addition to the apportionments payable to a school district
50 pursuant to subdivision six of this section, the commissioner is hereby
51 authorized to apportion to any school district additional building aid
52 pursuant to this subdivision for its approved expenditures, otherwise
53 ineligible for building aid, beginning in the base year through the two
54 thousand thirty-four--two thousand thirty-five school year for incre-
55 mental zero-emission school bus storage costs and incremental customer-
56 owned make-ready costs that are constructed or improved pursuant to this

subdivision, provided that such expenditures are not reimbursable from another state or federal source except as provided in subdivision six-i of this section, or from funding from one or more electric corporations as such term is defined in section two of the public service law. Such aid shall equal the product of the building aid ratio defined pursuant to paragraph c of subdivision six of this section and the actual approved expenditures incurred beginning in the base year through the two thousand thirty-four--two thousand thirty-five school year pursuant to this subdivision, to the extent that such expenditures are not reimbursable from another state or federal source except as provided in subdivision six-i of this section, or from funding from one or more electric corporations as such term is defined in section two of the public service law.

§ 15. Subdivisions b and c of section 5 of chapter 537 of the laws of 1976 relating to paid, free and reduced price breakfast for eligible pupils in certain school districts, subdivision b as amended by section 32-a of part A of chapter 56 of the laws of 2024, and subdivision c as amended by section 22-b of part A of chapter 56 of the laws of 2022, are amended to read as follows:

b. Notwithstanding any monetary limitations with respect to school lunch programs contained in any law or regulation, for school lunch meals served in the school year commencing July 1, 2022 and each July 1 thereafter, a school food authority shall be eligible for a State subsidy equal to \$0.1901 per free and paid school lunch meal, and \$0.0519 per reduced-price lunch meal, for any school lunch meal served by such school food authority; provided that the school food authority certifies to the Department of Agriculture and Markets through the application submitted pursuant to subdivision c of this section that such food authority has purchased at least thirty percent of its total cost of food products for its school lunch service program from New York state farmers, growers, producers or processors in the preceding school year. Commencing July 1, 2026, and each July 1 thereafter, a school food authority shall be allowed to attribute moneys spent on purchases of food products from New York state farmers, growers, producers or processors made for its school breakfast or snack programs to the thirty percent of costs for school breakfast and lunch service programs.

c. The Department of Agriculture and Markets in cooperation with the State Education Department, shall develop an application for school food authorities to seek an additional State subsidy pursuant to this section in a timeline and format prescribed by the commissioner of agriculture and markets. Such application shall include, but not be limited to, documentation demonstrating the school food authority's total food purchases for its school breakfast, snack, and lunch service program, and documentation demonstrating its total food purchases and percentages for such program, permitted to be counted under this section, from New York State farmers, growers, producers or processors in the preceding school year. The application shall also include an attestation from the school food authority's chief operating officer that it purchased at least thirty percent of its total cost of food products, permitted to be counted under this section, for its school breakfast, snack, and lunch service program from New York State farmers, growers, producers or processors in the preceding school year in order to meet the requirements for this additional State subsidy. School food authorities shall be required to annually apply for this subsidy. After reviewing school food authorities' completed applications for an additional State subsidy pursuant to this section, the Department of Agriculture and Markets

1 shall certify to the State Education Department the school food authori-
2 ties approved for such additional State subsidy and the State Education
3 Department shall pay such additional State subsidy to such school food
4 authorities.

5 § 16. Subdivision c of section 3 of chapter 507 of the laws of 1974
6 relating to providing for the apportionment of state monies to certain
7 nonpublic schools, to reimburse them for their expenses in complying
8 with certain state requirements for the administration of state testing
9 and evaluation programs and for participation in state programs for the
10 reporting of basic educational data, as amended by section 38 of part A
11 of chapter 56 of the laws of 2021, is amended to read as follows:

12 c. The commissioner shall annually apportion to each qualifying school
13 ~~[in the cities of New York, Buffalo and Rochester]~~, for school years
14 beginning on or after July first two thousand sixteen, an amount equal
15 to the actual cost incurred by each such school during the preceding
16 school year in meeting the recording and reporting requirements of the
17 state school immunization program, provided that the state's liability
18 shall be limited to the amount appropriated for this purpose.

19 § 17. Subdivision 1 of section 3635-b of the education law, as amended
20 by chapter 536 of the laws of 2002, is amended to read as follows:

21 1. This section shall apply where the board of education or trustees
22 of a common, central, central high school, union free school district,
23 or city school district ~~[of a city with less than one hundred twenty-~~
24 ~~five thousand inhabitants]~~ adopts a resolution to make transportation in
25 child safety zones available to resident pupils for a particular school
26 year. Such resolution shall continue in effect for subsequent school
27 years until the board adopts a resolution providing otherwise.

28 § 18. Subparagraph 1 of paragraph b of subdivision 6-f of section 3602
29 of the education law, as added by section 19 of part H of chapter 83 of
30 the laws of 2002, is amended to read as follows:

31 (1) has a total project cost of ~~[one]~~ two hundred fifty thousand
32 dollars or less~~;~~ ~~provided however, that for any district, no more than~~
33 ~~one project shall be eligible pursuant to this subparagraph for an~~
34 ~~apportionment within the same school year];~~ and/or

35 § 19. Subdivision 4 of section 4405 of the education law is amended by
36 adding a new paragraph l to read as follows:

37 l. Tuition rates approved on an interim basis in advance of the estab-
38 lishment of reimbursement rates pursuant to the tuition methodology
39 established pursuant to this subdivision for the two thousand twenty-
40 six--two thousand twenty-seven school year and annually thereafter, for
41 special services and programs provided to school age students by
42 approved private residential or non-residential schools for the educa-
43 tion of students with disabilities that are located within the state, by
44 special act school districts, by July and August programs for students
45 with disabilities approved pursuant to section forty-four hundred eight
46 of this article, and for special services or programs provided to
47 preschool students with disabilities by programs approved pursuant to
48 section forty-four hundred ten of this article including, but not limit-
49 ed to, special class and special class in an integrated setting
50 programs, shall be equal to the last certified prospective or reconcil-
51 iation rate and shall include compounded growth determined in accordance
52 with the following:

53 (i) If the last certified prospective or reconciliation rate was
54 approved for the school year prior to the current school year, such rate
55 shall increase by the annual growth percentage approved for the current
56 year.

(ii) If the last certified prospective or reconciliation rate was approved for the school year two years prior to the current school year, such rate shall increase by the annual growth percentage approved for the year prior to the current school year, and the product of such shall then increase by the annual growth percentage approved for the current school year.

(iii) If the last certified prospective or reconciliation rate was approved for the school year three or more years prior to the current school year, such rate shall increase by the annual growth percentage approved for the year two years prior to the current year; the product of such shall then increase by the annual growth percentage approved for the year prior to the current year, and the product of such shall then increase by the annual growth percentage approved for the current year.

§ 20. Section 4003 of the education law is amended by adding a new subdivision 8 to read as follows:

8. Tuition rates approved on an interim basis in advance of the establishment of reimbursement rates pursuant to the tuition methodology established pursuant to this section for the two thousand twenty-six--two thousand twenty-seven school year and annually thereafter, for special services and programs provided to school age students by a special act school district or an approved private school operated by a child care institution shall be equal to the last certified prospective or reconciliation rate and shall include compounded growth determined in accordance with the following:

a. If the last certified prospective or reconciliation rate was approved for the school year prior to the current school year, such rate shall increase by the annual growth percentage approved for the current year.

b. If the last certified prospective or reconciliation rate was approved for the school year two years prior to the current school year, such rate shall increase by the annual growth percentage approved for the year prior to the current school year, and the product of such shall then increase by the annual growth percentage approved for the current school year.

c. If the last certified prospective or reconciliation rate was approved for the school year three or more years prior to the current school year, such rate shall increase by the annual growth percentage approved for the year two years prior to the current year; the product of such shall then increase by the annual growth percentage approved for the year prior to the current year, and the product of such shall then increase by the annual growth percentage approved for the current year.

§ 21. Paragraph c of subdivision 4 of section 4405 of the education law, as amended by chapter 82 of the laws of 1995, is amended to read as follows:

c. The director of the budget, in consultation with the commissioner ~~[of education]~~, the commissioner of social services, and any other state agency or other source the director may deem appropriate, shall approve reimbursement methodologies for tuition and for maintenance. Any modification in the approved reimbursement methodologies shall be subject to the approval of the director of the budget. ~~[Notwithstanding any other provision of law, rule or regulation to the contrary, tuition rates established for the nineteen hundred ninety five ninety six school year shall exclude the two percent cost of living adjustment authorized in rates established for the nineteen hundred ninety four--ninety five school year]~~ Tuition, regional, and/or fee for service rates approved for the two thousand twenty-six--two thousand twenty-seven school year

1 and thereafter for special services or programs provided to school-age
2 students by approved private residential or non-residential schools for
3 the education of students with disabilities that are located within the
4 state, by special act school districts, and by July and August programs
5 for students with disabilities entitled to attend public schools without
6 the payment of tuition pursuant to section thirty-two hundred two of
7 this chapter, and for special services or programs provided to preschool
8 students by programs serving preschool students with disabilities
9 approved pursuant to section forty-four hundred ten of this article
10 including, but not limited to, special class and special class in an
11 integrated setting programs, multi-disciplinary evaluation programs,
12 special education itinerant services, and preschool transportation
13 services for which tuition and/or regional rates are determined, shall
14 grow by a percentage equal to at least the consumer price index as
15 defined in paragraph hh of subdivision one of section thirty-six hundred
16 two of this chapter.

17 § 22. Section 4204-b of the education law is amended by adding a new
18 subdivision 5 to read as follows:

19 5. For the two thousand twenty-six--two thousand twenty-seven school
20 year and thereafter, an institution subject to this article shall be
21 authorized to retain funds in excess of their allowable and reimbursable
22 costs incurred for services and programs to students appointed. The
23 amount of funds that may be annually retained shall not exceed one
24 percent of the institution's total allowable and reimbursable costs for
25 services and programs provided to students for the school year from
26 which the funds are to be retained, provided that the total accumulated
27 balance that may be retained shall not exceed four percent of such total
28 costs for such school year and provided, further, that such funds shall
29 not be recoverable on reconciliation, such funds shall be carried
30 forward as total reimbursable costs for purposes of calculating subse-
31 quent year prospective and reconciliation tuition rates and such funds
32 shall be separate from and in addition to any other authorization to
33 retain surplus funds on reconciliation. Funds shall be expended only
34 pursuant to an authorization of the governing board of the institution
35 for a purpose expressly authorized as part of allowable costs for the
36 year in which the funds are to be expended, provided that funds may be
37 expended to pay prior year outstanding debts. Any institution that
38 retains funds pursuant to this subdivision shall be required to annually
39 report a statement of the total balance of such retained funds, the
40 amount, if any, retained in the prior school year, the amount, if any,
41 dispersed in the prior school year, and the financial reports that are
42 required to be annually submitted to the department.

43 § 23. The opening paragraph of subdivision 41 of section 3602 of the
44 education law, as amended by section 10-d of part A of chapter 56 of the
45 laws of 2025, is amended to read as follows:

46 In addition to any other apportionment under this section, for the two
47 thousand seven--two thousand eight school year [~~and thereafter~~] through
48 the two thousand twenty-five--two thousand twenty-six school year, a
49 school district other than a city school district in a city having a
50 population of one million or more, and for the two thousand twenty six-
51 two thousand twenty-seven school year and thereafter, a school district
52 eligible for aid under this section shall be eligible for an apportion-
53 ment in an amount equal to the greater of the sum of paragraphs (a),
54 (b), and (c), or paragraph (e) of this subdivision.

55 § 24. Sections 3, 4, 5, 6, 7, 8 and 9 of chapter 18 of the laws of
56 2020 authorizing the commissioner of education to appoint a monitor to

oversee the Wyandanch union free school district and establishing the powers and duties of such monitor, are amended to read as follows:

§ 3. Appointment of ~~[a] monitor team. [The commissioner shall appoint one monitor to provide]~~ In accordance with the powers and duties of the board of regents and the commissioner pursuant to subdivision 2 of section 305 of the education law, section 308 of the education law, and section 215 of the education law, up to two monitors shall be appointed by and serve at the pleasure of the commissioner to carry out the provisions of this act including but not limited to providing oversight, guidance and technical assistance related to the educational, governance and fiscal policies, practices, programs and decisions of the school district, the board of education and the superintendent.

1. The monitor or monitors, to the extent practicable, shall have experience in ~~[school district finances and]~~ one or more of the following areas:

(a) school district finances;

~~(b)~~ (c) elementary and secondary education;

~~(b)~~ (c) the operation of school districts in New York;

~~(c)~~ (d) educating students with disabilities; and

~~(d)~~ (e) educating English language learners.

2. The ~~[monitor]~~ monitors shall be ~~[a]~~ non-voting ex-officio ~~[member]~~ members of the board of education. The ~~[monitor]~~ monitors shall be ~~[an individual]~~ individuals who ~~[is]~~ are not ~~[a resident, employee]~~ residents, employees of the school district or ~~[relative]~~ relatives of a board member of the school district at the time of ~~[his or her]~~ their appointment.

3. The reasonable and necessary expenses incurred by the monitor or monitors while performing ~~[his or her]~~ their official duties shall be paid by the school district. Notwithstanding any other provision of law, the monitor or monitors shall be entitled to defense and indemnification by the school district to the same extent as a school district employee.

§ 4. Meetings. 1. The monitor or monitors shall be entitled to attend all meetings of the board, including executive sessions; provided however, such monitor or monitors shall not be considered for purposes of establishing a quorum of the board. The school district shall fully cooperate with ~~[the]~~ any monitor or monitors including, but not limited to, providing such monitor or monitors with access to any necessary documents and records of the district including access to electronic information systems, databases and planning documents, consistent with all applicable state and federal statutes including, but not limited to, Family Education Rights and Privacy Act (FERPA) (20 U.S.C. §1232g) and section 2-d of the education law.

2. The board, in consultation with the monitor or monitors, shall adopt a conflict of interest policy that complies with all existing applicable laws, rules and regulations that ensures its board members and administration act in the school district's best interest and comply with applicable legal requirements. The conflict of interest policy shall include, but not be limited to:

(a) a definition of the circumstances that constitute a conflict of interest;

(b) procedures for disclosing a conflict of interest to the board;

(c) a requirement that the person with the conflict of interest not be present at or participate in board deliberations or votes on the matter giving rise to such conflict, provided that nothing in this subdivision shall prohibit the board from requesting that the person with the conflict of interest present information as background or answer ques-

tions at a board meeting prior to the commencement of deliberations or voting relating thereto;

(d) a prohibition against any attempt by the person with the conflict to influence improperly the deliberation or voting on the matter giving rise to such conflict; and

(e) a requirement that the existence and resolution of the conflict be documented in the board's records, including in the minutes of any meeting at which the conflict was discussed or voted upon.

§ 5. Public hearings. 1. The monitor or monitors shall schedule [~~two~~] three public hearings to be held within sixty days of [~~his or her~~] their appointment, which shall allow public comment from the district's residents, students, employees, parents, board members and administration.

(a) The first hearing shall take public comment on existing statutory and regulatory authority of the commissioner, the department and the board of regents regarding school district governance and intervention under applicable state law and regulations, including but not limited to, section 306 of the education law.

(b) The second hearing shall take public comment on the fiscal performance of the district.

(c) The third hearing shall take public comment on the academic performance of the district.

2. The board of education and the monitor or monitors shall consider these public comments when developing the [~~financial~~] long-term strategic academic and fiscal improvement plan under this act.

§ 6. [~~Financial~~] Long-term strategic academic and fiscal improvement plan. 1. No later than [~~November~~] July first, two thousand [~~twenty~~] twenty-six, the board of education [~~and~~] working in collaboration with the monitor or monitors shall develop a [~~proposed financial~~] long-term strategic academic and fiscal improvement plan for the two thousand [~~twenty-two thousand twenty-one~~] twenty-six--twenty-seven and the next four succeeding school [~~year and the four subsequent school~~] years. [~~The financial~~] Such plan, including such annual revisions thereto, shall [~~ensure that annual aggregate operating expenses shall not exceed annual aggregate operating revenues for such school year and that the major operating funds of the district be balanced in accordance with generally accepted accounting principles. The financial plan shall include statements of all estimated revenues, expenditures, and cash flow projections of the district~~] be submitted to the commissioner for approval and shall include a set of goals with appropriate benchmarks and measurable objectives and identify strategies to address areas where improvements are needed in the district, including but not limited to its financial stability and governance, academic opportunities and outcomes, education of students with disabilities, education of English language learners, the educational, social and emotional welfare of public school students and shall ensure compliance with all applicable state and federal laws and regulations.

2. If the board of education and the [~~monitor~~] monitors agree on all the elements of the proposed [~~financial~~] long-term strategic academic and fiscal improvement plan, the board of education shall conduct a public hearing on the plan and consider the input of the community. The proposed [~~financial~~] long-term strategic academic and fiscal improvement plan shall be made public on the district's website at least three business days before such public hearing. Once the proposed [~~financial~~] long-term strategic academic and fiscal improvement plan has been approved by the board of education, such plan shall be submitted by the

1 ~~[monitor]~~ monitors to the commissioner for approval and shall be deemed
2 approved for the purposes of this act.

3 3. If the board of education and the ~~[monitor]~~ monitors do not agree
4 on all the elements of the proposed ~~[financial]~~ long-term strategic
5 academic and fiscal improvement plan, the board of education shall
6 conduct a public hearing on the proposed plan that details the elements
7 of disagreement between the ~~[monitor]~~ monitors and the board, including
8 documented justification for such disagreements and any requested amend-
9 ments from the ~~[monitor]~~ monitors. The proposed ~~[financial]~~ long-term
10 strategic academic and fiscal improvement plan, elements of disagree-
11 ment, and requested amendments shall be made public on the district's
12 website at least three business days before such public hearing. After
13 considering the input of the community, the board may alter the proposed
14 ~~[financial]~~ long-term strategic academic and fiscal improvement plan and
15 the ~~[monitor]~~ monitors may alter ~~[his or her]~~ their requested amend-
16 ments, and the ~~[monitor]~~ monitors shall submit the proposed ~~[financial]~~
17 long-term strategic academic and fiscal improvement plan, ~~[his or her]~~
18 their amendments to the plan, and documentation providing justification
19 for such disagreements and amendments to the commissioner no later than
20 December first, two thousand ~~[twenty]~~ twenty-six. By January fifteenth,
21 two thousand ~~[twenty-one]~~ twenty-seven, the commissioner shall approve
22 the proposed plan with any of the ~~[monitor's]~~ monitors' proposed amend-
23 ments, or make other modifications, ~~[he or she]~~ such commissioner deems
24 appropriate. The board of education shall provide the commissioner with
25 any information ~~[he or she]~~ such commissioner requests to approve such
26 plan within three business days of such request. Upon the approval of
27 the commissioner, the ~~[financial]~~ long-term strategic academic and
28 fiscal improvement plan shall be deemed approved for purposes of this
29 act.

30 § 7. Fiscal and operational oversight. 1. The board of education shall
31 annually submit the school district's proposed budget for the next
32 succeeding school year to the monitor or monitors no later than March
33 first prior to the school district's annual budget vote. The monitor or
34 monitors shall review the proposed budget to ensure that it, to the
35 greatest extent possible, is ~~[balanced within the context of revenue and~~
36 ~~expenditure estimates and mandated programs. The monitor shall also~~
37 ~~review the proposed budget to ensure that it, to the greatest extent~~
38 ~~possible, is consistent with the district financial plan developed and~~
39 ~~approved pursuant to this act]~~ consistent with the long-term strategic
40 academic and fiscal improvement plan developed and adopted pursuant to
41 this act. The monitor or monitors shall also review the proposed budget
42 to ensure that it is balanced within the context of revenue and expendi-
43 ture estimates and mandated programs. The monitor or monitors shall
44 present ~~[his or her]~~ their findings to the board of education and the
45 commissioner no later than forty-five days prior to the date scheduled
46 for the school district's annual budget vote. The commissioner shall
47 require the board of education to make amendments to the proposed budget
48 consistent with any recommendations made by the monitor or monitors if
49 the commissioner determines such amendments are necessary to comply with
50 the ~~[financial]~~ long-term strategic academic and fiscal improvement plan
51 under this act. The school district shall make available on the
52 district's website: the initial proposed budget, the ~~[monitor's]~~ monitor
53 or monitors' findings, and the final proposed budget at least seven days
54 prior to the date of the school district's budget hearing. In the event
55 of a revote, the board of education, in conjunction with the monitor or
56 monitors, shall develop and submit the school district's proposed budget

1 for the next succeeding school year to the commissioner no later than
2 seven days prior to the budget hearing. The board of education shall
3 provide the commissioner with any information [~~he or she~~] such commis-
4 sioner requests in order to make a determination pursuant to this subdi-
5 vision within three business days of such request.

6 2. The district shall provide quarterly reports to the monitor or
7 monitors and annual reports to the commissioner and board of regents on
8 the academic, fiscal and operational status of the school district. In
9 addition, the monitor or monitors shall provide semi-annual reports to
10 the commissioner, board of regents, the governor, the temporary presi-
11 dent of the senate, and the speaker of the assembly on the academic,
12 fiscal and operational status of the school district. Such semi-annual
13 report shall include all the contracts that the district entered into
14 throughout the year.

15 3. The monitor or monitors shall have the authority to disapprove
16 travel outside the state paid for by the district.

17 4. The monitor or monitors shall work with the district's shared deci-
18 sion-making committee as defined in 8 NYCRR Part 100.11 in developing
19 and revising the [~~financial~~] long-term strategic academic and fiscal
20 improvement plan, district goals, implementation of district priorities
21 and budgetary recommendations.

22 5. The monitor or monitors shall assist in resolving any disputes and
23 conflicts, including but not limited to, those between the superinten-
24 dent and the board of education and among the members of the board of
25 education.

26 6. The monitor or monitors may recommend, and the board shall consider
27 by vote of a resolution at the next scheduled meeting of the board, cost
28 saving measures including, but not limited to, shared service agree-
29 ments.

30 § 8. The commissioner may overrule any decision of the monitor or
31 monitors, except for decisions related to collective bargaining agree-
32 ments negotiated in accordance with article 14 of the civil service law,
33 if [~~he or she~~] such commissioner deems that it is not aligned with the
34 [~~financial~~] long-term strategic academic and fiscal improvement plan or
35 the school district's budget.

36 § 9. The monitor or monitors may notify the board and the commissioner
37 in writing when [~~he or she deems~~] they deem the district is violating an
38 element of the [~~financial~~] long-term strategic academic and fiscal
39 improvement plan in this act. Within twenty days, the commissioner shall
40 determine whether the district is in violation of any of the elements of
41 the plan highlighted by the monitor or monitors and shall order the
42 district to comply immediately with the plan and remedy any such
43 violation. The school district shall suspend all actions related to the
44 potential violation of the [~~financial~~] long-term strategic academic and
45 fiscal improvement plan until the commissioner issues a determination.

46 § 25. The education law is amended by adding a new section 3641-c to
47 read as follows:

48 § 3641-c. High impact tutoring grant program. 1. The department shall
49 establish and administer a high impact tutoring pilot program to provide
50 grants to school districts or charter schools to implement high impact
51 tutoring programs prioritizing low-income students, underserved
52 students, or students in rural areas.

53 2. (a) A school district or charter school shall submit an application
54 for a grant to the department in a form determined by the department.
55 The school district or charter school shall demonstrate need for support
56 through the grant program, as determined by the department, which may

1 include serving a high percentage of low-income or underserved students,
2 students in rural areas, or serving students who need academic assist-
3 ance in reaching levels of proficiency and have a low level of attain-
4 ment scores in the past year.

5 (b) At a minimum, an application shall include the school district's
6 or charter school's high impact tutoring program plan that includes the
7 following information:

8 (i) how the school district's or charter school's plan addresses the
9 following elements of a high impact tutoring program and how it modifies
10 or omits such elements and the reasons for such modifications or omis-
11 sions:

12 (1) tutoring is provided in groups of four or fewer students;

13 (2) the same tutor instructs the participating students throughout the
14 school year;

15 (3) tutoring is provided a minimum of three times per week;

16 (4) tutoring is implemented during the school day, not as a before- or
17 after-school program, and is supplemental to core academic instruction
18 and not a replacement for such instruction;

19 (5) high quality trained tutors provide such tutoring, including
20 teachers, paraprofessionals, community providers, and any other individ-
21 uals who have received training;

22 (6) the program uses a high-quality curriculum that is aligned with
23 academic standards and may be provided by the school district or charter
24 school; and

25 (7) tutoring is data-driven, with interim assessments to monitor
26 student progress;

27 (ii) how students will be identified for participation in the program;

28 (iii) the number of students projected to be served and whether those
29 students are low-income or underserved students;

30 (iv) the projected cost of implementing the program;

31 (v) how student academic progress and other program outcomes will be
32 measured;

33 (vi) whether the school district or charter school will create its own
34 program and whether it will partner with existing tutoring providers for
35 implementation or for tutor capacity and training;

36 (vii) which academic subjects will be the focus of the program;

37 (viii) how the school district or charter school will be supported;

38 (ix) how tutoring will be delivered and how the delivery will accommo-
39 date remote learning;

40 (x) whether tutors will follow a specific curriculum;

41 (xi) how tutoring will be incorporated into the school day;

42 (xii) the needs of a school district or charter school for financial
43 or technical support to implement a high impact tutoring program; and

44 (xiii) any other criteria determined by the department.

45 (c) School districts or charter schools implementing high impact
46 tutoring programs shall consider seat time and scheduling so that
47 students have consistent access to non-core academic instruction.

48 (d) The department shall review the applications received pursuant to
49 this subdivision and shall award grants after considering the alignment
50 of the school district's or charter school's plan with the elements of a
51 high impact tutoring program as described in this subdivision.

52 4. Within the amounts appropriated therefor, the department shall
53 determine the amount and durations of grant awards. The goal of such
54 grant awards shall be to serve as many students as possible through high
55 impact tutoring programs, including low-income and underserved students
56 and students in rural areas, while ensuring that grant money is awarded

1 to high impact tutoring programs that are likely to achieve positive
2 student outcomes.

3 5. (a) The department shall determine allowable uses for grant money,
4 which uses may include, but need not be limited to, hiring or contract-
5 ing for tutors or providing stipends or other incentives to paraprofes-
6 sionals, retired teachers, and community organizations to ensure tutor-
7 ing capacity; developing curriculum and related supplies; covering costs
8 associated with renting or purchasing physical space for tutoring; and
9 covering administrative expenses. A school district or charter school
10 may make a request to the department to use grant money for purposes
11 other than those specified by the department if the proposed use of the
12 grant money increases the effectiveness of the high impact tutoring
13 program.

14 (b) School districts or charter schools may offer tutors and other
15 professionals offering tutoring services information about potential
16 pathways into the teaching profession for the school district or the
17 charter school.

18 (c) Tutors and other professionals offering tutoring services shall
19 comply with all state and federal laws relating to health, safety, and
20 antidiscrimination, including, but not limited to Titles VI and VII of
21 the Civil Rights Act of 1964 Pub.L. 88-352, as amended; the Americans
22 with Disabilities Act of 1990, 42 U.S.C. Sec. 1201 et seq., as amended;
23 section 504 of the Rehabilitation Act of 1973, 29 U.S.C. Sec. 794, as
24 amended, and Title IX of the Education Amendment of 1972, 20 U.S.C.
25 Secs. 1681 to 1688, as amended.

26 6. (a) On or before the reporting deadlines established by the depart-
27 ment, in each year in which a school district or charter school receives
28 a grant pursuant to this section, the school district or charter school
29 shall submit a report to the department that includes the information
30 required by the department. At a minimum, the report shall include the
31 following information:

32 (i) the number of students who participated in the high impact tutor-
33 ing program including demographic information, provided that such infor-
34 mation does not risk identifying individual students;

35 (ii) any adjustments made to the school district's or charter school's
36 program plan and the reason adjustments were made;

37 (iii) how the school district or charter school maintained consistent
38 access for participating students to non-core academic instruction;

39 (iv) how program grants were used by the school district or charter
40 school and a summary of other resources used, if any, to provide high
41 impact tutoring beyond the resources provided through the program;

42 (v) the academic achievement results or other criteria used to place
43 students in the high impact tutoring program;

44 (vi) the impact or student outcomes associated with the school
45 district's or charter school's high impact tutoring program; and

46 (vii) whether the school district's or charter school's high impact
47 tutoring program will continue in the following fiscal year and if not,
48 the reason the tutoring program will not continue.

49 (b) On or before July first of each year that a high impact tutoring
50 program is implemented pursuant to this section, the department shall
51 submit a report to the legislature including, at a minimum, the number
52 of grants awarded, the participating school districts or charter
53 schools, the duration of the program, and a summary of the information
54 provided pursuant to paragraph (a) of this subdivision concerning the
55 high impact tutoring programs implemented by the school districts or
56 charter schools and of available student outcomes.

§ 26. Subdivision 10 of section 3612 of the education law, as added by chapter 62 of the laws of 2000 and as renumbered by section 36 of part B of chapter 57 of the laws of 2007, is amended to read as follows:

10. Underrepresented teachers of tomorrow tuition reimbursement program. Of the amount appropriated for purposes of this section for grants to school districts for the two thousand twenty-six--two thousand twenty-seven school year and thereafter, five million dollars shall be made available for the underrepresented teachers of tomorrow tuition reimbursement program developed by the commissioner to attract qualified teachers who participated in a school district or post-secondary partnership "grow your own" initiative, my brother's keeper, teacher opportunity corps program, higher education opportunity program, education opportunity program, or other similar program, and have received or will receive a permanent or professional state teaching certificate appropriate to the teaching position in a low performing school.

11. Reporting. By November first following the completion of each school year, the commissioner shall report to the governor and the legislature regarding the teachers of tomorrow teacher recruitment and retention program, the science, mathematics and bilingual education tuition reimbursement program, and the underrepresented teachers of tomorrow tuition reimbursement program. Such report shall list the amount of each school district's total grant pursuant to this section, the uses of the grant by each eligible category of expense, the number of awards granted by type pursuant to this section and, if applicable, the number of persons receiving more than one award of a single type or more than one type of award and the number of such awards for these individuals, as well as an analysis of the effectiveness of the program in recruiting and retaining teachers in the public schools of the state designated as teacher shortage areas.

§ 27. Subdivision a of section 5 of chapter 121 of the laws of 1996 authorizing the Roosevelt union free school district to finance deficits by the issuance of serial bonds, as amended by section 24-a of part A of chapter 56 of the laws of 2025, is amended to read as follows:

a. Notwithstanding any other provisions of law, upon application to the commissioner of education submitted not sooner than April first and not later than June thirtieth of the applicable school year, the Roosevelt union free school district shall be eligible to receive an apportionment pursuant to this chapter for salary expenses, including related benefits, incurred between April first and June thirtieth of such school year. Such apportionment shall not exceed: for the 1996-97 school year ~~[through the 2025-26 school year]~~ and thereafter, four million dollars (\$4,000,000) ~~;~~ ~~for the 2026-27 school year, three million dollars (\$3,000,000); for the 2027-28 school year, two million dollars (\$2,000,000); for the 2028-29 school year, one million dollars (\$1,000,000); and for the 2029-30 school year, zero dollars]~~. Such annual application shall be made after the board of education has adopted a resolution to do so with the approval of the commissioner of education.

§ 28. Subdivision 6-a of section 3641 of the education law, as added by section 16 of part A of chapter 57 of the laws of 2013, is amended to read as follows:

6-a. Community school ~~[grants]~~ act. a. ~~[Within the amount appropriated for such purpose, subject to a plan developed by the state council on children and families in coordination with the commissioner and approved by the director of the budget, the commissioner shall award competitive grants pursuant to this subdivision to eligible school districts or in a~~

~~city with a population of one million or more an eligible entity to implement, beginning in the two thousand thirteen two thousand fourteen school year, a plan that targets school buildings as community hubs to deliver co-located or school-linked academic, health, mental health, nutrition, counseling, legal and/or other services to students and their families in a manner that will lead to improved educational and other outcomes. In a city with a population of one million or more, eligible entities shall mean the city school district of the city of New York, or not-for-profit organizations, which shall include not-for-profit community based organizations. An eligible entity that is a not-for-profit may apply for a community school grant provided that it collaborates with the city school district of the city of New York and receives the approval of the chancellor of the city school district of the city of New York.~~

~~(1) Such plan shall include, but not be limited to:~~

~~(i) The process by which a request for proposals will be developed;~~

~~(ii) The scoring rubric by which such proposals will be evaluated, provided that such grants shall be awarded based on factors including, but not limited to: measures of school district need; measures of the need of students to be served by each of the school districts; the school district's proposal to target the highest need schools and students; the sustainability of the proposed community schools program; and proposal quality;~~

~~(iii) The form and manner by which applications will be submitted;~~

~~(iv) The manner by which calculation of the amount of the award will be determined;~~

~~(v) The timeline for the issuance and review of applications; and~~

~~(vi) Program implementation phases that will trigger payment of set percentages of the total award.~~

~~(2) In assessing proposal quality, the commissioner shall take into account factors including, but not limited to:~~

~~(i) The extent to which the school district's proposal would provide such community services through partnerships with local governments and non-profit organizations;~~

~~(ii) The extent to which the proposal would provide for delivery of such services directly in school buildings;~~

~~(iii) The extent to which the proposal articulates how such services would facilitate measurable improvement in student and family outcomes;~~

~~(iv) The extent to which the proposal articulates and identifies how existing funding streams and programs would be used to provide such community services; and~~

~~(v) the extent to which the proposal ensures the safety of all students, staff and community members in school buildings used as community hubs]~~

A community school shall be both a place and a set of partnerships between the traditional public school and other community resources and shall take a comprehensive approach to improve academic and developmental outcomes. Its integrated focus on academics, health, mental wellness, social services, youth and community development and family and community engagement shall lead to improved student learning, stronger families and healthier communities. Community schools have the framework in place to eliminate the barriers for all students to have access to a high-quality learning experience.

(1) Such schools shall include a community school director to implement the community school framework by:

(i) reviewing student data and conducting an annual community wide assessment of needs and assets;

1 (ii) coordinating and leveraging integrated health, mental wellness
2 and social supports;

3 (iii) identifying and securing family supports that include empowering
4 parents to participate in decision making and to maintain active family
5 and community engagement that values their diverse experiences and back-
6 grounds and partners with parents or caregivers to develop and promote a
7 vision for student success including but not limited to courses, activ-
8 ities and services for parents or caregivers and community members;

9 (iv) implementing expanding and enriching learning time, programs and
10 opportunities, including but not limited to before, during and after-
11 school, weekend, summer and year-round programs, that provide additional
12 academic support, enrichment activities and other programs that may be
13 offered in partnership with community-based organizations to enhance
14 academic learning, social skills, emotional and life skills and are
15 aligned with the school's curriculum;

16 (v) managing a community school-based committee that includes but is
17 not limited to the school principal, certified classroom teachers,
18 school related professionals, other school employees, families, communi-
19 ty organizations, nonprofit organizations, collective bargaining organ-
20 izations, that guides collaborative planning, implementation and over-
21 sight and where leadership initiatives are shared; and

22 (vi) implementing high-quality teaching and learning that provides
23 ongoing professional development to teachers and school-related profes-
24 sionals.

25 (2) A set of strategies shall be implemented in a community school
26 that include programs and services that focus on building and maintain-
27 ing relationships to improve academic and developmental outcomes for
28 students. Such frameworks shall include:

29 (i) a union led framework which is a community school initiative
30 bringing together the unions, school district, city and community that
31 coordinate and maximize public, non-profit, and private resources and
32 government agencies to deliver critical programs and services to
33 students and their families using the school building as the community
34 hub with the goal of creating improved student learning, stronger fami-
35 lies, and healthier communities;

36 (ii) a university-assisted framework where community schools are plac-
37 es and partnerships linking the school system, key community resources
38 and higher education with an integrated focus on academics, support
39 systems and civic engagement;

40 (iii) a district-led framework where the district serves as the lead
41 partner in the community school and brings partners to the table to
42 figure out how to improve student learning and help foster stronger
43 families and healthy communities;

44 (iv) a county-wide framework that is a collaborative effort of family,
45 school, community, and government as the primary delivery device for
46 services and activities that center around early childhood development,
47 family and community engagement and family support and student develop-
48 ment programs;

49 (v) a lead partner framework which uses a community-based organization
50 (CBO) as a partner that works collaboratively with the principal and the
51 school leadership team to carry out the work at the school that focuses
52 on the whole child, while also engaging family members, to ensure that
53 students succeed in the classroom; or

54 (vi) a multi-tiered systems of support (MTSS) framework to support
55 students' academic development, social and emotional wellness, and the
56 development of culturally responsive, trauma-informed schools.

b. ~~[A response to a request for proposals issued pursuant to this subdivision may be submitted by a single school district or jointly by a consortium of two or more school districts, or in a city with a population of one million or more, an eligible entity]~~ Each qualifying school district shall receive funding from this program equal to the result of the quotient of each district's foundation aid community school set aside amount established pursuant to section thirty-six hundred two of this article divided by the statewide value of the foundation aid community school set aside amount established pursuant to section thirty-six hundred two of this article multiplied by the amount of the appropriation for the community school categorical grant established herein. Districts which do not have a set aside of foundation aid for community schools pursuant to section thirty-six hundred two of this article shall not be eligible for funds pursuant to this subdivision.

c. The ~~[amount of the grant award shall be determined by the commissioner, consistent with the plan developed pursuant to paragraph a of this subdivision, except that no single district may be awarded more than forty percent of the total amount of grant awards made pursuant to this subdivision; and provided further that the maximum award to any individual community school site shall be five hundred thousand dollars; and provided further that the amount awarded will be paid out in set percentages over time upon successful implementation of each phase of a school district's approved proposal set forth pursuant to paragraph a of this subdivision; and provided further that none of the grants awarded pursuant to this subdivision may be used to supplant existing funding]~~ commissioner shall promulgate regulations that set forth the requirements for use of such funds by districts, which shall include a requirement that districts require that funds be used to transform pre-existing community school programs, struggling or persistently struggling schools, or schools with significant levels of poverty, homelessness, free and reduced price meals, or other factors as determined by the commissioner. Provided, further, that such regulations shall require school districts to demonstrate substantial teacher, parent and community involvement in the planning, implementation, and operation of a community school. The commissioner may determine that a pre-existing community schools program satisfies the requirements of the commissioner's regulations provided that such commissioner may require any modification thereto.

§ 29. Paragraph a-1 of subdivision 11 of section 3602 of the education law, as amended by section 20-a of part A of chapter 56 of the laws of 2025, is amended to read as follows:

a-1. Notwithstanding the provisions of paragraph a of this subdivision, for aid payable in the school years two thousand--two thousand one through two thousand nine--two thousand ten, and two thousand eleven--two thousand twelve ~~[through two thousand twenty-five--two thousand twenty-six]~~ and thereafter, the commissioner may set aside an amount not to exceed two million five hundred thousand dollars from the funds appropriated for purposes of this subdivision for the purpose of serving persons twenty-one years of age or older who have not been enrolled in any school for the preceding school year, including persons who have received a high school diploma or high school equivalency diploma but fail to demonstrate basic educational competencies as defined in regulation by the commissioner, when measured by accepted standardized tests, and who shall be eligible to attend employment preparation education programs operated pursuant to this subdivision.

§ 30. The education law is amended by adding a new section 115 to read as follows:

§ 115. Artificial intelligence literacy digital equity competitive grant program. 1. Definitions. As used in this section, the following terms shall have the following meanings:

(a) "Artificial intelligence system" or "AI system" means a machine-based system that, for explicit or implicit objectives, infers, from the input it receives, how to generate outputs such as predictions, content, recommendations, or decisions that can influence physical or virtual environments. AI systems shall vary in their levels of autonomy and adaptiveness after deployment.

(b) "Artificial intelligence literacy" means the skills associated with the ability to comprehend the basic principles, concepts, and applications of artificial intelligence, as well as the implications, limitations and ethical considerations associated with the use of artificial intelligence.

(c) "Community organization" means not-for-profit community organizations, other than a school, community college or institution of higher education, which offer free educational programs to the general public.

(d) "Artificial intelligence literacy grant program" or "program" means the artificial intelligence literacy digital equity competitive grant program established under subdivision two of this section.

(e) "Academic institution" means any public elementary or secondary school, charter school, community college, or institution of higher education authorized to operate in the state of New York, which provides formal instructional programs that culminate in a diploma, certificate, or degree.

(f) "Community college" means any institution of higher education within the state university of New York or city university of New York systems that is authorized to confer associate degrees and is defined as a community college pursuant to article one hundred twenty-six of this chapter.

(g) "Institution of higher education" shall mean any postsecondary educational institution within the state of New York that is authorized to confer bachelor's, master's, doctoral, or professional degrees and is not defined as a community college under this section.

2. Artificial intelligence literacy digital equity competitive grant program. (a) The commissioner shall establish an artificial intelligence literacy digital equity competitive grant program which shall provide grants to academic institutions and community organizations to support artificial intelligence literacy efforts.

(b) The program shall be structured as a competitive grant process. In awarding grants, the commissioner shall prioritize applicants that demonstrate both:

(i) a high level of need, as determined by factors including, but not limited to, lack of access to computer science education, a high percentage of students or community members from low-income households, limited technological infrastructure, or geographic barriers to digital inclusion; and

(ii) a strong and clearly articulated proposal, including specific goals, strategies, and implementation plans for expanding access to artificial intelligence literacy and addressing equity in digital education.

(c) All proposals submitted under this section shall include:

1 (i) a demonstration of need, including quantitative and qualitative
2 data describing the applicant's existing access to artificial intelli-
3 gence literacy resources and technological infrastructure;

4 (ii) clearly defined and measurable objectives, including the antic-
5 ipated number of individuals reached if the grant is fully implemented,
6 and relevant success metrics; and

7 (iii) a detailed plan outlining how the funds would be used if the
8 applicant is awarded the full amount requested.

9 (d) The commissioner shall also establish criteria for the development
10 and submission of grant applications and proposals and for the selection
11 of recipients of grants from the program. Such criteria shall include
12 provisions to ensure geographic diversity, demographic equity, and
13 accountability in the use of grant funds.

14 (e) To ensure equitable distribution of funding, the total amount
15 appropriated for the program shall be allocated as follows:

16 (i) thirty percent to public elementary and secondary schools and
17 charter schools;

18 (ii) twenty percent to community colleges;

19 (iii) fifteen percent to public institutions of higher education;

20 (iv) five percent to private institutions of higher education; and

21 (v) thirty percent to community organizations.

22 (f) Such program shall provide grants to public elementary and second-
23 ary schools and charter schools to be used for:

24 (i) providing teachers with training and certification to support
25 artificial intelligence literacy efforts in schools;

26 (ii) facilitating attendance of teachers at professional development
27 courses, workshops, and conferences related to artificial intelligence
28 education, including professional development related to artificial
29 intelligence course design and fee-based professional development;

30 (iii) for schools without resources for computer science education,
31 developing and designing best practices for computer science materials
32 needed for artificial intelligence education;

33 (iv) supporting partnerships with the private sector to facilitate
34 artificial intelligence education;

35 (v) equipping schools with labs to provide students hands-on artifi-
36 cial intelligence learning experiences;

37 (vi) utilizing virtual learning platforms that facilitate remote and
38 individualized artificial intelligence education opportunities;

39 (vii) developing programs that prepare students for further studies or
40 future careers in artificial intelligence or related fields; and

41 (viii) providing foundational artificial intelligence literacy
42 instruction tailored to grade level.

43 (g) Grants provided to community colleges shall be used for one or
44 more of the following:

45 (i) developing and implementing an interdisciplinary literacy program
46 with respect to artificial intelligence for non-traditional learners,
47 including through partnerships with non-profit educational organiza-
48 tions;

49 (ii) developing labs to provide students hands-on artificial intelli-
50 gence learning experiences; or

51 (iii) developing virtual learning platforms that facilitate remote and
52 individualized artificial intelligence education opportunities.

53 (h) Grants provided to institutions of higher education shall be used
54 for:

55 (i) developing labs to provide students hands-on artificial intelli-
56 gence learning experiences;

1 (ii) developing virtual learning platforms that facilitate remote and
2 individualized artificial intelligence education opportunities;
3 (iii) developing programming and pedagogical tools with respect to
4 artificial intelligence education and instruction for the benefit of
5 elementary and secondary school teachers and community educators; or
6 (iv) developing programs that prepare participants to use artificial
7 intelligence tools in the workplace, including sector-specific applica-
8 tions.

9 (i) Grants provided to community organizations shall be used for one
10 or more of the following:

11 (i) providing training and certification with respect to artificial
12 intelligence education and instruction to employees of the community
13 organizations;

14 (ii) developing and implementing artificial intelligence learning
15 experiences and educational programming to the community served by the
16 community organizations; or

17 (iii) offering programming to support adult learners and jobseekers in
18 understanding and applying artificial intelligence in the workforce,
19 particularly in high-growth or digitally transforming industries.

20 (j) Any entity which is awarded a grant under the program shall be
21 required to submit a report to the commissioner on or before July first
22 of each year for four years following the grant being awarded which
23 shall include, as applicable, but not be limited to:

24 (i) the number of administrators and teachers trained or scheduled for
25 training;

26 (ii) the number of schools that have implemented such program within a
27 school district;

28 (iii) the number of students reached, and at which grade level;

29 (iv) disaggregated data based on race, ethnicity, county, and school;

30 (v) prospective timeline to reach all schools;

31 (vi) the amount of the grant;

32 (vii) the use of grant amounts; and

33 (viii) the progress of the entity towards fulfilling the objectives
34 for which the grant was awarded.

35 3. Metrics and evaluation. The department shall develop and implement
36 a standardized framework for evaluating the effectiveness of the artifi-
37 cial intelligence literacy grant program in academic institutions. Such
38 framework shall include, but not be limited to:

39 (a) measurement of student learning outcomes related to artificial
40 intelligence concepts, competencies, and digital fluency;

41 (b) participation rates in artificial intelligence literacy programs
42 disaggregated by grade level, demographic group, and institution type;

43 (c) evaluation of how and to what extent artificial intelligence
44 literacy content has been integrated into existing school curricula or
45 community programming; and

46 (d) tracking of participants' engagement with further education or
47 career pathways related to artificial intelligence and technology
48 fields.

49 4. Grant administration. (a) The commissioner shall award grants under
50 the artificial intelligence literacy grant program and shall administer
51 the program in consultation with relevant offices within the department.

52 (b) The department shall establish procedures for the application,
53 review, approval, distribution, and monitoring of grant awards, includ-
54 ing clear guidance on timelines, eligibility, documentation, and
55 disbursement.

1 (c) The commissioner shall ensure that all grant funds are distributed
2 in a timely and transparent manner, with priority given to advancing
3 educational equity and digital access in underserved communities.

4 (d) The department shall provide technical assistance to applicants
5 and grantees to support strong proposal development, compliance with
6 program requirements, and effective implementation.

7 (e) The department shall have authority to conduct audits,
8 inspections, or program evaluations of grantees and may recapture or
9 reallocate funds not used in accordance with the terms of the grant.

10 (f) All grantees shall comply with state reporting requirements and
11 participate in department-led evaluations as a condition of receiving
12 funding.

13 5. Reports. On or before the first of January second succeeding the
14 effective date of this section and each January first thereafter, the
15 commissioner shall submit a report to the governor and the legislature
16 which shall include, but not be limited to:

17 (a) summarizing and analyzing the reports submitted to the commission-
18 er for that year and information on such reports required under para-
19 graph (j) of subdivision two of this section;

20 (b) summarizing the metrics established under subdivision three of
21 this section; and

22 (c) recommending improvements to the program.

23 6. Rules and regulations. The commissioner shall have the authority to
24 establish rules and regulations to implement the provisions of this
25 section.

26 § 31. Severability. If any clause, sentence, paragraph, subdivision,
27 section or part of this act shall be adjudged by any court of competent
28 jurisdiction to be invalid, such judgment shall not affect, impair, or
29 invalidate the remainder thereof, but shall be confined in its operation
30 to the clause, sentence, paragraph, subdivision, section or part thereof
31 directly involved in the controversy in which such judgment shall have
32 been rendered. It is hereby declared to be the intent of the legislature
33 that this act would have been enacted even if such invalid provisions
34 had not been included herein.

35 § 32. This act shall take effect immediately; provided, however, that
36 sections twenty-seven and twenty-nine of this act shall take effect July
37 1, 2026. Provided, further, that the amendments made to sections 3, 4,
38 5, 6, 7, 8 and 9 of chapter 18 of the laws of 2020 authorizing the
39 commissioner of education to appoint a monitor to oversee the Wyandanch
40 union free school district and establishing the powers and duties of
41 such monitor made by section twenty-four of this act shall not affect
42 the repeal of such sections and shall be deemed repealed therewith.

43 PART B

44 Section 1. The education law is amended by adding a new section 819 to
45 read as follows:

46 § 819. Evidence-based mathematics instruction. 1. (a) On or before
47 January first, two thousand twenty-seven, the commissioner shall provide
48 school districts with instructional best practices for numeracy, as
49 defined by the commissioner, and the teaching of mathematics to students
50 in kindergarten through grade five. Instructional best practices for
51 numeracy and the teaching of mathematics shall be evidence-based. Such
52 instructional best practices shall be periodically updated by the
53 commissioner.

(b) Every school district shall annually review their curriculum and instructional practices in the subject of mathematics for students in kindergarten through grade five to ensure that they align with the mathematics instructional best practices provided by the commissioner, and that all early mathematics instructional practices and interventions are part of an aligned plan designed to improve student mathematics outcomes in kindergarten through grade five.

2. On or before September first, two thousand twenty-seven, each school district shall verify to the commissioner that its curriculum and instructional practices in the subject of mathematics in kindergarten through grade five align with all of the elements of the instructional best practices provided by the commissioner pursuant to this section.

§ 2. This act shall take effect immediately.

PART C

Section 1. Paragraph (c) of subdivision 1 of section 6311 of the education law, as added by section 1 of part F of chapter 56 of the laws of 2025, is amended to read as follows:

(c) is matriculated at [~~a community college of the state university of New York or the city university of New York, as defined in subdivision two of section sixty three hundred one of this article or subdivision four of section sixty two hundred two of this title, respectively,~~] any state university of New York or city university of New York colleges, universities, or community colleges in an approved program directly leading to an associate's degree in a high-demand field; provided that for the two thousand twenty-five -- two thousand twenty-six academic year, such fields shall include but not be limited to advanced manufacturing, technology, cybersecurity, engineering, artificial intelligence, nursing and allied health professions, green and renewable energy, and pathways to teaching in shortage areas, provided further that such fields may be updated annually thereafter by the department of labor no later than one hundred eighty days prior to the first start date of the fall term of such state university of New York or city university of New York colleges, universities, or community colleges, and provided further that the eligibility of such approved program established in the semester for which the applicant makes initial application shall continue;

§ 2. Paragraph (e) of subdivision 1 of section 6311 of the education law, as added by section 1 of part F of chapter 56 of the laws of 2025, is amended to read as follows:

(e) has not already obtained any postsecondary degree, provided that nothing in this paragraph shall be construed to prohibit the eligibility of a student who is already enrolled in an eligible associate degree program on the effective date of this section and who meets all the other eligibility requirements of this subdivision, and provided further that nothing in this paragraph shall be construed to prohibit the eligibility of a student who, though having previously obtained a postsecondary degree, is enrolled in an approved program leading to an associate's degree in nursing.

§ 3. This act shall take effect immediately.

PART D

Section 1. Subdivisions 3 and 4 of section 6305 of the education law, subdivision 3 as amended by chapter 542 of the laws of 2022 and subdivi-

1 sion 4 as amended by section 2 of part V of chapter 57 of the laws of
2 2013, are amended and a new subdivision 4-a is added to read as follows:

3 3. The chief fiscal officer of each county, as defined in section 2.00
4 of the local finance law, shall, upon application and submission to such
5 chief fiscal officer of satisfactory evidence in-person or electron-
6 ically, issue to any person desiring to enroll in a community college as
7 a non-resident student, a certificate of residence form showing that
8 said person is a resident of said county. No such chief fiscal officer
9 shall require a person desiring to enroll in a community college as a
10 non-resident student to disclose or furnish his or her social security
11 number. If the chief fiscal officer of a county refuses to issue such a
12 certificate on the ground that the person applying therefor is not a
13 resident of such county, or that such person is not subject to rules or
14 regulations promulgated under subdivision four-a of this section, the
15 person applying may appeal, in writing, electronically or by mail, to
16 the chancellor of the state university. The chancellor of the state
17 university, or such officers or employees thereof as shall be designated
18 by the chancellor in a manner authorized by the state university trus-
19 tees, shall make a determination after a hearing, upon ten days' notice
20 to such chief fiscal officer of the county, and such determination shall
21 be final and binding on the county. Such person shall, upon registration
22 for each college year, file with the college such a certificate of resi-
23 dence form issued not earlier than two months prior thereto, and such
24 certificate of residence form shall be valid for a period of one year
25 from the date of issuance. The state university trustees shall be
26 authorized to promulgate regulations to effectuate the provisions of
27 this subdivision.

28 4. If, pursuant to subdivision two of this section, a community
29 college elects to charge to and collect an allocable portion of the
30 operating costs and a further sum on account of capital costs of such
31 college from each county which has issued a certificate form or certif-
32 icates of residence forms pursuant to subdivision three of this section,
33 on the basis of which non-resident students are attending such community
34 college, the president of such community college shall, within forty-
35 five days after the commencement of each college term or program, or as
36 otherwise provided by rules or regulations promulgated pursuant to
37 subdivision four-a of this section, submit to the chief fiscal officer
38 of each county a list of non-resident students attending such college on
39 the basis of such certificates of residence form and a voucher for the
40 amount payable by each county for these students. Such list and voucher
41 shall be determined on the basis of non-resident students enrolled in
42 the program as of the end (or last day) of the third week of the
43 commencement for a program scheduled for one semester, the end of the
44 second for a program scheduled for an academic quarter and the end of
45 the first week for any program scheduled to be completed in thirty days
46 or less. The chancellor of the state university, or such officers or
47 employees thereof as shall be designated by the chancellor in the manner
48 authorized by the state university trustees, shall notify the chief
49 fiscal officers of each county of the approved annual operating and
50 capital charge-back rate for each community college. The amount billed
51 to the chief fiscal officer of each county by the president of such
52 community college as a charge for the allocable portion of the operating
53 costs and a further sum on account of capital costs of such college for
54 non-resident students shall be paid to the chief fiscal officer of such
55 college by the billed county no later than sixty days after the county
56 receives said billing.

4-a. Notwithstanding any provision of law, rule, or regulation to the contrary, the state university trustees are authorized and directed to promulgate rules or regulations setting forth: (a) a schedule of late fees and exceptions thereof for a student submitting a certificate of residence form after the deadline otherwise prescribed by subdivision four of this section for such submission, but within the relevant semester or term; and (b) a reconciliation process for valid forms received after the list of non-resident students was sent to a county pursuant to subdivision four of this section.

§ 2. This act shall take effect immediately.

PART E

Section 1. Subparagraph 4-a-1 of paragraph h of subdivision 2 of section 355 of the education law, as added by section 1 of part B of chapter 56 of the laws of 2023, is amended to read as follows:

(4-a-1) Notwithstanding any law, rule, regulation or practice to the contrary and following the review and approval of the chancellor of the state university or ~~[his or her]~~ such chancellor's designee, the board of trustees may annually impose differential tuition rates on non-resident undergraduate and graduate rates of tuition for state-operated institutions ~~[for a three year period]~~ commencing with the two thousand twenty-three--two thousand twenty-four academic year and ending in the two thousand ~~[twenty-five]~~ twenty-eight--two thousand ~~[twenty-six]~~ twenty-nine academic year, provided that such rates are competitive with the rates of tuition charged by peer institutions and that the board of trustees annually provide the reason and methodology behind any rate increase to the governor, the temporary president of the senate, and the speaker of the assembly prior to the approval of such increases.

§ 2. Subparagraph (vi) of paragraph (a) of subdivision 7 of section 6206 of the education law, as added by section 2 of part B of chapter 56 of the laws of 2023, is amended to read as follows:

(vi) Notwithstanding any law, rule, regulation or practice to the contrary, commencing with the two thousand twenty-three--two thousand twenty-four academic year and ending in the two thousand ~~[twenty-five]~~ twenty-eight--two thousand ~~[twenty-six]~~ twenty-nine academic year, following the review and approval of the chancellor of the city university or ~~[his or her]~~ such chancellor's designee, the city university of New York board of trustees shall be empowered to annually impose differential tuition rates on non-resident undergraduate and graduate rates of tuition for senior colleges, provided that such rates are competitive with the rates of tuition charged by peer institutions and that the board of trustees annually provide the reason and methodology behind any rate increase to the governor, the temporary president of the senate, and the speaker of the assembly prior to the approval of such increases.

§ 3. Subparagraph (ii) of paragraph (a) of subdivision 7 of section 6206 of the education law, as amended by section 3 of part B of chapter 56 of the laws of 2023, is amended to read as follows:

(ii) Notwithstanding any law, rule, regulation or practice to the contrary, commencing with the two thousand twenty-three--two thousand twenty-four academic year and ending in the two thousand ~~[twenty-five]~~ twenty-eight--two thousand ~~[twenty-six]~~ twenty-nine academic year, following the review and approval of the chancellor of the city university or ~~[his or her]~~ such chancellor's designee, the city university of New York board of trustees shall be empowered to annually impose differential tuition rates on non-resident undergraduate and graduate rates of

1 tuition for senior colleges, provided that such rates are competitive
2 with the rates of tuition charged by peer institutions and that the
3 board of trustees annually provide the reason and methodology behind any
4 rate increase to the governor, the temporary president of the senate,
5 and the speaker of the assembly prior to the approval of such increases.

6 § 4. This act shall take effect immediately; provided, however, that
7 the amendments to paragraph (a) of subdivision 7 of section 6206 of the
8 education law made by section two of this act shall be subject to the
9 expiration and reversion of such paragraph pursuant to section 16 of
10 chapter 260 of the laws of 2011, as amended, when upon such date the
11 provisions of section three of this act shall take effect.

12 PART F

13 Section 1. Subdivisions 1, 3 and 5 of section 669-f of the education
14 law, subdivision 1 as amended by chapter 516 of the laws of 2025, and
15 subdivisions 3 and 5 as added by section 1 of subpart A of part EE of
16 chapter 56 of the laws of 2015, are amended to read as follows:

17 1. Eligibility. Students who are matriculated in an approved master's
18 degree in education program at a New York state college, as defined in
19 subdivision two of section six hundred one of this title, leading to a
20 career as a teacher in public elementary ~~[or]~~ secondary or early
21 childhood education shall be eligible for an award under this section,
22 provided the applicant: (a) earned an undergraduate degree from a
23 college located in New York state; (b) was a New York state resident
24 while earning such undergraduate degree; (c) achieved academic excel-
25 lence as an undergraduate student, as defined by the corporation in
26 regulation; (d) enrolls in full-time study in an approved master's
27 degree in education program at a New York state college, as defined in
28 subdivision two of section six hundred one of this title, leading to a
29 career as a teacher in public elementary ~~[or]~~ secondary or early child-
30 hood education; (e) signs a contract with the corporation agreeing to
31 teach in a classroom setting on a full-time basis for five years in a
32 school located within New York state providing public elementary ~~[or]~~
33 secondary or early childhood education recognized by the board of
34 regents or the university of the state of New York, including charter
35 schools authorized pursuant to article fifty-six of this chapter; and
36 (f) complies with the applicable provisions of this article and all
37 requirements promulgated by the corporation for the administration of
38 the program.

39 3. An award shall entitle the recipient to annual payments for not
40 more than two academic years of full-time graduate study leading to
41 certification as an elementary ~~[or]~~ secondary ~~[classroom]~~ or early
42 childhood teacher.

43 5. The corporation shall convert to a student loan the full amount of
44 the award granted pursuant to this section, plus interest, according to
45 a schedule to be determined by the corporation if: (a) two years after
46 the completion of the degree program and receipt of initial certif-
47 ication it is found that a recipient is ~~[not]~~ neither teaching in a
48 public school located within New York state providing elementary or
49 secondary education recognized by the board of regents or the university
50 of the state of New York, including charter schools authorized pursuant
51 to article fifty-six of this chapter, nor employed by an eligible agency
52 as defined by paragraph b of subdivision one of section thirty-six
53 hundred two-e of this chapter; (b) a recipient has ~~[not]~~ neither taught
54 in a public school located within New York state providing elementary or

secondary education recognized by the board of regents or the university of the state of New York, including charter schools authorized pursuant to article fifty-six of this chapter, nor been employed by an eligible agency as defined by paragraph b of subdivision one of section thirty-six hundred two-e of this chapter, for five of the seven years after the completion of the graduate degree program and receipt of initial certification; (c) a recipient fails to complete ~~[his or her]~~ their graduate degree program in education; (d) a recipient fails to receive or maintain ~~[his or her]~~ their teaching certificate or license in New York state for the required period; or (e) a recipient fails to respond to requests by the corporation for the status of ~~[his or her]~~ their academic or professional progress. The terms and conditions of this subdivision shall be deferred for any interruption in graduate study or employment as established by the rules and regulations of the corporation. Any obligation to comply with such provisions as outlined in this section shall be cancelled upon the death of the recipient. Notwithstanding any provisions of this subdivision to the contrary, the corporation is authorized to promulgate rules and regulations to provide for the waiver or suspension of any financial obligation which would involve extreme hardship.

§ 2. This act shall take effect July 1, 2026.

PART G

Section 1. Section 97-v of the state finance law, as added by chapter 851 of the laws of 1983 and subdivision 3 as amended by chapter 83 of the laws of 1995, is amended to read as follows:

§ 97-v. New York state ~~[musical instrument revolving]~~ music grant fund. 1. There is hereby established in the custody of the state comptroller and the commissioner of taxation and finance, a special fund to be known as the "New York state ~~[musical instrument revolving]~~ music grant fund".

2. The fund shall consist of all monies appropriated for its purpose, all monies transferred to such fund pursuant to law and all monies required by the provisions of this section or any other law to be paid into or credited to this fund, including all monies received by the fund or donated to it. The total of monies deposited as a result of appropriations from state funds into this fund shall not exceed the sum of five hundred thousand dollars. Monies in the fund shall be kept separate and shall not be commingled with any other monies otherwise appropriated or received except as hereby provided.

3. Monies of the fund, when allocated, shall be available to the New York state council on the arts for the purpose of providing assistance, excluding administrative costs, for ~~[the loan, lease and purchase of musical instruments and other related property and equipment, as herein provided, by]~~ grants to not-for-profit symphony orchestras ~~[and/or]~~, other not-for-profit musical entities incorporated in the state and organized for the purpose of the presentation of performing arts for the benefit of the public, and schools for the purchase of musical instruments and other related property and equipment, which have been approved pursuant to guidelines established by the council. Such monies shall also be available for administrative costs of the council pursuant to approval by the director of the budget. ~~[Notwithstanding any other inconsistent provisions of this chapter, should the council determine that there is a compelling need for the loan, lease or purchase of property or equipment other than musical instruments by not-for-profit~~

~~symphony orchestras and/or other not for profit musical entities incorporated in the state and organized for the purpose of the presentation of performing arts for the benefit of the public, and upon approval of the director of the budget, the council may assist such organization in acquiring such equipment in accordance with guidelines established by the council. The council shall contract with one or more not for profit entities which shall distribute such monies, however, in no case shall monies of the fund be distributed nor shall a contract to distribute such monies be approved unless the fund shall have sufficient monies to effectuate all such approved distributions and contracts.~~

~~Purchases, leases and loans of musical instruments and other equipment shall not be approved or effected if such purchases, leases or loans are eligible for financing from any other state assistance program.] For purposes of this section, "schools" shall mean public school districts and boards of cooperative educational services.~~

~~4. [The state council on the arts shall establish guidelines necessary to administer the fund. Guidelines shall include, but not be limited to: qualifications and conditions for assistance, which may require public service performances, terms of lease or installment sale payments and finance charges on installment sales at rates of interest which, notwithstanding any other provision of law, shall not be less than three per cent per annum nor more than ten per cent per annum, provisions for insurance of the instrument or other equipment, provisions for necessary security agreement arrangements, and any other terms and conditions the council may require as necessary to properly effectuate the provisions of this section.] On or before the first day of February each year, the state council on the arts shall provide a written report to the temporary president of the senate, speaker of the assembly, chair of the senate finance committee, chair of the assembly ways and means committee, the state comptroller and the public. Such report shall include how the monies of the fund were utilized during the preceding calendar year, and shall include: (a) the amount of money disbursed from the fund and the award process used for such disbursements; (b) recipients of awards from the fund; (c) the amount awarded to each recipient; and (d) the purposes for which such awards were granted.~~

~~5. [The not for profit entity of entities with whom the state council on the arts has contracted pursuant to subdivision three of this section shall enter into contractual arrangements with applicants approved by the council. All contracts must be approved by the state council on the arts and the comptroller prior to the distribution of any monies thereunder. Such contracts shall assure that the not for profit entity or entities retain title to the instrument or equipment until the provisions and intent of this section are satisfied.~~

~~6. Notwithstanding any other provisions of law, should a default in payment of monies for the purchase or lease of an instrument or other equipment occur, the council shall so notify the comptroller and the attorney general who shall take such steps as may be necessary. The not for profit entity or entities, after such notification is made, shall take steps to effect repossession regardless of whether any note, memorandum, instrument or other writing has been recorded or regardless of whether any other person has notice of such possessory rights to the instrument or equipment. Any contract between the not for profit agency or agencies and a not for profit symphony orchestra or other musical entity authorized by this article, shall assure the right and provide guarantees for such repossession. Subsequent to the taking of possession of the instrument or equipment, the comptroller or not for profit agency~~

~~or agencies may offer the same for sale at public auction to the highest bidder pursuant to guidelines established by the comptroller.~~

~~7. The comptroller is authorized to deduct the difference between the purchaser's or lessee's outstanding obligation at the time of the auction provided for in subdivision five of this section, and the amount realized from that auction, after deductions for all necessary and proper costs of the auction are made, from any other grant or other assistance approved by the council on the arts for that purchaser. The difference deducted by the comptroller and the net amount realized from the auction shall be deposited in the New York state musical instrument revolving fund.~~

~~8.] Nothing contained herein shall prevent the council from receiving grants, gifts or bequests for the purposes of the fund as defined in this section and depositing them into the fund according to law.~~

~~9. The state council on the arts shall provide by September first of each year, to the governor, the temporary president of the senate, the speaker of the assembly, the chairman of the senate finance committee and the chairman of the assembly ways and means committee, a report containing guidelines and amendments established by the state council on the arts and a complete financial statement including, but not limited to, monies allocated, collected, transferred or otherwise paid or credited to the fund. A projected schedule of disbursements, receipts and needs of the fund for the next fiscal year shall be included in each report. In addition, any amendments to the guidelines shall be provided to the above listed individuals within thirty days of their establishment by the state council on the arts.~~

~~10.] 6. No monies shall be payable from this fund, except on the audit and warrant of the comptroller on vouchers certified and submitted by the [chairman of the] state council on the arts.~~

§ 2. This act shall take effect immediately.

PART H

Section 1. Paragraph (a) of subdivision 2 of section 390 of the social services law, as amended by section 3 of part H of chapter 56 of the laws of 2019, is amended to read as follows:

(a) Child day care centers caring for seven or more children and group family day care programs, as defined in subdivision one of this section, shall obtain a license from the office of children and family services and shall operate in accordance with the terms of such license and the regulations of such office. Initial licenses and subsequent licenses shall be valid for a period of up to ~~four~~ **six** years so long as the provider remains substantially in compliance with applicable law and regulations during such period.

§ 2. Clause (A) of subparagraph (ii) of paragraph (d) of subdivision 2 of section 390 of the social services law, as amended by section 4 of part H of chapter 56 of the laws of 2019, is amended to read as follows:

(A) Initial registrations and subsequent registrations shall be valid for a period of up to ~~four~~ **six** years so long as the provider remains substantially in compliance with applicable law and regulations during such period.

§ 3. Intentionally omitted.

§ 4. This act shall take effect one year after it shall have become a law.

PART I

1 Section 1. Subdivision 6 of section 374 of the social services law, as
2 amended by chapter 305 of the laws of 2008, is amended to read as
3 follows:

4 6. (a) An authorized agency, as defined in paragraphs (a) and (c) of
5 subdivision ten of section three hundred seventy-one of this title, may
6 charge or accept a fee or other compensation to or from a person or
7 persons with whom it has placed out a child, for the reasonable and
8 necessary expenses of such placement; and no agency, association, corpo-
9 ration, institution, society or organization, except such an authorized
10 agency, and no person may or shall request, accept or receive any
11 compensation or thing of value, directly or indirectly, in connection
12 with the placing out or adoption of a child or for assisting a birth
13 parent, relative or guardian of a child in arranging for the placement
14 of the child for the purpose of adoption; and no person may or shall pay
15 or give to any person or to any agency, association, corporation, insti-
16 tution, society or organization, except such an authorized agency, any
17 compensation or thing of value in connection with the placing out or
18 adoption of a child or for assisting a birth parent, relative or guardi-
19 an of a child in arranging for the placement of the child for the
20 purpose of adoption. The prohibition set forth in this section applies
21 to any adoptive placement activity involving a child born in New York
22 state or brought into this state or involving a New York resident seek-
23 ing to bring a child into New York state for the purpose of adoption.

24 (b) This subdivision shall not be construed to prevent the payment of
25 salaries or other compensation by an authorized agency to the officers
26 or employees thereof; nor shall it be construed to prevent the payment
27 by a person with whom a child has been placed out of reasonable and
28 actual medical fees or hospital charges for services rendered in
29 connection with the birth of such child or of other necessary expenses
30 incurred by the birth mother in connection with or as a result of her
31 pregnancy or the birth of the child, or of reasonable and actual nurs-
32 ing, medical or hospital fees for the care of such child, if such
33 payment is made to the physician, nurse or hospital who or which
34 rendered the services or to the birth mother of the child, or to prevent
35 the receipt of such payment by such physician, nurse, hospital or birth
36 mother. This subdivision shall not be construed to prevent the payment
37 by an adoptive parent, as defined in section one hundred nine of the
38 domestic relations law, of the birth mother's reasonable and actual
39 expenses for housing, maternity clothing, clothing for the child and
40 transportation for a reasonable period not to exceed ~~[sixty]~~ **one hundred**
41 **eighty** days prior to the birth and the later of ~~[thirty]~~ **forty-five** days
42 after the birth or ~~[thirty]~~ **forty-five** days after the parental consent
43 to the adoption, unless a court determines, in writing, that ~~[excep-~~
44 ~~tional]~~ circumstances exist which require the payment of the birth moth-
45 er's expenses beyond the time periods stated in this sentence. This
46 subdivision shall not be construed to prevent the payment by an adoptive
47 parent, as defined in section one hundred nine of the domestic relations
48 law, of reasonable and actual legal fees charged for consultation and
49 legal advice, preparation of papers and representation and other legal
50 services rendered in connection with an adoption proceeding or of neces-
51 sary disbursements incurred for or in an adoption proceeding. No attor-
52 ney or law firm shall serve as the attorney for, or provide any legal
53 services to both the birth parent and adoptive parent in regard to the
54 placing out of a child for adoption or in an adoption proceeding. No
55 attorney or law firm shall serve as the attorney for, or provide any
56 legal services to, both an authorized agency and adoptive parent or both

1 an authorized agency and birth parent where the authorized agency
2 provides adoption services to such birth parent or adoptive parent,
3 where the authorized agency provides foster care for the child, or where
4 the authorized agency is directly or indirectly involved in the placing
5 out of such child for adoption.

6 § 2. This act shall take effect on the thirtieth day after it shall
7 have become a law. Effective immediately, the addition, amendment and/or
8 repeal of any rule or regulation necessary for the implementation of
9 this act on its effective date are authorized to be made and completed
10 on or before such effective date.

11 PART J

12 Section 1. Subdivision 6 of section 3502 of the public health law, as
13 added by chapter 313 of the laws of 2018, subparagraph (i) of paragraph
14 (a) as amended by chapter 486 of the laws of 2022, and subparagraphs
15 (ii) and (iii) of paragraph (a), paragraph (b), subparagraphs (i), (ii),
16 (iii) and (v) of paragraph (c), paragraph (e), and the opening paragraph
17 and subparagraphs (i) and (ii) of paragraph (f) as amended by section 1
18 of part LL of chapter 56 of the laws of 2023, is amended to read as
19 follows:

20 6. (a) (i) Notwithstanding the provisions of this section or any other
21 provision of law, rule or regulation to the contrary, licensed practi-
22 tioners, persons licensed under this article and unlicensed personnel
23 employed at a local correctional facility or secure or specialized
24 secure detention facility may, in a manner permitted by the regulations
25 promulgated pursuant to this subdivision, utilize body imaging scanning
26 equipment that applies ionizing radiation to humans for purposes of
27 screening incarcerated individuals committed to such local correctional
28 facility, or individuals detained in or committed to, visiting or
29 employed in a secure or specialized secure detention facility, in
30 connection with the implementation of such facility's security program.

31 (ii) Notwithstanding the provisions of this section or any other
32 provision of law, rule or regulation to the contrary, licensed practi-
33 tioners, persons licensed under this article and unlicensed personnel
34 employed at a state correctional facility or facility for youth placed
35 with or committed to the office of children and family services may, in
36 a manner permitted by the regulations promulgated pursuant to this
37 subdivision, utilize body imaging scanning equipment that applies ioniz-
38 ing radiation to humans for purposes of screening individuals detained
39 in, committed to, visiting, or employed in such facility, in connection
40 with the implementation of such facility's security program.

41 (iii) The utilization of such body imaging scanning equipment shall be
42 in accordance with regulations promulgated by the department, or for
43 local correctional facilities in cities having a population of two
44 million or more, such utilization shall be in accordance with regu-
45 lations promulgated by the New York city department of health and mental
46 hygiene. The state commission of correction, in consultation with the
47 department of corrections and community supervision and the office of
48 children and family services, shall promulgate regulations establishing
49 when body imaging scanning equipment will be used to screen visitors and
50 [~~incarcerated~~] individuals detained in or committed to state correction-
51 al facilities, secure or specialized secure detention facilities, or
52 facilities for youth placed with or committed to the office of children
53 and family services. Such regulations shall include provisions estab-
54 lishing that alternative methods of screening may be used to accommodate

1 individuals who decline or are unable to be screened by body imaging
2 scanning equipment for medical reasons and that alternative methods of
3 screening may be used to accommodate individuals who decline to be
4 screened for other reasons, unless security considerations warrant
5 otherwise. Such regulations shall also ensure that no person shall be
6 subjected to any form of harassment, intimidation, or disciplinary
7 action for choosing to be searched by an alternative method of screening
8 in lieu of body imaging scanning.

9 The department of corrections and community supervision and the office
10 of children and family services shall promulgate regulations establish-
11 ing when body imaging scanning equipment will be used to screen employ-
12 ees of the department of corrections and community supervision and the
13 office of children and family services, provided, however that such
14 regulations shall be consistent with the policies and procedures of the
15 department of corrections and community supervision and the office of
16 children and family services governing the search of employees. Such
17 regulations shall include provisions establishing that alternative meth-
18 ods of screening may be used to accommodate individuals who decline or
19 are unable to be screened by body imaging scanning equipment for medical
20 or other reasons. Such regulations shall also ensure that no person
21 shall be subjected to any form of harassment, intimidation, or discipli-
22 nary action for choosing to be searched by an alternative method of
23 screening in lieu of body imaging scanning. An employee's request to be
24 searched by an alternative method of screening in lieu of body imaging
25 scanning shall not, in itself, be grounds for disciplinary action
26 against such employee.

27 (b) Prior to establishing, maintaining or operating any body imaging
28 scanning equipment in a state or local correctional facility, [~~any body~~
29 ~~imaging scanning equipment~~] secure or specialized secure detention
30 facility, or facility for youth placed with or committed to the office
31 of children and family services, the chief administrative officer of the
32 facility shall ensure that such facility is in compliance with the regu-
33 lations promulgated pursuant to this subdivision and otherwise applica-
34 ble requirements for the installation, registration, maintenance, opera-
35 tion and inspection of body imaging scanning equipment.

36 (c) The regulations promulgated pursuant to subparagraph (ii) of para-
37 graph (a) of this subdivision shall include, but not be limited to:

38 (i) A requirement that prior to operating body imaging scanning equip-
39 ment, unlicensed personnel employed at state or local correctional
40 facilities, secure or specialized secure detention facilities, or facil-
41 ities for youth placed with or committed to the office of children and
42 family services shall have successfully completed a training course
43 approved by the department, or for local correctional facilities in
44 cities of two million or more, approved by the New York city department
45 of health and mental hygiene, and that such personnel receive additional
46 training on an annual basis;

47 (ii) Limitations on exposure which shall be no more than fifty percent
48 of the annual exposure limits for non-radiation workers as specified by
49 applicable regulations, except that individuals under the age of eigh-
50 teen shall not be subject to more than five percent of such annual expo-
51 sure limits, and pregnant [~~women~~] persons shall not be subject to such
52 scanning at any time. Procedures for identifying pregnant [~~women~~]
53 persons shall be set forth in the regulations;

54 (iii) Registration with the department of each body imaging scanning
55 machine purchased or installed at a state or local correctional
56 facility, secure or specialized secure detention facility, or facility

1 for youth placed with or committed to the office of children and family
2 services;

3 (iv) Inspection and regular reviews of the use of body imaging scan-
4 ning equipment by the department or the New York city department of
5 health and mental hygiene, as applicable; and

6 (v) A requirement that records be kept regarding each use of body
7 imaging scanning equipment by the state or local correctional facility,
8 secure or specialized secure detention facility, or facility for youth
9 placed with or committed to the office of children and family services.

10 (d) For the purpose of this subdivision, "body imaging scanning equip-
11 ment" or "equipment" means equipment that utilizes a low dose of ioniz-
12 ing radiation to produce an anatomical image capable of detecting
13 objects placed on, attached to or secreted within a person's body.

14 (e) For the purposes of this subdivision:

15 (i) "Local correctional facility" shall have the same meaning as found
16 in subdivision sixteen of section two of the correction law.

17 (ii) "State correctional facility" shall mean a "correctional facili-
18 ty" as defined in subdivision four of section two of the correction law.

19 (iii) "Secure detention facility" shall mean a secure detention facil-
20 ity certified by the office of children and family services pursuant to
21 section five hundred three of the executive law.

22 (iv) "Specialized secure detention facility" shall mean a facility for
23 adolescent offenders certified by the office of children and family
24 services in consultation with the state commission of correction pursu-
25 ant to subdivision nine of section five hundred three of the executive
26 law.

27 (v) "Facility for youth placed with or committed to the office of
28 children and family services" shall mean a facility operated pursuant to
29 section five hundred four of the executive law.

30 (f) Any local government agency that utilizes body imaging scanning
31 equipment in a local correctional, or secure or specialized secure
32 detention facility under its jurisdiction shall submit an annual report
33 to the department, the speaker of the assembly, and the temporary presi-
34 dent of the senate. If body imaging scanning equipment is utilized in
35 one or more state correctional facilities or facilities for youth placed
36 with or committed to the office of children and family services, the
37 department of corrections and community supervision or the office of
38 children and family services, as applicable, shall submit an annual
39 report to the department, the speaker of the assembly, and the temporary
40 president of the senate. Such report by ~~either~~ the local government
41 agency ~~or~~, the department of corrections and community supervision or
42 the office of children and family services shall be submitted within
43 eighteen months after the initial date of registration of such equipment
44 with the department, and annually thereafter, and shall contain the
45 following information as to each such facility:

46 (i) ~~For~~ for local correctional facilities, the number of times the
47 equipment was used on incarcerated individuals, or for secure or
48 specialized secure detention facilities, the number of times the equip-
49 ment was used on individuals placed with, committed to, visiting or
50 employed in such facility, upon intake, after visits, and upon the
51 suspicion of contraband, as well as any other event that triggers the
52 use of such equipment, and the average, median, and highest number of
53 times the equipment was used on any ~~incarcerated~~ such individual, with
54 corresponding exposure levels; ~~and~~

55 (ii) ~~For~~ for state correctional facilities or facilities for youth
56 placed with or committed to the office of children and family services,

1 the number of times the equipment was used on individuals detained in,
2 committed to, working in, or visiting the facility upon intake, before
3 work shift, after work shift, before visits, after visits, and upon the
4 suspicion of contraband, as well as any other event that triggers the
5 use of such equipment, and the average, median, and highest number of
6 times the equipment was used on any individual detained in, committed
7 to, working in, or visiting the facility, with corresponding exposure
8 levels[-];

9 (iii) the number of times the use of the equipment detected the pres-
10 ence of drug contraband, weapon contraband, and any other illegal or
11 impermissible object or substance;

12 (iv) incidents or any injuries or illness resulting from the use of
13 such equipment or reported by persons scanned by such equipment; and

14 (v) any other information the department may reasonably require.

15 § 2. This act shall take effect on the one hundred twentieth day after
16 it shall have become a law; provided, however, that the amendments to
17 subdivision 6 of section 3502 of the public health law made by section
18 one of this act shall not affect the repeal of such subdivision and
19 shall be deemed repealed therewith. Effective immediately, the addition,
20 amendment and/or repeal of any rule or regulation necessary for the
21 implementation of this act on its effective date are authorized to be
22 made and completed on or before such effective date.

23 PART K

24 Section 1. Section 3 of part N of chapter 56 of the laws of 2020,
25 amending the social services law relating to restructuring financing for
26 residential school placements, as amended by section 1 of part 0 of
27 chapter 56 of the laws of 2025, is amended to read as follows:

28 § 3. This act shall take effect immediately [~~and shall expire and be~~
29 ~~deemed repealed April 1, 2026~~]; provided however that the amendments to
30 subdivision 10 of section 153 of the social services law made by section
31 one of this act, shall not affect the expiration of such subdivision and
32 shall be deemed to expire therewith.

33 § 2. This act shall take effect immediately and shall be deemed to
34 have been in full force and effect on and after April 1, 2026.

35 PART L

36 Section 1. Paragraphs (a), (b), (c) and (d) of subdivision 1 of
37 section 131-o of the social services law, as amended by section 1 of
38 part R of chapter 56 of the laws of 2025, are amended to read as
39 follows:

40 (a) in the case of each individual receiving family care, an amount
41 equal to at least [~~\$186.00~~] \$191.00 for each month beginning on or after
42 January first, two thousand [~~twenty-five~~] twenty-six.

43 (b) in the case of each individual receiving residential care, an
44 amount equal to at least [~~\$213.00~~] \$219.00 for each month beginning on
45 or after January first, two thousand [~~twenty-five~~] twenty-six.

46 (c) in the case of each individual receiving enhanced residential
47 care, an amount equal to at least [~~\$255.00~~] \$262.00 for each month
48 beginning on or after January first, two thousand [~~twenty-five~~] twenty-
49 six.

50 (d) for the period commencing January first, two thousand [~~twenty-six~~]
51 twenty-seven, the monthly personal needs allowance shall be an amount

1 equal to the sum of the amounts set forth in subparagraphs one and two
2 of this paragraph:

3 (1) the amounts specified in paragraphs (a), (b) and (c) of this
4 subdivision; and

5 (2) the amount in subparagraph one of this paragraph, multiplied by
6 the percentage of any federal supplemental security income cost of
7 living adjustment which becomes effective on or after January first, two
8 thousand ~~[twenty-six]~~ twenty-seven, but prior to June thirtieth, two
9 thousand ~~[twenty-six]~~ twenty-seven, rounded to the nearest whole dollar.

10 § 2. Paragraphs (a), (b), (c), (d), (e) and (f) of subdivision 2 of
11 section 209 of the social services law, as amended by section 2 of part
12 R of chapter 56 of the laws of 2025, are amended to read as follows:

13 (a) On and after January first, two thousand ~~[twenty-five]~~ twenty-six,
14 for an eligible individual living alone, ~~[\$1,054.00]~~ \$1,081.00; and for
15 an eligible couple living alone, ~~[\$1,554.00]~~ \$1,595.00.

16 (b) On and after January first, two thousand ~~[twenty-five]~~ twenty-six,
17 for an eligible individual living with others with or without in-kind
18 income, ~~[\$990.00]~~ \$1,017.00; and for an eligible couple living with
19 others with or without in-kind income, ~~[\$1,496.00]~~ \$1,537.00.

20 (c) On and after January first, two thousand ~~[twenty-five]~~ twenty-six,
21 (i) for an eligible individual receiving family care, ~~[\$1,233.48]~~
22 \$1,260.48 if such individual is receiving such care in the city of New
23 York or the county of Nassau, Suffolk, Westchester or Rockland; and (ii)
24 for an eligible couple receiving family care in the city of New York or
25 the county of Nassau, Suffolk, Westchester or Rockland, two times the
26 amount set forth in subparagraph (i) of this paragraph; or (iii) for an
27 eligible individual receiving such care in any other county in the
28 state, ~~[\$1,195.48]~~ \$1,222.48; and (iv) for an eligible couple receiving
29 such care in any other county in the state, two times the amount set
30 forth in subparagraph (iii) of this paragraph.

31 (d) On and after January first, two thousand ~~[twenty-five]~~ twenty-six,
32 (i) for an eligible individual receiving residential care, ~~[\$1,402.00]~~
33 \$1,429.00 if such individual is receiving such care in the city of New
34 York or the county of Nassau, Suffolk, Westchester or Rockland; and (ii)
35 for an eligible couple receiving residential care in the city of New
36 York or the county of Nassau, Suffolk, Westchester or Rockland, two
37 times the amount set forth in subparagraph (i) of this paragraph; or
38 (iii) for an eligible individual receiving such care in any other county
39 in the state, ~~[\$1,372.00]~~ \$1,399.00; and (iv) for an eligible couple
40 receiving such care in any other county in the state, two times the
41 amount set forth in subparagraph (iii) of this paragraph.

42 (e) On and after January first, two thousand ~~[twenty-five]~~ twenty-six,
43 (i) for an eligible individual receiving enhanced residential care,
44 ~~[\$1,661.00]~~ \$1,688.00; and (ii) for an eligible couple receiving
45 enhanced residential care, two times the amount set forth in subpara-
46 graph (i) of this paragraph.

47 (f) The amounts set forth in paragraphs (a) through (e) of this subdi-
48 vision shall be increased to reflect any increases in federal supple-
49 mental security income benefits for individuals or couples which become
50 effective on or after January first, two thousand ~~[twenty-six]~~ twenty-
51 seven but prior to June thirtieth, two thousand ~~[twenty-six]~~ twenty-sev-
52 en.

53 § 3. This act shall take effect December 31, 2026.

1 Section 1. Notwithstanding any other provision of law, the housing
2 trust fund corporation may provide, for purposes of the neighborhood
3 preservation program, a sum not to exceed \$20,680,000 for the fiscal
4 year ending March 31, 2027. Within this total amount, \$275,000 shall be
5 used for the purpose of entering into a contract with the neighborhood
6 preservation coalition to provide technical assistance and services to
7 companies funded pursuant to article 16 of the private housing finance
8 law. Notwithstanding any other provision of law, and subject to the
9 approval of the New York state director of the budget, the board of
10 directors of the state of New York mortgage agency shall authorize the
11 transfer to the housing trust fund corporation, for the purposes of
12 reimbursing any costs associated with neighborhood preservation program
13 contracts authorized by this section, a total sum not to exceed
14 \$20,680,000, such transfer to be made from (i) the special account of
15 the mortgage insurance fund created pursuant to section 2429-b of the
16 public authorities law, in an amount not to exceed the actual excess
17 balance in the special account of the mortgage insurance fund, as deter-
18 mined and certified by the state of New York mortgage agency for the
19 fiscal year 2025-2026 in accordance with section 2429-b of the public
20 authorities law, if any, and/or (ii) provided that the reserves in the
21 project pool insurance account of the mortgage insurance fund created
22 pursuant to section 2429-b of the public authorities law are sufficient
23 to attain and maintain the credit rating (as determined by the state of
24 New York mortgage agency) required to accomplish the purposes of such
25 account, the project pool insurance account of the mortgage insurance
26 fund, such transfer to be made as soon as practicable but no later than
27 June 30, 2026.

28 § 2. Notwithstanding any other provision of law, the housing trust
29 fund corporation may provide, for purposes of the rural preservation
30 program, a sum not to exceed \$9,427,000 for the fiscal year ending March
31 31, 2027. Within this total amount, \$275,000 shall be used for the
32 purpose of entering into a contract with the rural housing coalition to
33 provide technical assistance and services to companies funded pursuant
34 to article 17 of the private housing finance law. Notwithstanding any
35 other provision of law, and subject to the approval of the New York
36 state director of the budget, the board of directors of the state of New
37 York mortgage agency shall authorize the transfer to the housing trust
38 fund corporation, for the purposes of reimbursing any costs associated
39 with rural preservation program contracts authorized by this section, a
40 total sum not to exceed \$9,427,000, such transfer to be made from (i)
41 the special account of the mortgage insurance fund created pursuant to
42 section 2429-b of the public authorities law, in an amount not to exceed
43 the actual excess balance in the special account of the mortgage insur-
44 ance fund, as determined and certified by the state of New York mortgage
45 agency for the fiscal year 2025-2026 in accordance with section 2429-b
46 of the public authorities law, if any, and/or (ii) provided that the
47 reserves in the project pool insurance account of the mortgage insurance
48 fund created pursuant to section 2429-b of the public authorities law
49 are sufficient to attain and maintain the credit rating (as determined
50 by the state of New York mortgage agency) required to accomplish the
51 purposes of such account, the project pool insurance account of the
52 mortgage insurance fund, such transfer to be made as soon as practicable
53 but no later than June 30, 2026.

54 § 3. Notwithstanding any other provision of law, the housing trust
55 fund corporation may provide, for purposes of the rural rental assist-
56 ance program pursuant to article 17-A of the private housing finance

1 law, a sum not to exceed \$25,382,000 for the fiscal year ending March
2 31, 2027. Notwithstanding any other provision of law, and subject to
3 the approval of the New York state director of the budget, the board of
4 directors of the state of New York mortgage agency shall authorize the
5 transfer to the housing trust fund corporation, for the purposes of
6 reimbursing any costs associated with rural rental assistance program
7 contracts authorized by this section, a total sum not to exceed
8 \$25,382,000, such transfer to be made from (i) the special account of
9 the mortgage insurance fund created pursuant to section 2429-b of the
10 public authorities law, in an amount not to exceed the actual excess
11 balance in the special account of the mortgage insurance fund, as deter-
12 mined and certified by the state of New York mortgage agency for the
13 fiscal year 2025-2026 in accordance with section 2429-b of the public
14 authorities law, if any, and/or (ii) provided that the reserves in the
15 project pool insurance account of the mortgage insurance fund created
16 pursuant to section 2429-b of the public authorities law are sufficient
17 to attain and maintain the credit rating, as determined by the state of
18 New York mortgage agency, required to accomplish the purposes of such
19 account, the project pool insurance account of the mortgage insurance
20 fund, such transfer shall be made as soon as practicable but no later
21 than June 30, 2026.

22 § 4. Notwithstanding any other provision of law, the homeless housing
23 and assistance corporation may provide, for purposes of the New York
24 state supportive housing program, the solutions to end homelessness
25 program or the operational support for AIDS housing program, or to qual-
26 ified grantees under such programs, in accordance with the requirements
27 of such programs, a sum not to exceed \$74,181,000 for the fiscal year
28 ending March 31, 2027. The homeless housing and assistance corporation
29 may enter into an agreement with the office of temporary and disability
30 assistance to administer such sum in accordance with the requirements of
31 such programs. Notwithstanding any other provision of law, and subject
32 to the approval of the New York state director of the budget, the board
33 of directors of the state of New York mortgage agency shall authorize
34 the transfer to the homeless housing and assistance corporation, a total
35 sum not to exceed \$74,181,000, such transfer to be made from (i) the
36 special account of the mortgage insurance fund created pursuant to
37 section 2429-b of the public authorities law, in an amount not to exceed
38 the actual excess balance in the special account of the mortgage insur-
39 ance fund, as determined and certified by the state of New York mortgage
40 agency for the fiscal year 2025-2026 in accordance with section 2429-b
41 of the public authorities law, if any, and/or (ii) provided that the
42 reserves in the project pool insurance account of the mortgage insurance
43 fund created pursuant to section 2429-b of the public authorities law
44 are sufficient to attain and maintain the credit rating as determined by
45 the state of New York mortgage agency, required to accomplish the
46 purposes of such account, the project pool insurance account of the
47 mortgage insurance fund, such transfer shall be made as soon as practi-
48 cable but no later than March 31, 2027.

49 § 5. This act shall take effect immediately.

50 PART N

51 Section 1. Paragraph (g) of section 1603 of the not-for-profit corpo-
52 ration law, as amended by chapter 508 of the laws of 2018, is amended to
53 read as follows:

(g) Nothing in this article shall be construed to authorize the existence of more than ~~[thirty-five]~~ forty-five land banks located in the state at one time, provided further that each foreclosing governmental unit or units proposing to create a land bank shall submit such local law, ordinance or resolution as required by paragraph (a) of this section, to the urban development corporation, for its review and approval. The creation of a land bank shall be conditioned upon approval of the urban development corporation.

§ 2. This act shall take effect immediately.

PART 0

Section 1. Section 489 of the real property tax law is amended by adding a new subdivision 22 to read as follows:

22. (a) Definitions. For the purposes of this subdivision:

(1) "Affordable rent" shall mean the maximum rent within the marketing band that is allowed for an affordable rental unit as such rent is established by the local housing agency.

(2) "Affordable rental unit" shall mean a dwelling unit in an eligible rental building that, as of the filing of an application for a certificate of eligibility and reasonable cost, has a rent at or below the affordable rent.

(3) "Area median income" shall mean the income limits as defined annually by the United States department of housing and urban development for the New York city area.

(4) "Certificate of eligibility and reasonable cost" shall mean a document issued by the local housing agency that establishes that a property is eligible for rehabilitation program benefits and sets forth the certified reasonable cost of the eligible construction for which such benefits shall be received.

(5) "Certified reasonable cost schedule" shall mean a table providing maximum dollar limits for specified alterations and improvements, established, and updated at least every two years, by the local housing agency.

(6) "Checklist" shall mean a document that the local housing agency issues requesting additional information or documentation that is necessary for further assessment of an application for a certificate of eligibility and reasonable cost where such application contained all information and documentation required at the initial filing.

(7) "Commencement date" shall mean, with respect to eligible construction, the date on which any physical operation undertaken for the purpose of performing such eligible construction lawfully begins.

(8) "Completion date" shall mean, with respect to eligible construction, the date on which:

(A) every physical operation undertaken for the purpose of all eligible construction has concluded; and

(B) all such eligible construction has been completed to a reasonable and customary standard that renders such eligible construction capable of use for the purpose for which such eligible construction was intended.

(9) "Dwelling unit" shall mean any residential accommodation in a class A multiple dwelling that:

(A) is arranged, designed, used or intended for use by one or more persons living together and maintaining a common household;

(B) contains at least one room; and

1 (C) contains within such accommodation lawful sanitary and kitchen
2 facilities reserved for its occupants.

3 (10) "Eligible building" shall mean an eligible rental building, an
4 eligible homeownership building, or an eligible regulated homeownership
5 building, provided that such building contains three or more dwelling
6 units.

7 (11) "Eligible construction" shall mean alterations or improvements to
8 an eligible building that:

9 (A) are specifically identified on the certified reasonable cost sche-
10 dule;

11 (B) meet the minimum scope of work threshold;

12 (C) have a completion date that is on or after June thirtieth, two
13 thousand twenty-six and prior to June thirtieth, two thousand thirty-six
14 that is not more than thirty months after their commencement date; and

15 (D) are not attributable to any increased cubic content in such eligi-
16 ble building.

17 (12) "Eligible homeownership building" shall mean an existing building
18 that:

19 (A) is a class A multiple dwelling operated as condominium or cooper-
20 ative housing;

21 (B) is not operating in whole or in part as a hotel; and

22 (C) has an average assessed valuation, including the valuation of the
23 land, that as of the commencement date does not exceed the homeownership
24 average assessed valuation limitation.

25 (13) "Eligible regulated homeownership building" shall mean an exist-
26 ing building that is a class A multiple dwelling owned and operated by
27 either:

28 (A) a mutual company that continues to be organized and operated as a
29 mutual company and that has entered into and recorded a mutual company
30 regulatory agreement; or

31 (B) a mutual redevelopment company that continues to be organized and
32 operated as a mutual redevelopment company and that has entered into and
33 recorded a mutual redevelopment company regulatory agreement.

34 (14) "Eligible rental building" shall mean an existing building that:

35 (A) is a class A multiple dwelling in which all of the dwelling units
36 are operated as rental housing;

37 (B) is not operating in whole or in part as a hotel; and

38 (C) satisfies one of the following conditions:

39 (i) not less than fifty percent of the dwelling units in such building
40 are affordable rental units;

41 (ii) not less than ninety percent of the dwelling units in such build-
42 ing are subject to rent regulation;

43 (iii) such building is owned and operated by a limited-profit housing
44 company; or

45 (iv) such building is the recipient of substantial governmental
46 assistance.

47 (15) "Existing building" shall mean an enclosed structure which:

48 (A) is permanently affixed to the land;

49 (B) has one or more floors and a roof;

50 (C) is bounded by walls;

51 (D) has at least one principal entrance utilized for day-to-day pedes-
52 trian ingress and egress;

53 (E) has a certificate of occupancy or equivalent document that is in
54 effect prior to the commencement date; and

1 (F) exclusive of the land, has an assessed valuation of more than one
2 thousand dollars for the fiscal year immediately preceding the commence-
3 ment date.

4 (16) "Homeownership average assessed valuation limitation" shall mean
5 an average assessed valuation of seventy-five thousand dollars per
6 dwelling unit, adjusted annually to reflect any increase in the consumer
7 price index for all urban consumers for all items as published by the
8 United States bureau of labor statistics for the region in which the
9 eligible building is located, as established for the most recent preced-
10 ing calendar year.

11 (17) "Limited-profit housing company" shall have the same meaning as
12 "company" as defined in section twelve of the private housing finance
13 law.

14 (18) "Market rental unit" shall mean a dwelling unit in an eligible
15 rental building other than an affordable rental unit.

16 (19) "Marketing band" shall mean maximum rent amounts ranging from
17 twenty percent of eighty percent of the area median income, adjusted for
18 family size, to thirty percent of eighty percent of the area median
19 income, adjusted for family size.

20 (20) "Minimum scope of work threshold" shall mean a total amount of
21 certified reasonable cost established by rules, regulations, and guid-
22 ance documents of the local housing agency, provided that such amount
23 shall be no less than one thousand five hundred dollars for each dwell-
24 ing unit in existence on the completion date.

25 (21) "Multiple dwelling" shall have the meaning as such term is
26 defined in section four of the multiple dwelling law.

27 (22) "Mutual company" shall have the meaning as such term is defined
28 in section twelve of the private housing finance law.

29 (23) "Mutual company regulatory agreement" shall mean a binding and
30 irrevocable agreement between a mutual company and the commissioner of
31 housing, the mutual company supervising agency, the New York city hous-
32 ing development corporation, or the New York state housing finance agen-
33 cy prohibiting the dissolution or reconstitution of such mutual company
34 pursuant to section thirty-five of the private housing finance law for
35 not less than fifteen years from the commencement of rehabilitation
36 program benefits for the existing building owned and operated by such
37 mutual company.

38 (24) "Mutual company supervising agency" shall have the same meaning,
39 with respect to any mutual company, as "supervising agency" as defined
40 in section two of the private housing finance law.

41 (25) "Mutual redevelopment company" shall have the same meaning as
42 "mutual company" when applied to a redevelopment company as defined in
43 section one hundred two of the private housing finance law.

44 (26) "Mutual redevelopment company regulatory agreement" shall mean a
45 binding and irrevocable agreement between a mutual redevelopment company
46 and the commissioner of housing, the redevelopment company supervising
47 agency, the New York city housing development corporation, or the New
48 York state housing finance agency prohibiting the dissolution or recon-
49 stitution of such mutual redevelopment company pursuant to section one
50 hundred twenty-three of the private housing finance law until the earli-
51 er of:

52 (A) fifteen years from the commencement of rehabilitation program
53 benefits for the existing building owned and operated by such mutual
54 redevelopment company; or

1 (B) the expiration of any tax exemption granted to such mutual rede-
2 velopment company pursuant to section one hundred twenty-five of the
3 private housing finance law.

4 (27) "Redevelopment company" shall have the same meaning as such term
5 is defined in section one hundred two of the private housing finance
6 law.

7 (28) "Redevelopment company supervising agency" shall have the same
8 meaning, with respect to any redevelopment company, as "supervising
9 agency" as defined in section one hundred two of the private housing
10 finance law.

11 (29) "Rehabilitation program benefits" shall mean abatement of real
12 property taxes pursuant to this subdivision.

13 (30) "Rent regulation" shall mean, collectively, the emergency housing
14 rent control law, any local law enacted pursuant to the local emergency
15 housing rent control act, the rent stabilization law of nineteen hundred
16 sixty-nine, the rent stabilization code, and the emergency tenant
17 protection act of nineteen seventy-four, all as in effect as of the
18 effective date of this subdivision, or as any such statute is amended
19 thereafter, together with any successor statutes or regulations address-
20 ing substantially the same subject matter.

21 (31) "Restriction period" shall mean, notwithstanding any termination
22 or revocation of rehabilitation program benefits prior to such period,
23 fifteen years from the initial receipt of rehabilitation benefits, or
24 such additional period of time as may be imposed pursuant to clause (A)
25 of subparagraph five of paragraph (e) of this subdivision.

26 (32) "Substantial governmental assistance" shall mean grants, loans,
27 or subsidies from any federal, state, or local government agency or
28 instrumentality in furtherance of a program for the development of
29 affordable housing approved by the local housing agency, provided that
30 such grants, loans, or subsidies are provided in accordance with a regu-
31 latory agreement entered into with such agency or instrumentality that
32 is in effect as of the filing date of the application for a certificate
33 of eligibility and reasonable cost.

34 (33) "Substantial interest" shall mean an ownership interest of ten
35 percent or more.

36 (b) Abatement. Notwithstanding the provisions of any other subdivision
37 of this section or of any general, special, or local law to the contra-
38 ry, in a city with a population of one million persons or more, real
39 property taxes on an eligible building in which eligible construction
40 has been completed may be abated by an aggregate amount that shall not
41 exceed one hundred percent of the total certified reasonable cost of
42 such construction plus an amount equivalent to the filing fee paid
43 pursuant to subparagraph three of paragraph (d) of this subdivision, as
44 determined under rules, regulations, and guidance documents of the local
45 housing agency, provided that:

46 (1) Such abatement shall not be effective for more than twenty years;

47 (2) The annual abatement of real property taxes on such eligible
48 building shall not exceed eight and one-third percent of the total
49 certified reasonable cost of such eligible construction;

50 (3) The annual abatement of real property taxes on such eligible
51 building in any consecutive twelve-month period shall in no event exceed
52 the amount of real property taxes payable in such twelve-month period
53 for such building, provided, however, that such abatement shall not
54 exceed fifty percent of the amount of real property taxes payable in
55 such twelve-month period for any of the following:

1 (A) an eligible rental building owned by a limited-profit housing
2 company or a redevelopment company;

3 (B) an eligible homeownership building; and

4 (C) an eligible regulated homeownership building; and

5 (4) Such abatement shall become effective beginning with the first
6 quarterly tax bill immediately following the date of issuance of the
7 certificate of eligibility and reasonable cost.

8 (c) Guidance and rulemaking. Each agency or department to which func-
9 tions are assigned by this subdivision may adopt and promulgate rules,
10 regulations, and guidance documents for the effectuation of the purpose
11 of this subdivision.

12 (d) Application. (1) An application for a certificate of eligibility
13 and reasonable cost pursuant to this subdivision shall be made after the
14 completion date and on or before the later of (A) four months from the
15 effective date of this subdivision; or (B) four months from such
16 completion date.

17 (2) Such application shall include evidence of eligibility for reha-
18 bilitation program benefits and evidence of reasonable cost as shall be
19 satisfactory to the local housing agency including, but not limited to,
20 evidence showing the cost of eligible construction.

21 (3) The local housing agency shall require a non-refundable filing fee
22 that shall be paid by a certified check or cashier's check upon the
23 filing of an application for a certificate of eligibility and reasonable
24 cost. Such fee shall be seventy-five dollars for each dwelling unit in
25 the eligible building that is the subject of such application, but no
26 more than twenty thousand dollars for each application, with such fee
27 for each dwelling unit and maximum fee adjusted annually to reflect any
28 increase in the consumer price index for all urban consumers for all
29 items as published by the United States bureau of labor statistics for
30 the region in which the eligible building is located, as established for
31 the most recent preceding calendar year. For an application for rehabil-
32 itation program benefits that has been approved, an amount equivalent to
33 the filing fee paid pursuant to this subparagraph shall be included in
34 the aggregate amount abated under this subdivision.

35 (4) Any application that is filed pursuant to this paragraph that is
36 missing any of the information and documentation required at initial
37 filing by any rules, regulations, and guidance documents of the local
38 housing agency shall be denied, provided that a new application for the
39 same eligible construction, together with a new non-refundable filing
40 fee, may be filed within fifteen days of the date of issuance of such
41 denial. If such second application is also missing any such required
42 information and documentation, it shall be denied and no further appli-
43 cations for the same eligible construction shall be permitted.

44 (5) The failure of an applicant to respond to any checklist within
45 thirty days of the date of its issuance by the local housing agency
46 shall result in denial of such application, and no further applications
47 for the same eligible construction shall be permitted. The local housing
48 agency shall issue not more than three checklists per application. An
49 application for a certificate of eligibility and reasonable cost shall
50 be denied when the local housing agency does not have a sufficient basis
51 to issue a certificate of eligibility and reasonable cost after the
52 timely response of an applicant to the third checklist concerning such
53 application. After the local housing agency has denied an application
54 for the reason described in the preceding sentence, such agency shall
55 permit no further applications for the same eligible construction.

1 (6) An application for a certificate of eligibility and reasonable
2 cost shall also include an affidavit of no harassment.

3 (A) Such affidavit shall set forth the following information:

4 (i) the name of every owner of record and owner of a substantial
5 interest in the eligible building or entity owning the eligible building
6 or sponsoring the eligible construction; and

7 (ii) a statement that none of such persons had, within the five years
8 prior to the completion date, been found to have harassed or unlawfully
9 evicted tenants by judgment or determination of a court or agency,
10 including a non-governmental agency having appropriate legal jurisdic-
11 tion under the penal law, any state or local law regulating rents, or
12 any state or local law relating to harassment of tenants or unlawful
13 eviction.

14 (B) No eligible building shall be eligible for an abatement pursuant
15 to paragraph (b) of this subdivision where:

16 (i) any affidavit required under this subparagraph has not been filed;
17 or

18 (ii) any such affidavit contains a willful misrepresentation or omis-
19 sion of any material fact; or

20 (iii) any owner of record or owner of a substantial interest in the
21 eligible building or entity owning the eligible building or sponsoring
22 the eligible construction has been found, by judgment or determination
23 of a court or agency, including a non-governmental agency having appro-
24 priate legal jurisdiction under the penal law, any state or local law
25 regulating rents, or any state or local law relating to harassment of
26 tenants or unlawful eviction, to have, within the five years prior to
27 the completion date, harassed or unlawfully evicted tenants, until and
28 unless the finding is reversed on appeal.

29 (C) Notwithstanding the provisions of any general, special, or local
30 law to the contrary, the corporation counsel or other legal represen-
31 tative of a city having a population of one million or more or the
32 district attorney of any county located in a city with a population of
33 one million or more, may institute an action or proceeding in any court
34 of competent jurisdiction that may be appropriate or necessary to deter-
35 mine whether any owner of record or owner of a substantial interest in
36 the eligible building or entity owning the eligible building or sponsor-
37 ing the eligible construction has harassed or unlawfully evicted tenants
38 as described in this subparagraph.

39 (7) Notwithstanding the provisions of any general, special, or local
40 law to the contrary, the local housing agency may require by rules,
41 regulations, and guidance documents that an application for a certif-
42 icate of eligibility and reasonable cost be filed electronically.

43 (8) The local housing agency may require an applicant to demonstrate
44 compliance with the housing maintenance code. If hazardous or immediate-
45 ly hazardous violations exist, the local housing agency may require the
46 applicant to remediate such violations and may impose a penalty in an
47 amount set forth in rules, regulations, and guidance documents if the
48 applicant fails to clear the violation.

49 (e) Additional requirements for an eligible rental building other than
50 one owned and operated by a limited-profit housing company. In addition
51 to all other conditions of eligibility for rehabilitation program bene-
52 fits set forth in this subdivision, an eligible rental building, other
53 than one owned and operated by a limited-profit housing company, shall
54 also comply with all provisions of this paragraph. Notwithstanding the
55 foregoing, an eligible rental building that is the recipient of substan-

1 tial governmental assistance shall not be required to comply with the
2 provisions of subparagraph two of this paragraph.

3 (1) Notwithstanding any provision of rent regulation to the contrary,
4 any market rental unit within such eligible rental building subject to
5 rent regulation as of the filing date of the application for a certifi-
6 cate of eligibility and reasonable cost and any affordable rental unit
7 within such eligible rental building shall be subject to rent regulation
8 until such unit first becomes vacant after the expiration of the
9 restriction period at which time such unit, unless it would be subject
10 to rent regulation for reasons other than the provisions of this subdivi-
11 sion, shall be deregulated, provided, however, that during the
12 restriction period, no exemption or exclusion from any requirement of
13 rent regulation shall apply to such dwelling units.

14 (2) Additional requirements for an eligible rental building that is
15 not a recipient of substantial governmental assistance.

16 (A) Not less than fifty percent of the dwelling units in such eligible
17 rental building shall be designated as affordable rental units.

18 (B) The owner of such eligible rental building shall ensure that no
19 affordable rental unit is held off the market for a period that is long-
20 er than reasonably necessary.

21 (C) The owner of such eligible rental building shall waive the
22 collection of any major capital improvement rent increase granted by the
23 New York state division of housing and community renewal pursuant to
24 rent regulation that is attributable to eligible construction for which
25 such eligible rental building receives rehabilitation program benefits,
26 and shall file a declaration with the New York state division of housing
27 and community renewal providing such waiver. The local housing agency
28 shall not require an owner to file such waiver until the application for
29 rehabilitation program benefits has been approved.

30 (D) An affordable rental unit shall not be rented on a temporary,
31 transient or short-term basis. Every lease and renewal thereof for an
32 affordable rental unit shall be for a term of one or two years, at the
33 option of the tenant, and shall include a notice in at least twelve-
34 point type informing such tenant of their rights pursuant to this subdivi-
35 sion, including an explanation of the restrictions on rent increases
36 that may be imposed on such affordable rental unit.

37 (E) The local housing agency may establish by rules, regulations, and
38 guidance documents such requirements as the local housing agency deems
39 necessary or appropriate for designating affordable rental units,
40 including, but not limited to, designating the unit mix and distribution
41 requirements of such affordable rental units in an eligible building.

42 (3) The owner of such eligible rental building shall not engage in or
43 cause any harassment of the tenants of such eligible rental building or
44 unlawfully evict any such tenants during the restriction period.

45 (4) No dwelling units within such eligible rental building shall be
46 converted to cooperative or condominium ownership during the restriction
47 period.

48 (5) Any non-compliance of an eligible rental building with the
49 provisions of this paragraph shall permit the local housing agency to
50 take the following action:

51 (A) extend the restriction period;

52 (B) increase the number of affordable rental units in such eligible
53 rental building;

54 (C) impose a penalty of not more than the product of one thousand
55 dollars per instance of non-compliance and the number of dwelling units
56 contained in such eligible rental building; and

1 (D) terminate or revoke any rehabilitation program benefits in accord-
2 ance with paragraph (p) of this subdivision.

3 (f) Compliance with applicable law. Rehabilitation program benefits
4 shall not be allowed for any eligible building unless and until such
5 eligible building complies with all applicable provisions of law. Reha-
6 bilitation program benefits shall not be allowed if the local housing
7 agency determines that eligible construction was not carried out in
8 conformity with all applicable provisions of law.

9 (g) Tenant notification. Notwithstanding any provision of this section
10 to the contrary, no rehabilitation program benefits shall be granted for
11 any eligible construction with a commencement date on or after the
12 effective date of this subdivision unless the applicant provides to
13 tenants, if any, of such eligible building not more than one hundred
14 eighty days nor less than thirty days prior to the commencement date,
15 notice of the following information:

16 (1) The proposed work;

17 (2) The identity and contact information of the eligible building's
18 representative; and

19 (3) The tenants' rights under applicable law with respect to such
20 work; provided that, in the case of a loan program supervised by the
21 local housing agency, such agency may provide the required notice to the
22 tenants.

23 (h) Notice of intent. An applicant for rehabilitation program benefits
24 for any eligible construction with a commencement date on or after the
25 effective date of this subdivision shall file with the local housing
26 agency a form supplied by such agency which:

27 (1) States an intention to file for rehabilitation program benefits;

28 (2) Describes the work for which rehabilitation program benefits will
29 be claimed;

30 (3) Estimates the cost of such work which will be eligible for reha-
31 bilitation program benefits; and

32 (4) Provides proof of the notice required under paragraph (g) of this
33 subdivision. Such form shall be filed prior to the commencement date. If
34 the scope of such work or the estimated cost thereof changes materially,
35 such applicant shall file a revised notice of intent. An applicant who
36 fails to comply with the requirements of this subdivision shall be
37 subject to a penalty not to exceed one hundred percent of the filing fee
38 otherwise payable pursuant to subparagraph three of paragraph (d) of
39 this subdivision.

40 (i) Implementation of rehabilitation program benefits. Upon issuance
41 of a certificate of eligibility and reasonable cost and payment of
42 outstanding fees, the local housing agency shall be authorized to trans-
43 mit such certificate of eligibility and reasonable cost to the local
44 agency responsible for real property tax assessment. Upon receipt of a
45 certificate of eligibility and reasonable cost, the local agency respon-
46 sible for real property tax assessment shall certify the amount of taxes
47 to be abated pursuant to paragraph (b) of this subdivision and pursuant
48 to such certificate of eligibility and reasonable cost provided by the
49 local housing agency.

50 (j) Outstanding taxes and charges. Rehabilitation program benefits
51 shall not be allowed for an eligible building in either of the following
52 cases:

53 (1) there are outstanding real estate taxes or water and sewer charges
54 or payments in lieu of taxes that are due and owing as of the last day
55 of the tax period preceding the date of the receipt of the certificate

1 of eligibility and reasonable cost by the local agency responsible for
2 real property tax assessment; or

3 (2) real estate taxes or water and sewer charges due at any time
4 during the authorized term of such benefits remain unpaid for one year
5 after the same are due and payable.

6 (k) Additional limitations on eligibility. (1) Rehabilitation program
7 benefits shall not be allowed for any eligible building receiving tax
8 exemption or abatement concurrently for rehabilitation or new
9 construction under any other provision of state or local law or ordi-
10 nance, including any other subdivision of this section, with the excep-
11 tion of any eligible construction to an eligible building receiving a
12 tax exemption or abatement under the provisions of the private housing
13 finance law;

14 (2) Rehabilitation program benefits shall not be allowed for any item
15 of eligible construction in an eligible building if such eligible build-
16 ing is receiving tax exemption or abatement for the same or a similar
17 item of eligible construction as of the December thirty-first preceding
18 the date of application for a certificate of eligibility and reasonable
19 cost for such rehabilitation program benefits;

20 (3) Where the eligible construction includes or benefits a portion of
21 an eligible building that is not occupied for dwelling purposes, the
22 assessed valuation of such eligible building and the cost of the eligi-
23 ble construction shall be apportioned so that rehabilitation program
24 benefits shall not be provided for eligible construction made for other
25 than dwelling purposes; and

26 (4) Rehabilitation program benefits shall not be applied to abate the
27 taxes upon the land portion of real property, which shall continue to be
28 taxed based upon the assessed valuation of the land and the applicable
29 tax rate at the time such taxes are levied.

30 (l) Re-inspection penalty. If the local housing agency cannot verify
31 the eligible construction claimed by an applicant upon the first
32 inspection by the local housing agency of the eligible building, such
33 applicant shall be required to pay ten times the actual cost of any
34 additional inspection needed to verify such eligible construction.

35 (m) Strict liability for inaccurate applications. If the local housing
36 agency determines that an application for a certificate of eligibility
37 and reasonable cost contains a material misstatement of fact or omission
38 of fact, the local housing agency may reject such application and bar
39 the submission of any other application pursuant to this subdivision
40 with respect to such eligible building for a period not to exceed three
41 years. An applicant shall not be relieved from liability under this
42 paragraph because it submitted its application under a mistaken belief
43 of fact. Furthermore, any person or entity that files more than six
44 applications containing such a material misstatement of fact or omission
45 of fact within any twelve-month period shall be barred from submitting
46 any new application for rehabilitation program benefits on behalf of any
47 eligible building for a period not to exceed five years.

48 (n) False statements. Any person who shall knowingly and willfully
49 make any false statement or omission as to any material matter in any
50 application for a certificate of eligibility and reasonable cost shall
51 be guilty of an offense punishable by a fine of not more than five
52 hundred dollars, or imprisonment for not more than ninety days, or both.

53 (o) Investigatory authority. The local housing agency may require such
54 certifications and consents necessary to access records, including other
55 tax records, as may be deemed appropriate to enforce the eligibility
56 requirements of this subdivision. For purposes of determining and certi-

1 fyng eligibility for rehabilitation program benefits and the reasonable
2 cost of any eligible construction, the local housing agency shall be
3 authorized to:

4 (1) administer oaths to and take the testimony of any person, includ-
5 ing, but not limited to, the owner of such eligible building;

6 (2) issue subpoenas requiring the attendance of such persons and the
7 production of any bills, books, papers or other documents as it may deem
8 necessary;

9 (3) make preliminary estimates of the maximum reasonable cost of such
10 eligible construction;

11 (4) establish maximum allowable costs of specified units, fixtures or
12 work in such eligible construction;

13 (5) require the submission of plans and specifications of such eligi-
14 ble construction before the commencement thereof;

15 (6) require physical access to inspect the eligible building; and

16 (7) on an annual basis, require the submission of leases for any
17 dwelling unit in a building granted a certificate of eligibility and
18 reasonable cost.

19 (p) Termination or revocation. Failure to comply with the provisions
20 of this subdivision, any rules, regulations, and guidance documents
21 promulgated thereunder, or any mutual company regulatory agreement or
22 mutual redevelopment company regulatory agreement entered into there-
23 under, may result in termination or revocation of any rehabilitation
24 program benefits retroactive to the commencement thereof. Such termi-
25 nation or revocation shall not exempt such eligible building from
26 continued compliance with the requirements of this subdivision, such
27 rules, regulations, and guidance documents, and such mutual company
28 regulatory agreement or mutual redevelopment company regulatory agree-
29 ment.

30 (q) Criminal liability for unauthorized uses. In the event that any
31 recipient of rehabilitation program benefits uses any dwelling unit in
32 such eligible building in violation of the requirements of any rules and
33 regulations promulgated pursuant to this subdivision, such recipient
34 shall be guilty of an unclassified misdemeanor punishable by a fine in
35 an amount equivalent to double the value of the gain of such recipient
36 from such unlawful use or imprisonment for not more than ninety days, or
37 both.

38 (r) Private right of action. Any prospective, present, or former
39 tenant of an eligible rental building may sue to enforce the require-
40 ments and prohibitions of this subdivision, or any rules and regulations
41 promulgated thereunder, in the supreme court of New York. Any such indi-
42 vidual harmed by reason of a violation of such requirements and prohibi-
43 tions may sue therefor in the supreme court of New York on behalf of
44 themselves, and shall recover threefold the damages sustained and the
45 cost of the suit, including a reasonable attorney's fee. The local hous-
46 ing agency may use any court decision under this paragraph that is
47 adverse to the owner of an eligible building as the basis for further
48 enforcement action. Notwithstanding any other provision of law, an
49 action by a tenant of an eligible rental building under this paragraph
50 shall be commenced within six years from the date of the latest
51 violation.

52 (s) Appointment of receiver. In addition to the remedies for non-com-
53 pliance provided for in subparagraph five of paragraph (e) of this
54 subdivision, the local housing agency may make application for the
55 appointment of a receiver in accordance with the procedures contained in
56 applicable rules, regulations, and guidance documents of the local hous-

ing agency. Any receiver appointed pursuant to this paragraph shall be authorized, in addition to any other powers conferred by law, to effect compliance with the provisions of this subdivision and rules, regulations, and guidance documents of the local housing agency. Any expenditures incurred by the receiver to effect such compliance shall constitute a debt of the owner and a lien upon the property, and upon the rents and income thereof, in accordance with the procedures contained in such rules, regulations, and guidance documents. The local housing agency in its discretion may provide funds to be expended by the receiver, and such funds shall constitute a debt recoverable from the owner in accordance with applicable local laws or ordinances.

(t) Reporting. No later than two years after the effective date of this subdivision, and annually thereafter, the local housing agency, in consultation with the department of finance, shall submit to the mayor and the speaker of the council and post on its website a report on the actions by the local housing agency in the preceding fiscal year related to rehabilitation program benefits. Such report shall include, but not be limited to:

(1) The total amount of the rehabilitation program benefits approved for each eligible building, the number of eligible buildings in each community district, neighborhood tabulation area, council district, New York state assembly district, and New York state senate district, the building classification, in accordance with section three hundred two of the New York city building code, of each such eligible building, the number of dwelling units in each such eligible building, and the number of qualifying rental units in each such eligible building; and

(2) The number of eligible buildings whose rehabilitation program benefits were terminated or revoked and the number of eligible buildings against which actions were taken, pursuant to clauses (A), (B) and (C) of subparagraph five of paragraph (e) of this subdivision, to address noncompliance with the provisions of such subdivision, and the street address of each such eligible building.

(u) Updates to the certified reasonable cost schedule. When updating the certified reasonable cost schedule, the local housing agency shall consider the factors such agency deems relevant, such as the requirements imposed on eligible buildings by local law, including, but not limited to, articles three hundred two, three hundred twenty and three hundred twenty-one of chapter three of title twenty-eight of the administrative code of the city of New York, and the effects of inflation on such costs since the prior date the certified reasonable cost schedule was updated. The local housing agency shall publish the certified reasonable cost schedule on its website.

§ 2. This act shall take effect immediately.

PART P

Section 1. The opening paragraph of subdivision 2 of section 241.05 of the penal law, as added by chapter 573 of the laws of 2019, is amended to read as follows:

With intent to induce two or more rent regulated tenants occupying different housing accommodations in one residential building, or two rent regulated tenants occupying different housing accommodations in two separate residential buildings, to vacate such housing accommodations, such owner intentionally engages in a systematic ongoing course of conduct that:

§ 2. The penal law is amended by adding a new section 241.07 to read as follows:

§ 241.07 Aggravated harassment of a rent regulated tenant.

An owner is guilty of aggravated harassment of a rent regulated tenant when:

1. With intent to induce three or more rent regulated tenants occupying different housing accommodations in two or more residential buildings to vacate such housing accommodations, such owner intentionally engages in a systematic ongoing course of conduct that:

(a) impairs the habitability of such housing accommodations; or

(b) creates or maintains a condition which endangers the safety or health of one or more of the dwellings' rent regulated tenants; or

(c) is reasonably likely to interfere with or disturb, and does interfere with or disturb, the comfort, repose, peace or quiet of one or more of such rent regulated tenants in their use and occupancy of such housing accommodation including, but not limited to, the interruption or discontinuance of essential services.

2. Such owner commits the crime of harassment of a rent regulated tenant in the first degree as defined in section 241.05 of this article and has previously been convicted within the preceding five years of such crime.

The good faith commencement and pursuit of a lawful eviction action by an owner against a rent regulated tenant in a court of competent jurisdiction shall not, by itself, constitute a "systematic ongoing course of conduct" in violation of paragraph (c) of subdivision one of this section.

Aggravated harassment of a rent regulated tenant is a class D felony.

§ 3. Section 241.00 of the penal law is amended by adding a new subdivision 4 to read as follows:

4. "Residential building" shall mean a structure built upon an identifiable borough-block-lot or section-block-lot number that contains multiple dwelling units, at least one of which is subject to the regulations and control of residential rents and evictions pursuant to the emergency housing rent control law, the local emergency housing rent control act, the emergency tenant protection act of nineteen seventy-four, the New York city rent and rehabilitation law or the New York city rent stabilization law of nineteen hundred sixty-nine. The definition of "residential building" as used in this subdivision shall be applicable only to the provisions of this article and shall not be applicable to any other provision of law.

§ 4. This act shall take effect immediately.

PART Q

Section 1. The private housing finance law is amended by adding a new article 28 to read as follows:

ARTICLE XXVIII

NEW YORK STATE FIRST HOME

SAVINGS PROGRAM

Section 1250. Program established.

1251. Purposes.

1252. Definitions.

1253. Functions of the comptroller.

1254. Powers of the comptroller.

1255. Program requirements; first home savings account.

1256. Program limitations; first home savings account.

1 § 1250. Program established. There is hereby established a first home
2 savings program and such program shall be known and may be cited as the
3 "New York state first home savings program".

4 § 1251. Purposes. The purposes of the program shall be to authorize
5 the establishment of first home savings accounts and to provide guide-
6 lines for the maintenance of such accounts to:

7 1. enable residents of this state to benefit from the tax incentive
8 provided for qualified state first home savings accounts under section
9 six hundred twelve of the tax law; and

10 2. incentivize residents to save for the purchase of a first home
11 within the state.

12 § 1252. Definitions. As used in this article, the following terms
13 shall have the following meanings:

14 1. "Account" or "first home savings account" shall mean an individual
15 savings account established in accordance with the provisions of this
16 article for the exclusive benefit of the account owner or designated
17 beneficiary that is the first time buyer of a home, townhome, condomin-
18 ium or unit in a cooperative housing corporation.

19 2. "Account owner" shall mean a taxpayer who enters into a first home
20 savings agreement pursuant to the provisions of this article, including
21 a person who enters into such an agreement as a fiduciary or agent on
22 behalf of a trust, estate, partnership, association, company or corpo-
23 ration.

24 3. "Designated beneficiary" shall mean, with respect to an account or
25 accounts, the designated individual or individuals whose first home
26 purchase expenses are expected to be paid from the account or accounts.

27 4. "Financial organization" shall mean an organization authorized to
28 do business in the state, and (a) which is an authorized fiduciary to
29 act as a trustee pursuant to the provisions of an act of congress enti-
30 tled "Employee Retirement Income Security Act of 1974", as such
31 provisions may be amended from time to time, or an insurance company;
32 and (b)(i) is licensed or chartered by the department of financial
33 services, (ii) is chartered by an agency of the federal government,
34 (iii) is subject to the jurisdiction and regulation of the securities
35 and exchange commission of the federal government, (iv) is any other
36 entity otherwise authorized to act in this state as a trustee pursuant
37 to the provisions of an act of congress entitled "Employee Retirement
38 Income Security Act of 1974", as such provisions may be amended from
39 time to time, (v) or any banking organization as defined in subdivision
40 eleven of section two of the banking law, national banking association,
41 state chartered credit union, federal mutual savings bank, federal
42 savings and loan association or federal credit union.

43 5. "First time home buyer" shall mean an individual or individuals,
44 neither of whom has or had an ownership interest in a principal resi-
45 dence at any time, including residences owned in the United States or
46 abroad. No such person shall own any other home including vacation or
47 investment residences, including residences owned in the United States
48 or abroad, except as otherwise provided in this subdivision. If either
49 the individual or individuals are not first time home buyers, neither
50 the individual or individuals shall be considered a first time home
51 buyer. If an individual's only potentially disqualifying present owner-
52 ship interest is ownership of a mobile or manufactured home, the indi-
53 vidual shall be considered a first time home buyer and shall be eligible
54 for a first home account deduction. For the purposes of this article a
55 "mobile or manufactured home" shall mean a structure that is valued as
56 personal property and not real property. If, due to the ownership of a

1 mobile or manufactured home, the individual has claimed a real estate
2 tax or home mortgage deduction on their personal income tax returns,
3 such individual shall not be considered a first time home buyer regard-
4 less of whether the mobile or manufactured home was considered personal
5 or real property.

6 6. "Ownership interest" shall mean a fee simple interest, a joint
7 tenancy, a tenancy in common, a tenancy by the entirety, the interest of
8 a tenant-share holder in a cooperative, a life estate or a land
9 contract. Interests which do not constitute ownership interests include
10 the following: (a) remainder interests, (b) a lease with or without an
11 option to purchase, (c) a mere expectancy to inherit an interest in a
12 residence, (d) the interest that a purchaser of a residence acquires on
13 the execution of a purchase contract and (e) an interest in real estate
14 other than a residence.

15 7. "Program" shall mean the New York first home savings program estab-
16 lished pursuant to this article.

17 8. "Qualified first home purchase expenses" shall mean monies applied
18 for the purchase or construction of a house, townhouse, condominium or
19 unit in a cooperative housing corporation within the state to be used as
20 a primary residence of the account owner or designated beneficiary for a
21 period of not less than two years after purchase.

22 9. "Qualified residential housing" shall mean a house, townhouse,
23 condominium or unit in a cooperative housing corporation within the
24 state.

25 10. "Qualified withdrawal" shall mean a withdrawal from an account to
26 pay the qualified first home purchase expense of the account owner or
27 designated beneficiary of the account.

28 11. "Nonqualified withdrawal" shall mean a withdrawal from an account
29 but shall not include:

30 (a) a qualified withdrawal;
31 (b) a withdrawal made as the result of death;
32 (c) an unforeseeable emergency; or
33 (d) need based upon qualifying for military service in the armed forc-
34 es of the United States as determined by rules and regulations promul-
35 gated by the comptroller.

36 12. "Comptroller" shall mean the state comptroller.

37 13. "Management contract" shall mean the contract executed by the
38 comptroller and a financial organization selected to act as a depository
39 and manager of the program.

40 14. "First home savings agreement" shall mean an agreement between the
41 comptroller or a financial organization and the account owner.

42 15. "Program manager" shall mean a financial organization selected by
43 the comptroller to act as a depository and manager of the program.

44 16. "Commissioner" shall mean the commissioner of taxation and
45 finance.

46 § 1253. Functions of the comptroller. 1. The comptroller shall imple-
47 ment the program under the terms and conditions established by this
48 article and a memorandum of understanding with the commissioner relating
49 to any terms or conditions not otherwise expressly provided for in this
50 article.

51 2. In furtherance of such implementation the comptroller shall:

52 (a) develop and implement the program in a manner consistent with the
53 provisions of this article through rules and regulations established in
54 accordance with the state administrative procedure act;

55 (b) engage the services of consultants on a contract basis for render-
56 ing professional and technical assistance and advice;

1 (c) seek rulings and other guidance from the United States Department
2 of Treasury and the Internal Revenue Service relating to the program;

3 (d) make changes to the program required for the participants in the
4 program to obtain the state income tax benefits or treatment provided by
5 this article;

6 (e) charge, impose and collect administrative fees and service charges
7 in connection with any agreement, contract or transaction relating to
8 the program;

9 (f) develop marketing plans and promotion materials;

10 (g) establish the methods by which the funds held in such accounts be
11 disbursed;

12 (h) establish the method by which funds shall be allocated to pay for
13 administrative costs; and

14 (i) do all things necessary and proper to carry out the purposes of
15 this article.

16 § 1254. Powers of the comptroller. 1. The comptroller may implement
17 the program through use of financial organizations as account deposito-
18 ries and managers. Under the program, an account owner may establish
19 accounts directly with an account depository.

20 2. The comptroller may solicit proposals from financial organizations
21 to act as depositories and managers of the program. Financial organiza-
22 tions submitting proposals shall describe the investment instrument
23 which will be held in accounts. The comptroller shall select as program
24 depositories and managers the financial organization, from among the
25 bidding financial organizations that demonstrates the most advantageous
26 combination, both to potential program participants and this state, of
27 the following factors:

28 (a) financial stability and integrity of the financial organization;

29 (b) the safety of the investment instrument being offered;

30 (c) the ability of the investment instrument to track increasing costs
31 of residential housing;

32 (d) the ability of the financial organization to satisfy recordkeeping
33 and reporting requirements;

34 (e) the financial organization's plan for promoting the program and
35 the investment it is willing to make to promote the program;

36 (f) the fees, if any, proposed to be charged to persons for opening
37 accounts;

38 (g) the minimum initial deposit and minimum contributions that the
39 financial organization will require;

40 (h) the ability of banking organizations to accept electronic with-
41 drawals, including payroll deduction plans; and

42 (i) other benefits to the state or its residents included in the
43 proposal, including fees payable to the state to cover expenses of oper-
44 ation of the program.

45 3. The comptroller may enter into a contract with a financial organ-
46 ization. Such financial organization management may provide one or more
47 types of investment instrument.

48 4. The comptroller may select more than one financial organization for
49 the program.

50 5. A management contract shall include, at a minimum, terms requiring
51 the financial organization to:

52 (a) take any action required to keep the program in compliance with
53 requirements of section twelve hundred fifty-five of this article and
54 any actions not contrary to its contract to manage the program to quali-
55 fy as a "first home savings account" under paragraph forty-eight of
56 subsection (c) of section six hundred twelve of the tax law;

1 (b) keep adequate records of each account, keep each account segre-
2 gated from each other account, and provide the comptroller with the
3 information necessary to prepare the statements required by section
4 twelve hundred fifty-five of this article;

5 (c) compile and total information contained in statements required to
6 be prepared under section twelve hundred fifty-five of this article and
7 provide such compilations to the comptroller;

8 (d) if there is more than one program manager, provide the comptroller
9 with such information necessary to determine compliance with section
10 twelve hundred fifty-five of this article;

11 (e) provide the comptroller or such comptroller's designee access to
12 the books and records of the program manager to the extent needed to
13 determine compliance with the contract;

14 (f) hold all accounts for the benefit of the account owner;

15 (g) be audited at least annually by a firm of certified public
16 accountants selected by the program manager and that the results of such
17 audit be provided to the comptroller;

18 (h) provide the comptroller with copies of all regulatory filings and
19 reports made by it during the term of the management contract or while
20 it is holding any accounts, other than confidential filings or reports
21 that will not become part of the program. The program manager shall make
22 available for review by the comptroller the results of any periodic
23 examination of such manager by any state or federal banking, insurance
24 or securities commission, except to the extent that such report or
25 reports may not be disclosed under applicable law or the rules of such
26 commission; and

27 (i) ensure that any description of the program, whether in writing or
28 through the use of any media, is consistent with the marketing plan as
29 developed pursuant to the provisions of section twelve hundred fifty-
30 three of this article.

31 6. The comptroller may provide that an audit shall be conducted of the
32 operations and financial position of the program depository and manager
33 at any time if the comptroller has any reason to be concerned about the
34 financial position, the recordkeeping practices, or the status of
35 accounts of such program depository and manager.

36 7. During the term of any contract with a program manager, the comp-
37 troller shall conduct an examination of such manager and its handling of
38 accounts. Such examination shall be conducted at least biennially if
39 such manager is not otherwise subject to periodic examination by the
40 superintendent of financial services, the federal deposit insurance
41 corporation or other similar entity.

42 8. (a) If selection of a financial organization as a program manager
43 or depository is not renewed, after the end of its term:

44 (i) accounts previously established and held in investment instruments
45 at such financial organization may be terminated;

46 (ii) additional contributions may be made to such accounts;

47 (iii) no new accounts may be placed with such financial organization;
48 and

49 (iv) existing accounts held by such depository shall remain subject to
50 all oversight and reporting requirements established by the comptroller.

51 (b) If the comptroller terminates a financial organization as a
52 program manager or depository, such comptroller shall take custody of
53 accounts held by such financial organization and shall seek to promptly
54 transfer such accounts to another financial organization that is
55 selected as a program manager or depository and into investment instru-
56 ments as similar to the original instruments as possible.

1 9. The comptroller may enter into such contracts as it deems necessary
2 and proper for the implementation of the program.

3 § 1255. Program requirements; first home savings account. 1. First
4 home savings accounts established pursuant to the provisions of this
5 article shall be governed by the provisions of this section.

6 2. A first home savings account may be opened by any person who
7 desires to save money for the payment of the qualified first home
8 purchase expenses of the account owner or designated beneficiary. An
9 account owner may designate another person as successor owner of the
10 account in the event of the death of the original account owner. Such
11 person who opens an account or any successor owner shall be considered
12 the account owner.

13 (a) An application for such account shall be in the form prescribed by
14 the program and contain the following:

15 (i) the name, address and social security number or employer identifi-
16 cation number of the account owner;

17 (ii) the designation of a designated beneficiary;

18 (iii) the name, address, and social security number of the designated
19 beneficiary; and

20 (iv) such other information as the program may require.

21 (b) The comptroller and the corporation may establish a nominal fee
22 for such application.

23 3. Any person, including the account owner, may make contributions to
24 the account after the account is opened.

25 4. Contributions to accounts may be made only in cash.

26 5. An account owner may withdraw all or part of the balance from an
27 account as authorized under rules governing the program. Such rules
28 shall include provisions that will generally enable the determination as
29 to whether a withdrawal is a nonqualified withdrawal or a qualified
30 withdrawal.

31 6. (a) An account owner may change the designated beneficiary of an
32 account in accordance with procedures established by the memorandum of
33 understanding pursuant to the provisions of section twelve hundred
34 fifty-three of this article.

35 (b) An account owner may transfer all or a portion of an account to
36 another first home savings account.

37 (c) Changes in designated beneficiaries and transfers under this
38 subdivision shall not be permitted to the extent that they would cause
39 all accounts for the same beneficiary to exceed the permitted aggregate
40 maximum account balance.

41 7. The program shall provide separate accounting for each designated
42 beneficiary.

43 8. No account owner or designated beneficiary of any account shall be
44 permitted to direct the investment of any contributions to an account or
45 the earnings thereon more than two times in any calendar year.

46 9. Neither an account owner nor a designated beneficiary may use an
47 interest in an account as security for a loan. Any pledge of an interest
48 in an account shall be of no force and effect.

49 10. The comptroller shall promulgate rules or regulations to prevent
50 contributions on behalf of a designated beneficiary in excess of an
51 amount that would cause the aggregate account balance for all accounts
52 for a designated beneficiary to exceed a maximum account balance, as
53 established from time to time by the comptroller.

54 11. Contributions to a first home savings account shall be limited to
55 one hundred thousand dollars per account. This amount shall not take

1 into consideration any gain or loss to the principal investment into the
2 account.

3 12. In the event that an individual makes a nonqualified withdrawal of
4 monies from the first home savings account such individual shall have
5 the entire account taxed, including any interest, as though it was
6 income at the account owner's federal tax rate in the tax years the
7 monies were withdrawn, and incur an additional ten percent state penalty
8 on the amount of earnings. In the event account owners or designated
9 beneficiary does not use the qualified residential housing as a primary
10 residence for a period of not less than two years after the purchase of
11 such housing, the account owner shall have the entire account taxed,
12 including any interest, as though it was ordinary income at the account
13 owner's federal tax rate in the tax years the monies were withdrawn and
14 incur an additional ten percent state penalty on the amount of earnings.
15 For purposes of this article, the two year period shall begin at the
16 time title is transferred to the first time home buyer. The penalty
17 shall be in addition to any taxes due pursuant to a non-qualified with-
18 drawal from a first home savings account.

19 13. Withdrawals from the account during a period of less than twelve
20 months from the date such account was created shall be considered a
21 nonqualified withdrawal.

22 14. Penalties may be waived by the commissioner if the individual can
23 show proof that the reason the individual did not use the qualified
24 residential housing as a primary residence for a period of two years or
25 more after the purchase or construction was due to either:

26 (a) an employment relocation outside the state and such relocation
27 required the individual to become a resident of another state;

28 (b) an unforeseeable emergency;

29 (c) an absence due to qualifying military service; or

30 (d) death.

31 For purposes of this subdivision, an "unforeseeable emergency" shall
32 mean a severe financial hardship resulting from illness, accident or
33 property loss to the account owner, or such account owner's dependents
34 resulting in circumstances beyond their control. The circumstances that
35 constitute an unforeseeable financial emergency will depend on the facts
36 of each case, however, withdrawal of account funds may not be made,
37 without penalty, to the extent that such hardship is or may be relieved
38 by either:

39 (i) reimbursement or compensation by insurance or otherwise; or

40 (ii) liquidation of the individual's assets to the extent the liqui-
41 dation of such assets would not itself cause severe financial hardship.

42 15. The commissioner and the comptroller are directed to promulgate
43 all rules and regulations necessary to implement the provisions of this
44 subdivision and are hereby directed to establish, supervise and regulate
45 first home savings accounts authorized to be created by this section.

46 16. (a) If there is any distribution from a first home savings account
47 to any individual or for the benefit of any individual during a calendar
48 year, such distribution shall be reported to the Internal Revenue
49 Service and the account owner, the designated beneficiary, or the
50 distributee to the extent required by federal law or regulation.

51 (b) Statements shall be provided to each account owner at least once
52 each year within sixty days after the end of the twelve month period to
53 which they relate. The statement shall identify the contributions made
54 during a preceding twelve month period, the total contributions made to
55 the account through the end of the period, the value of the account at
56 the end of such period, distributions made during such period and any

1 other information that the comptroller shall require to be reported to
2 the account owner.

3 (c) Statements and information relating to accounts shall be prepared
4 and filed to the extent required by federal and state tax laws.

5 17. An annual fee may be imposed upon the account owner for the main-
6 tenance of the account.

7 18. The program shall disclose the following information in writing to
8 each account owner of a first home savings account:

9 (a) the terms and conditions for establishing a first home savings
10 account;

11 (b) any restrictions on the substitution of beneficiaries;

12 (c) the person or entity entitled to terminate the first home savings
13 agreement;

14 (d) the period of time during which a beneficiary may receive benefits
15 under the first home savings agreement;

16 (e) the terms and conditions under which money may be wholly or
17 partially withdrawn from the program, including, but not limited to, any
18 reasonable charges and fees that may be imposed for withdrawal;

19 (f) the probable tax consequences associated with contributions to and
20 distributions from accounts; and

21 (g) all other rights and obligations pursuant to first home savings
22 agreements, and any other terms, conditions, and provisions deemed
23 necessary and appropriate by the terms of the memorandum of understand-
24 ing entered into pursuant to section twelve hundred fifty-three of this
25 article.

26 19. First home savings agreements shall be subject to section four-
27 teen-c of the banking law and the "truth-in-savings" regulations promul-
28 gated thereunder.

29 20. Nothing in this article or in any first home savings agreement
30 entered into pursuant to this article shall be construed as a guarantee
31 by the state that the account owner or designated beneficiary will qual-
32 ify for the purchase of a home.

33 21. To establish that an account owner or designated beneficiary is a
34 first time home buyer, the individual shall complete a form promulgated
35 by the comptroller certifying, under the penalties of perjury, that such
36 individual is a first time home buyer.

37 22. An individual must not intend to use any portion of the real prop-
38 erty purchased using the first home savings account funds in a trade or
39 business, or as a vacation home or as an investment, except as an owner
40 occupied multiple dwelling with no more than two rental units.

41 23. Monies withdrawn from first home savings accounts and any interest
42 which has accrued shall not be considered as taxable income to the
43 account owner for state personal income taxation purposes, so long as
44 the monies are applied for the purchase or construction of a qualified
45 first home purchase by the account owner or designated beneficiary of
46 the account.

47 § 1256. Program limitations; first home savings account. 1. Nothing in
48 this article shall be construed to:

49 (a) give any designated beneficiary any rights or legal interest with
50 respect to an account unless the designated beneficiary is the account
51 owner;

52 (b) guarantee that the account owner or designated beneficiary will be
53 financially qualified to purchase a home;

54 (c) create state residency for an individual merely because the indi-
55 vidual is a designated beneficiary; or

1 (d) guarantee that amounts saved pursuant to the program will be
2 sufficient to cover the down payment or closing costs pursuant to the
3 purchase of a qualified first home.

4 2. (a) Nothing in this article shall create or be construed to create
5 any obligation of the comptroller, the state, or any agency or instru-
6 mentality of the state to guarantee for the benefit of the account owner
7 or designated beneficiary with respect to:

8 (i) the rate of interest or other return on any account; and

9 (ii) the payment of interest or other return on any account.

10 (b) The comptroller by rule or regulation shall provide that every
11 contract, application, deposit slip or other similar document that may
12 be used in connection with a contribution to an account clearly indicate
13 that the account is not insured by the state and neither the principal
14 deposited nor the investment return is guaranteed by the state.

15 § 2. Subsection (b) of section 612 of the tax law is amended by adding
16 a new paragraph 44 to read as follows:

17 (44) (A) Excess distributions received during the taxable year by a
18 distributee of a first home savings account established under the New
19 York state first home savings program provided for under article twen-
20 ty-eight of the private housing finance law, to the extent such excess
21 distributions are deemed attributable to the deductible contributions
22 under paragraph forty-eight of subsection (c) of this section.

23 (B) (i) The term "excess distributions" means distributions which are
24 not:

25 (I) qualified withdrawals within the meaning of subdivision ten of
26 section twelve hundred fifty-two of the private housing finance law;

27 (II) withdrawals made as a result of the death or disability of the
28 designated beneficiary within the meaning of subdivision eleven of
29 section twelve hundred fifty-two of such law; or

30 (III) transfers described in paragraph (b) of subdivision six of
31 section twelve hundred fifty-five of such law.

32 (ii) Excess distributions shall be deemed attributable to deductible
33 contributions to the extent the amount of any such excess distribution,
34 when added to all previous excess distributions from the account,
35 exceeds the aggregate of all nondeductible contributions to the account.

36 § 3. Subsection (c) of section 612 of the tax law is amended by adding
37 two new paragraphs 48 and 49 to read as follows:

38 (48) Contributions made during the taxable year by an account owner to
39 a first home savings account established under the New York state first
40 home savings program provided for under article twenty-eight of the
41 private housing finance law, to the extent not deductible or eligible
42 for credit for federal income tax purposes, provided, however, the
43 exclusion provided for in this paragraph shall not exceed five thousand
44 dollars for an individual or head of household, and for married couples
45 who file joint tax returns, shall not exceed ten thousand dollars;
46 provided, further that such exclusion shall be available only to the
47 account owner and not to any other person. A taxpayer with an adjusted
48 gross income in excess of two hundred fifty percent of the area median
49 income as defined by the U.S. Department of Housing and Urban Develop-
50 ment shall not be eligible for the tax deduction pursuant to this
51 section.

52 (49) Distributions from a first home savings account established under
53 the New York state first home savings program provided for under article
54 twenty-eight of the private housing finance law, to the extent includi-
55 ble in gross income for federal income tax purposes.

§ 4. This act shall take effect on the one hundred eightieth day after it shall have become a law, and shall apply to taxable years commencing on or after the first of January next succeeding the date on which it shall have become a law; provided, however, that effective immediately, the commissioner of taxation and finance and the comptroller are authorized to promulgate any rules or regulations necessary to implement the provisions of this act on its effective date on or before such date.

PART R

Section 1. The private housing finance law is amended by adding a new article 29-A to read as follows:

ARTICLE XXIX-AAFFORDABLE INDEPENDENT SENIOR HOUSING ASSISTANCE PROGRAMSection 1265. Affordable independent senior housing assistance program.

§ 1265. Affordable independent senior housing assistance program. 1. Establishment. The commissioner, in conjunction with the commissioner of health, shall develop an affordable independent senior housing assistance program, which shall provide grants within amounts appropriated or otherwise available therefor to affordable independent senior housing properties to establish and operate resident assistance programs. The grants shall be distributed by the commissioner of health.

2. Definitions. For purposes of this article, the following terms shall have the following meanings: (a) "affordable independent senior housing property" shall mean apartment buildings or apartment complexes occupied by individuals over sixty years of age, who live independently and at least eighty percent of whom have a total household income that does not exceed sixty percent of the area median income; and

(b) "resident assistance" shall mean support offered to residents of affordable independent senior housing properties to help promote healthy living by extending independence and improving quality of life.

3. Assistance. Resident assistance shall be determined by the commissioner of health; provided however, that the provision of such assistance shall not include any services or assistance that requires the property to be licensed as an adult care facility pursuant to article seven of the social services law or an assisted living residence pursuant to article forty-six-B of the public health law. Prior to issuing any grants pursuant to this article, the department of health shall solicit input from various stakeholders to determine what would constitute assistance to ensure that such assistance would not require such licensure. A summary of such input and the determination by the department of health as to whether the assistance provided by the grant applicant would require licensure as an adult care facility or assisted living residence shall be in writing and shared with the various stakeholders prior to the approval of any grants pursuant to this section.

4. Allocation. Sixty percent of the total funds awarded pursuant to this article in any fiscal year shall be allocated to projects located in urban areas of the state, as such term is defined in subdivision four of section twelve hundred thirty-one of this chapter. Forty percent of the total funds awarded pursuant to this article in any fiscal year shall be allocated to projects located in rural areas of the state, as such term is defined in subdivision three of section twelve hundred thirty-one of this chapter. Any funds appropriated or otherwise available therefor for the program may be transferred to the department of health. A portion of any amounts appropriated or otherwise available

therefor may be used by the commissioner of health to administer the program.

§ 2. This act shall take effect immediately.

PART S

Section 1. Paragraph (b) of subdivision 2 of section 576-d of the private housing finance law, as amended by section 1 of part S of chapter 56 of the laws of 2020, is amended to read as follows:

(b) the total amount of loans made to any single agricultural producer shall not exceed [~~two~~] four hundred thousand dollars per annum;

§ 2. This act shall take effect immediately.

PART T

Section 1. The private housing finance law is amended by adding a new article 33 to read as follows:

ARTICLE XXXIII

MOBILE AND MANUFACTURED HOME REPLACEMENT PROGRAM

Section 1300. Statement of legislative findings and purpose.

1301. Definitions.

1302. Mobile and manufactured home replacement contracts.

§ 1300. Statement of legislative findings and purpose. The legislature hereby finds and declares that there exists in New York state a serious need to eliminate older, dilapidated mobile and manufactured homes and replace them with new manufactured, modular or site-built homes. Older mobile or manufactured home units with rusted, leaking metal roofs, metal-framed windows with interior take-out storms, and metal siding, are just some of the examples of those that most need replacement. No matter the amount of rehabilitation investment, the end result is unsatisfactory in terms of longevity, energy efficiency and affordability. The legislature therefore finds that the state should establish a program to fund the replacement of mobile or manufactured homes with new affordable and energy efficient manufactured, modular or site-built homes.

§ 1301. Definitions. For the purposes of this article the following terms shall have the following meanings:

1. "Corporation" shall mean the housing trust fund corporation established in section forty-five-a of this chapter.

2. "Dilapidated" shall mean a housing unit that does not provide safe and adequate shelter, and in its present condition endangers the health, safety or well-being of the occupants. Such a housing unit shall have one or more critical defects, or a combination of intermediate defects in sufficient number or extent to require considerable repair or rebuilding. Such defects may involve original construction, or they may result from continued neglect or lack of repair or from serious damage to the structure.

3. "Eligible applicant" shall mean a unit of local government or a not-for-profit corporation in existence for a period of one or more years prior to application, which is, or will be at the time of award, incorporated under the not-for-profit corporation law and has substantial experience in affordable housing.

4. "Eligible property" shall mean a mobile or manufactured home that is the primary residence of a homeowner with a total household income that does not exceed eighty percent of area median income for the county

1 in which a project is located as calculated by the United States depart-
2 ment of housing and urban development.

3 5. "Manufactured home" shall have the same meaning as is set forth for
4 such term in subdivision seven of section six hundred one of the execu-
5 tive law.

6 6. "Mobile and manufactured home replacement program" or "program"
7 shall mean a proposal by an eligible applicant for the replacement of a
8 dilapidated mobile or manufactured home with a new manufactured, modular
9 or site-built home. All replacement homes shall be energy star rated for
10 energy efficiency.

11 7. "Modular home" shall have the same meaning as is set forth for such
12 term in paragraph thirty-three of subdivision (b) of section eleven
13 hundred one of the tax law.

14 8. "Site-built home" shall mean a structure built on-site using build-
15 ing materials delivered to the site, even if some of such materials were
16 manufactured, produced or assembled off-site such as, by way of example
17 and not by way of limitation, concrete blocks, windows, door units, wall
18 or roof panels, trusses and dormers.

19 § 1302. Mobile and manufactured home replacement contracts. 1. Grants.
20 Within the limit of funds available in the mobile and manufactured home
21 replacement program, the corporation is hereby authorized to enter into
22 contracts with eligible applicants to provide grants, which shall be
23 used to establish programs to provide assistance to eligible property
24 owners to replace dilapidated mobile or manufactured homes in the state.

25 2. Program criteria. The corporation shall develop procedures, crite-
26 ria and requirements related to the application and award of projects
27 pursuant to this section which shall include: eligibility, market
28 demand, feasibility and funding criteria; the funding determination
29 process; supervision and evaluation of contracting applicants; report-
30 ing, budgeting and record-keeping requirements; provisions for modifica-
31 tion and termination of contracts; and such other matters not inconsis-
32 ent with the purposes and provisions of this article as the corporation
33 shall deem necessary or appropriate.

34 3. Contract limitations. The total contract pursuant to any one eligi-
35 ble applicant in a specified region shall not exceed seven hundred fifty
36 thousand dollars and the contract shall provide for completion of the
37 program within a reasonable period, as specified therein, which shall
38 not in any event exceed four years from commencement of the program.
39 Upon request, the corporation may extend the term of the contract for up
40 to an additional one year period for good cause shown by the eligible
41 applicant.

42 4. Planning and administrative costs. The corporation shall authorize
43 the eligible applicant to spend ten percent of the contract amount for
44 approved planning and administrative costs associated with administering
45 the program.

46 5. The corporation shall require that, in order to receive a grant
47 pursuant to this article, the eligible property owner shall have no
48 liens on the land after closing the grant other than the new home
49 financing and currently existing mortgage or mortgages, and all property
50 taxes and insurances must be current.

51 6. Assistance. Financial assistance to eligible property owners shall
52 be one hundred percent grants in the form of deferred payment loans
53 (hereinafter referred to in this subdivision as "DPL"). A ten year
54 declining balance lien using a security instrument as required by the
55 corporation, will be utilized for replacement projects. No interest or
56 payments will be required on the DPL unless the property is sold or

1 transferred before the regulatory term expires. In such cases funds will
2 be recaptured from the proceeds of the sale of the home, on a declining
3 balance basis, unless an income-eligible immediate family member accepts
4 ownership of, and resides in the new replacement home for the remainder
5 of the regulatory term. In addition the mobile and manufactured home
6 replacement program established by this article shall: (a) provide funds
7 for relocation assistance to homeowners who are unable to voluntarily
8 relocate during the demolition and construction phases of the project;
9 and (b) provide funding for the costs of demolishing and disposing of
10 the dilapidated home.

11 7. Homeownership training. The eligible property owner must agree to
12 attend an approved homeownership training program for post-purchase,
13 credit/budget, and home maintenance counseling as part of the applica-
14 tion process.

15 8. Funding criteria. The total payment pursuant to any one grant
16 contract shall not exceed two hundred thousand dollars and the contract
17 shall provide for completion of the program within a reasonable period,
18 as specified therein, not to exceed four years.

19 9. Funding and annual report. The corporation in its sole discretion
20 shall authorize all funding decisions and make all award announcements.
21 The corporation shall, on or before December thirty-first in each year
22 submit a report to the legislature on the implementation of this arti-
23 cle. Such report shall include, but not be limited to, for each award
24 made to a grantee under this article: a description of such award;
25 contract amount and cumulative total; and such other information as the
26 corporation deems pertinent.

27 § 2. This act shall take effect immediately.

28 PART U

29 Section 1. The social services law is amended by adding a new article
30 9 to read as follows:

31 ARTICLE 9

32 2-1-1 ESSENTIAL COMMUNITY SERVICES HOTLINE SYSTEM

33 Section 467. Definitions.

34 467-a. Oversight of the 2-1-1 essential community services
35 hotline system.

36 467-b. Availability and scope of information.

37 467-c. Responsibilities of 2-1-1 call centers.

38 467-d. Reporting.

39 § 467. Definitions. As used in this article:

40 1. "2-1-1 essential community services hotline system" or "2-1-1"
41 means the three digit phone number designated by the federal communi-
42 cations commission for the purpose of connecting individuals and fami-
43 lies with community resource and referral services.

44 2. "2-1-1 call center" means a center receiving calls from 2-1-1 oper-
45 ated by 2-1-1 New York, the not-for-profit organization designated for
46 such purpose by the public service commission in two thousand ten.

47 3. "Community resource specialist" means an individual employed by a
48 2-1-1 call center, who has trained in quality indicators for profes-
49 sional information and referrals and received an accreditation from
50 Inform USA, or its successor organization, to assist individuals with
51 help finding community resources and other service-related needs.

1 including during times of crisis, a natural disaster or other weather-
2 related events.

3 § 467-a. Oversight of the 2-1-1 essential community services hotline
4 system. The office of children and family services shall have oversight
5 of the 2-1-1 essential community services hotline system and shall
6 designate 2-1-1 New York, the not-for-profit organization designated by
7 the public service commission in two thousand ten, to operate such
8 hotline system, within amounts appropriated.

9 § 467-b. Availability and scope of information. 1. 2-1-1 shall be
10 available statewide, twenty-four hours a day, seven days a week and
11 shall provide a language assistance line to assist limited and non-Engl-
12 ish language speakers.

13 2. Community resource specialists shall provide community resource and
14 referral information for at least the following services, as needed:

15 a. basic human needs, such as food and clothing banks, temporary hous-
16 ing assistance, including emergency housing assistance, rent and utility
17 assistance, the supplemental nutrition assistance program (SNAP), the
18 special supplemental nutrition program for women, infants and children
19 (WIC) and other public benefit programs;

20 b. physical and behavioral health resources, such as health insurance
21 programs including, but not limited to, medicaid, medicare, the essen-
22 tial plan and child health plus, maternal health resources, behavioral
23 health services, crisis intervention services and, if appropriate,
24 transferring individuals to the 9-8-8 suicide prevention and behavioral
25 health crisis hotline or the 9-1-1 emergency response system;

26 c. work support, such as job training programs or education and liter-
27 acy assistance, tax preparation, and transportation programs;

28 d. children, youth and family support, including child care, after-
29 school programs and summer camps, family resource centers, mentoring and
30 child protective services;

31 e. support for older adults and persons with disabilities, including
32 community and medically tailored meals, respite care, home health care,
33 transportation services and adult protective services; and

34 f. access services for limited and non-English speakers, such as
35 translation and interpretation services.

36 § 467-c. Responsibilities of 2-1-1 call centers. 2-1-1 call centers
37 shall be responsible for:

38 1. maintaining an up-to-date database of providers and services avail-
39 able in the community, that is validated annually to ensure accurate
40 information;

41 2. ensuring individuals can access 2-1-1 through various platforms,
42 including via telephone, text or the internet; and

43 3. accepting calls from and coordinating with the 9-8-8 suicide
44 prevention and behavioral health crisis hotline and the 9-1-1 emergency
45 response system, as appropriate.

46 § 467-d. Reporting. 1. The office of children and family services, in
47 consultation with 2-1-1 New York, shall establish a comprehensive list
48 of reporting metrics regarding the use of 2-1-1, which shall include,
49 but not be limited to:

50 a. the total number of requests for assistance statewide, as well as
51 by region, that 2-1-1 call centers receive annually;

52 b. the categories of services and referrals that are requested each
53 year; and

54 c. the average length of time taken to respond to each request for
55 assistance and the aggregate number of call abandonments for the year.

2. The office of children and family services shall compile an annual report on the data collected pursuant to subdivision one of this section and shall submit such report to the governor, the temporary president of the senate, the speaker of the assembly, the minority leader of the senate, and the minority leader of the assembly, annually, beginning no later than April first, next succeeding the effective date of this section.

§ 2. Paragraph 5 of subdivision (c) of section 36.03 of the mental hygiene law, as added by section 2 of part EE of chapter 57 of the laws of 2022, is amended to read as follows:

(5) A designated hotline center shall ensure coordination between the 9-8-8 crisis hotline centers, 9-1-1, behavioral health crisis services, the 2-1-1 essential community services hotline system, and, when appropriate, other specialty behavioral health warm lines and hotlines and other emergency services. If a law enforcement, medical, or fire response is also needed, 9-8-8 and 9-1-1 operators shall coordinate the simultaneous deployment of those services with mobile crisis services.

§ 3. This act shall take effect on the one hundred twentieth day after it shall have become a law.

PART V

Section 1. Section 602 of the education law is amended by adding a new subdivision 5 to read as follows:

5. The commissioner shall promulgate rules and regulations allowing for students enrolled in an approved postsecondary education experience or transition program to receive financial assistance from the tuition assistance program.

§ 2. Section 667 of the education law is amended by adding a new subdivision 4 to read as follows:

4. Postsecondary education experience or transition programs. a. Notwithstanding subdivisions one, two and three of this section, the president shall make awards to students with intellectual disabilities in approved postsecondary education experience or transition programs in the same manner as students enrolled in an approved program at a degree-granting institution including the same income limits and awards for each year.

b. An approved postsecondary education experience or transition program shall:

- (i) serve students with intellectual disabilities;
- (ii) provide individual supports and services for the academic and social inclusion of students with intellectual disabilities in academic courses, extracurricular activities, and other aspects of the institution of higher education's regular postsecondary program;
- (iii) provide a focus on:
 - (A) academic enrichment;
 - (B) socialization;
 - (C) independent living skills, including self-advocacy skills; and
 - (D) integrated work experiences and career skills that lead to gainful employment;
- (iv) integrate person-centered planning in the development of the course of study for each student with an intellectual disability;
- (v) create and offer a meaningful credential for students with intellectual disabilities upon the completion of the postsecondary education experience or transition program; and

1 (vi) be a federally approved comprehensive transition and postsec-
2 dary program.

3 c. For the purposes of this subdivision, "students with intellectual
4 disabilities" shall mean a student with an impairment of general intel-
5 lectual functioning or adaptive behavior which constitutes a substantial
6 handicap to the student's ability to function normally in society and
7 which has originated at any point in the student's life.

8 § 3. This act shall take effect immediately.

9 PART W

10 Section 1. Paragraph b of subdivision 2 of section 679-e of the
11 education law, as amended by section 1 of part VV of chapter 56 of the
12 laws of 2009, is amended to read as follows:

13 b. "Eligible period" means the ~~[six-year]~~ eight-year period after
14 completion of the ~~[third]~~ second year and before the commencement of the
15 ~~[tenth]~~ eleventh year of employment as an eligible attorney. For
16 purposes of this section, all periods of time during which an admitted
17 attorney was employed as an eligible attorney and all periods of time
18 during which a law school graduate awaiting admission to the New York
19 state bar was employed by a prosecuting ~~[or]~~ agency, criminal defense
20 agency, or non-profit indigent civil legal services corporation as
21 permitted by section four hundred eighty-four of the judiciary law shall
22 be combined.

23 § 2. Paragraph d of subdivision 2 of section 679-e of the education
24 law, as amended by section 1 of part VV of chapter 56 of the laws of
25 2009, is amended to read as follows:

26 d. "Year of qualified service" means the twelve month period measured
27 from the anniversary of the attorney's employment as an eligible attor-
28 ney, or as a law school graduate awaiting admission to the New York
29 state bar employed by a prosecuting ~~[or]~~ agency, criminal defense
30 agency, or non-profit indigent civil legal services corporation as
31 permitted by section four hundred eighty-four of the judiciary law,
32 adjusted for any interruption in employment. Vacation or leave time
33 provided by the employer or leave taken for a condition that is a quali-
34 fying reason for leave under the Family and Medical Leave Act of 1993,
35 29 U.S.C. 2612(a)(1) and (3) shall not be considered an interruption in
36 qualifying employment. Any period of ~~[temporary leave from service]~~
37 interruption in qualifying employment taken by an eligible attorney
38 shall not be considered in the calculation of qualified service. Howev-
39 er, the period of ~~[temporary leave shall be considered an]~~
40 interruption in qualifying employment and the calculation of the time period of qual-
41 ified service shall recommence when the eligible attorney returns to
42 ~~[full-time]~~ service.

43 § 3. Paragraph a of subdivision 3 of section 679-e of the education
44 law, as amended by section 1 of part VV of chapter 56 of the laws of
45 2009, is amended to read as follows:

46 a. An eligible attorney may apply for reimbursement after the
47 completion of each year of qualified service provided however that
48 reimbursement to each eligible attorney shall not exceed ~~[three thousand~~
49 ~~four hundred]~~ eight thousand dollars, per qualifying year, subject to
50 appropriations available therefor. The president may establish: (i) an
51 application deadline and (ii) a method of selecting recipients if in any
52 given year there are insufficient funds to cover the needs of all the
53 applicants. Awards shall be within the amounts appropriated for such
54 purpose and based on availability of funds.

§ 4. Paragraph b of subdivision 3 of section 679-e of the education law, as amended by section 1 of part VV of chapter 56 of the laws of 2009, is amended to read as follows:

b. An eligible attorney may apply after the completion of the ~~fourth~~ second year of qualified service, and annually thereafter after the completion of the ~~fifth~~ third through ~~ninth~~ eleventh year of qualified service, and may seek a student loan expense grant for only the previous year of qualified service within the time periods prescribed by the president. An eligible attorney may receive student loan expense grants for no more than ~~six~~ eight years of qualified service within an eligible period.

§ 5. This act shall take effect April 1, 2027. Nothing in this act shall be implemented in a manner that diminishes the current award or status of eligible attorneys currently participating in the program.

PART X

Section 1. Paragraph h of subdivision 2 of section 355 of the education law is amended by adding a new subparagraph 12 to read as follows:

(12) (i) Beginning in the two thousand twenty-six--two thousand twenty-seven academic year, all current and future mandatory university fees, with the exclusion of the graduate student association student activity fee, shall be charged to a state university of New York graduate student serving a full-time or half-time appointment as a graduate teaching assistant, graduate assistant, graduate research assistant, graduate research associate, or graduate teaching associate at the rate of twenty-five percent of all mandatory university fees, with the exclusion of the graduate student association student activity fee.

(ii) Beginning in the two thousand twenty-seven--two thousand twenty-eight academic year and thereafter, no mandatory university fees shall be charged, with the exclusion of the graduate student association student activity fee.

§ 2. Section 6206 of the education law is amended by adding a new subdivision 25 to read as follows:

25. a. Beginning in the two thousand twenty-six--two thousand twenty-seven academic year, all current and future mandatory university fees, with the exclusion of the graduate student association student activity fee, shall be charged to a city university of New York graduate student serving as a graduate assistant, adjunct instructor, adjunct lecturer, adjunct college laboratory technician or a non-teaching adjunct staff member at the rate of twenty-five percent of all mandatory university fees, with the exclusion of the graduate student association student activity fee.

b. Beginning in the two thousand twenty-seven--two thousand twenty-eight academic year and thereafter, no mandatory university fees shall be charged, with the exclusion of the graduate student association student activity fee.

§ 3. This act shall take effect immediately.

PART Y

Section 1. Subdivision 3 of section 667 of the education law, as added by chapter 83 of the laws of 1995, paragraph a as amended by section 1 and subparagraph (iv) of paragraph b as amended by section 3 of part B of chapter 60 of the laws of 2000, clause (A) of subparagraph (i) of paragraph a as amended by section 1 and subparagraphs (i) and (ii) of

paragraph b as amended by section 2 of part DD of chapter 56 of the laws of 2021, subparagraphs (ii), (iii) and (vi) of paragraph a as amended and paragraph (vii) as added by section 1 of part X of chapter 56 of the laws of 2024, and paragraph c as relettered by section 2 of part J of chapter 58 of the laws of 2011 and paragraph b as amended by chapter 309 of the laws of 1996, is amended to read as follows:

3. Tuition assistance program awards.

a. Amount. The president shall make awards to students enrolled in degree-granting institutions or registered not-for-profit business schools qualified for tax exemption under § 501(c)(3) of the internal revenue code for federal income tax purposes in the following amounts:

(i) For each year of undergraduate study, assistance shall be provided as computed on the basis of the amount which is the lesser of the following:

~~(A) [(1) In the case of students who have not been granted an exclusion of parental income, who have qualified as an orphan, foster child, or ward of the court for the purposes of federal student financial aid programs authorized by Title IV of the Higher Education Act of 1965, as amended, or had a dependent for income tax purposes during the tax year next preceding the academic year for which application is made, except for those students who have been granted exclusion of parental income who have a spouse but no other dependent:~~

~~(a)]~~ Five thousand dollars, except starting in two thousand fourteen--two thousand fifteen such students shall receive five thousand one hundred sixty-five dollars, and except starting in two thousand twenty-one--two thousand twenty-two and thereafter such students shall receive five thousand six hundred sixty-five dollars, provided however that nothing herein shall be construed as increasing any award made pursuant to this section for an academic year prior to two thousand twenty-one--two thousand twenty-two; or

~~[(b)]~~ (B) For undergraduate students enrolled in a program of study at a non-public degree-granting institution that does not offer a program of study that leads to a baccalaureate degree, or at a registered not-for-profit business school qualified for tax exemption under section 501(c)(3) of the internal revenue code for federal income tax purposes that does not offer a program of study that leads to a baccalaureate degree, four thousand dollars, except starting in two thousand twenty-one--two thousand twenty-two and thereafter such students shall receive four thousand five hundred dollars. Provided, however, that this ~~[subitem]~~ clause shall not apply to students enrolled in a program of study leading to a certificate or degree in nursing~~[-]; or~~

~~[(2) In the case of students receiving awards pursuant to subparagraph (iii) of this paragraph and those students who have been granted exclusion of parental income who have a spouse but no other dependent beginning in the two thousand twenty-one--two thousand twenty-two academic year and thereafter, three thousand five hundred twenty-five dollars, provided that nothing herein shall be construed as increasing any award made for any prior academic year; or~~

~~(B)]~~ (C) (1) Ninety-five percent of the amount of tuition (exclusive of educational fees) charged and, if applicable, the college fee levied by the state university of New York pursuant to the April first, nineteen hundred sixty-four financing agreement with the New York state dormitory authority.

(2) For the two thousand one--two thousand two academic year and thereafter one hundred percent of the amount of tuition (exclusive of educational fees) charged and, if applicable, the college fee levied by the

1 state university of New York pursuant to the April first, nineteen
 2 hundred sixty-four financing agreement with the New York state dormitory
 3 authority.

4 (ii) [~~Except for students as noted in subparagraph (iii) of this para-~~
 5 ~~graph, the~~] **The** base amount as determined from subparagraph (i) of this
 6 paragraph, shall be reduced in relation to income as follows:

7 Amount of income	Schedule of reduction
8	of base amount
9 (A) Less than seven thousand	None
10 dollars	
11 (B) Seven thousand dollars or	Seven per centum of excess
12 more, but less than eleven	over seven thousand dollars
13 thousand dollars	
14 (C) Eleven thousand dollars or	Two hundred eighty dollars
15 more, but less than eighteen	plus ten per centum of excess
16 thousand dollars	over eleven thousand dollars
17 (D) Eighteen thousand dollars or	Nine hundred eighty dollars
18 more, but not more than one	plus twelve per centum of
19 hundred twenty-five	excess over eighteen
20 thousand dollars	thousand dollars

21 (iii) [~~(A) For students who have been granted exclusion of parental~~
 22 ~~income and were single with no dependent for income tax purposes during~~
 23 ~~the tax year next preceding the academic year for which application is~~
 24 ~~made, the base amount, as determined in subparagraph (i) of this para-~~
 25 ~~graph, shall be reduced in relation to income as follows:~~

26 ~~Amount of income~~ ~~Schedule of reduction~~
 27 ~~of base amount~~

28 ~~(1) Less than three thousand~~ ~~None~~
 29 ~~dollars~~
 30 ~~(2) Three thousand dollars or~~ ~~Thirty-one per centum of~~
 31 ~~more, but not more than thirty~~ ~~amount in excess of three~~
 32 ~~thousand dollars~~ ~~thousand dollars~~

33 ~~(B) For those students who have been granted exclusion of parental~~
 34 ~~income who have a spouse but no other dependent, for income tax purposes~~
 35 ~~during the tax year next preceding the academic year for which~~
 36 ~~application is made, the base amount, as determined in subparagraph (i)~~
 37 ~~of this paragraph, shall be reduced in relation to income as follows:~~

38 ~~Amount of income~~ ~~Schedule of reduction~~
 39 ~~of base amount~~

40 ~~(1) Less than seven thousand~~ ~~None~~
 41 ~~dollars~~
 42 ~~(2) Seven thousand dollars or~~ ~~Seven per centum of excess~~
 43 ~~more, but less than eleven~~ ~~over seven thousand dollars~~
 44 ~~thousand dollars~~
 45 ~~(3) Eleven thousand dollars or~~ ~~Two hundred eighty dollars~~
 46 ~~more, but less than eighteen~~ ~~plus ten per centum of excess~~
 47 ~~thousand dollars~~ ~~over eleven thousand dollars~~
 48 ~~(4) Eighteen thousand dollars or~~ ~~Nine hundred eighty dollars~~

~~more, but not more than sixty plus twelve per centum of
thousand dollars excess over eighteen
thousand dollars~~

(iv)] If the amount of reduction is not a whole dollar, it shall be reduced to the next lowest whole dollar. In the case of any student who has received four or more payments pursuant to any and all awards provided for in this subdivision, for the two thousand--two thousand one academic year the base amount shall be reduced by an additional one hundred fifty dollars for the two thousand one--two thousand two academic year and thereafter the base amount shall be reduced by an additional one hundred dollars.

[~~(v)~~] (iv) The award shall be the net amount of the base amount determined pursuant to subparagraph (i) of this paragraph reduced pursuant to subparagraph (ii) [~~or (iii)~~] of this paragraph but the award shall not be reduced for the two thousand--two thousand one and two thousand one--two thousand two academic years below two hundred seventy-five dollars if the amount of income is eighty thousand dollars or less and more than seventy thousand dollars, three hundred twenty-five dollars if the amount of income is seventy thousand dollars or less and more than sixty thousand dollars and four hundred twenty-five dollars if the amount of income is sixty thousand dollars or less.

[~~(vi)~~] (v) For the two thousand two--two thousand three through two thousand twenty-three--twenty-four academic years, the award shall be the net amount of the base amount determined pursuant to subparagraph (i) of this paragraph reduced pursuant to subparagraph (ii) [~~or (iii)~~] of this paragraph but the award shall not be reduced below five hundred dollars.

[~~(vii)~~] (vi) For the two thousand twenty-four--two thousand twenty-five academic year and thereafter, the award shall be the net amount of the base amount determined pursuant to subparagraph (i) of this paragraph reduced pursuant to subparagraph (ii) [~~or (iii)~~] of this paragraph but the award shall not be reduced below one thousand dollars.

b. Amount. The president shall make awards to students enrolled in two year programs offered in registered private business schools except for registered not-for-profit business schools qualified for tax exemption under section 501(c)(3) of the internal revenue code for federal income tax purposes in the following amounts:

(i) For each year of study, assistance shall be provided as computed on the basis of the amount which is the lesser of the following:

(A) [~~(1)~~] one thousand three hundred dollars[, ~~or (2) for students receiving awards pursuant to subparagraph (iii) of this paragraph, one thousand one hundred forty dollars~~]; or

(B) (1) Ninety-five percent of the amount of tuition (exclusive of educational fees) charged.

(2) For the two thousand one--two thousand two academic year and thereafter one hundred percent of the amount of tuition (exclusive of educational fees).

(ii) [~~Except for students as noted in subparagraph (iii) of this paragraph, the~~] The base amount as determined in subparagraph (i) of this paragraph, shall be reduced in relation to income as follows:

Amount of income	Schedule of reduction of base amount
------------------	---

(A) Less than seven thousand	None
------------------------------	------

1 dollars
 2 (B) Seven thousand dollars or Seven per centum of the excess
 3 more, but less than eleven over seven thousand dollars
 4 thousand dollars

5 (iii) ~~[For students who have been granted exclusion of parental income~~
 6 ~~and were single with no dependent for income tax purposes during the tax~~
 7 ~~year next preceding the academic year for which application is made, the~~
 8 ~~base amount, as determined in subparagraph (i) of this paragraph, shall~~
 9 ~~be reduced in relation to income as follows:~~

10 ~~Amount of income~~ ~~Schedule of reduction of~~
 11 ~~base amount~~

12 ~~(A) Less than three thousand~~ ~~None~~
 13 ~~dollars~~

14 ~~(B) Three thousand dollars or~~ ~~Thirty one per centum of the ex-~~
 15 ~~cess over three thousand dollars~~
 16 ~~more, but not more than ten~~
 17 ~~thousand dollars~~

18 (iv)] If the amount of reduction is not a whole dollar, it shall be
 19 reduced to the next lowest whole dollar. In the case of any student who
 20 has received four or more payments pursuant to any and all awards
 21 provided for in this subdivision, for the two thousand--two thousand one
 22 academic year the base amount shall be reduced by an additional one
 23 hundred fifty dollars for the two thousand one--two thousand two academ-
 24 ic year and thereafter the base amount shall be reduced by an additional
 25 one hundred dollars.

26 [(v)] (iv) The award shall be the net amount of the base amount deter-
 27 mined pursuant to subparagraph (i) of this paragraph reduced pursuant to
 28 subparagraph (ii) ~~[or (iii)]~~ of this paragraph but the award shall not
 29 be reduced below one hundred dollars. If the income exceeds the maximum
 30 amount of income allowable under subparagraph (ii) ~~[or (iii)]~~ of this
 31 paragraph, no award shall be made.

32 c. Restrictions. In no ~~[even shall]~~ event shall any award:

33 (i) be made unless the annual tuition (exclusive of educational fees)
 34 and, if applicable, the college fee levied by the state university of
 35 New York pursuant to the April first, nineteen hundred sixty-four
 36 financing agreement with the New York state dormitory authority charged
 37 for the program in which the student is enrolled total at least two
 38 hundred dollars; or

39 (ii) exceed the amount by which such annual tuition (exclusive of
 40 educational fees) and, if applicable, the college fee levied by the
 41 state university of New York pursuant to the April first, nineteen
 42 hundred sixty-four financing agreement with the New York state dormitory
 43 authority exceed the total of all other state, federal, or other educa-
 44 tional aid that is received or receivable by such student during the
 45 school year for which such award is applicable and that, in the judgment
 46 of the commissioner, would duplicate the purposes of the award; or

47 (iii) be made when income exceeds the maximum income set forth in this
 48 subdivision. The commissioner shall list in his regulations all major
 49 state and federal financial aid available to New York state students and
 50 identify any forms of aid that are duplicative of the purposes of the
 51 tuition assistance program. For the purposes of this subdivision,
 neither United States war orphan educational benefits nor benefits under

1 the veterans' readjustment act of nineteen hundred sixty-six shall be
2 considered as federal or other educational aid.
3 § 2. This act shall take effect on the one hundred eightieth day after
4 it shall have become a law.

5 PART Z

6 Section 1. (a) There is hereby established a fiscal cliff task force
7 to study fiscal cliffs in the state's public assistance programs and
8 make recommendations on how to reduce and eliminate such fiscal cliffs.
9 For the purposes of this section, the term "fiscal cliff" shall mean a
10 sudden decrease in public benefits that can occur with a small increase
11 in earnings.

12 (b) (i) The task force shall consist of nineteen members, each to
13 serve for a term ending December 31, 2028. Such members shall be
14 appointed as follows: two members shall be appointed by the temporary
15 president of the senate; one member shall be appointed by the minority
16 leader of the senate; two members shall be appointed by the speaker of
17 the assembly; one member shall be appointed by the minority leader of
18 the assembly; five members shall be appointed by the governor; three
19 local social services district commissioners or their designees having
20 relevant experience in administering public benefits shall be appointed
21 by the governor, of which one district shall have five million or more
22 inhabitants; the commissioner of the office of temporary and disability
23 assistance or their designee; the commissioner of health or their designee; the commissioner of taxation and finance or their designee; the commissioner of the department of labor or their designee; the commissioner of the office of children and family services or their designee. Appointments shall be made within sixty days of the effective date of this section. Vacancies in the task force shall be filled in the manner provided for original appointments.

30 (ii) All appointments shall be coordinated to ensure geographic representation from the entire state.

32 (iii) The task force shall elect a chair, vice-chair, and other necessary officers from among all appointed members.

34 (iv) A majority of the members of the task force then in office shall constitute a quorum for the transaction of business or the exercise of any power or function of the task force. An act, determination or decision of the majority of the members present during the presence of a quorum shall be held to be the act, determination, or decision of the task force.

40 (v) The task force shall meet at least quarterly at the call of the chair. Meetings may be held via teleconference. Special meetings may be called by the chair at the request of a majority of the members of the task force.

44 (vi) Members of the task force shall receive no compensation for their services but shall be reimbursed for their actual expenses incurred in the performance of their duties in the work of the task force.

47 (c) The task force shall:

48 (i) conduct a study on the fiscal cliffs in the state. Such study shall include, but not be limited to: public assistance programs; the supplemental nutrition assistance program (SNAP); the home energy assistance program (HEAP); housing assistance; the child care tax credit and other tax credits; the school tax relief program (STAR) and other real property tax credits and reductions; Medicaid; NY state of health, the official health plan marketplace; child care subsidies tied to

1 income; cash benefits; effective tax rates; and any other program or
2 service provided by the state or any political subdivision thereof which
3 is tied to income;

4 (ii) study the causes and reasons why fiscal cliffs occur to individ-
5 uals on public benefits, including but not limited to, the impact of
6 current public assistance programs monetary allotments, asset tests,
7 asset limits, and income disregards, as well as how minimum wage and
8 other earnings may impact those receiving public benefits; and

9 (iii) recommend ways to reduce and/or eliminate fiscal cliffs includ-
10 ing, but not limited to, recommending program and policy modifications,
11 amendments to the law, including but not limited to possible changes in
12 calculating and paying the earned income tax credit or other tax cred-
13 its, changes to the New York codes, rules and regulations, and any other
14 recommendation the task force deems appropriate.

15 (d) The task force may, as it deems appropriate, request that studies,
16 surveys, or analyses relating to the task force's powers and duties be
17 performed by any state department, commission, agency or public authori-
18 ty. All state departments, commissions, agencies or public authorities
19 shall provide information and advice in a timely manner and otherwise
20 assist the task force with its work.

21 (e) The office of temporary and disability assistance shall provide
22 staff services to the task force and such other administrative assist-
23 ance as may be necessary for the task force to carry out its duties,
24 functions and powers.

25 (f) The task force shall make a preliminary report to the governor and
26 the legislature of its findings, conclusions, recommendations and activ-
27 ities already undertaken by the task force, not later than January 1,
28 2028, and a final report of its findings, conclusions, recommendations
29 and activities already undertaken by the task force, not later than
30 September 1, 2028 and shall submit with its reports legislative
31 proposals as it deems necessary to implement its recommendations.

32 § 2. This act shall take effect immediately and shall expire three
33 years after it shall have become a law when upon such date the
34 provisions of this act shall be deemed repealed.

35 PART AA

36 Section 1. Subdivision 1 of section 350 of the social services law is
37 amended by adding a new paragraph (c) to read as follows:

38 (c) In accordance with the regulations of the department approved by
39 the director of the budget, allowances granted under the provisions of
40 this title may include the costs of diapers for an eligible child, two
41 years of age or younger. Said allowances shall not exceed eighty
42 dollars, every three months, per eligible child.

43 § 2. This act shall take effect on the first of April next succeeding
44 the date on which it shall have become a law.

45 PART BB

46 Section 1. Short title. This act shall be known and may be cited as
47 the "shelter arrears eviction forestallment act".

48 § 2. The social services law is amended by adding a new section 131-cc
49 to read as follows:

50 § 131-cc. Shelter arrears eviction forestallment program. 1. (a) With-
51 in amounts appropriated therefor, the office of temporary and disability
52 assistance shall establish the shelter arrears eviction forestallment

1 program to provide emergency assistance for rent arrears for the
2 prevention of eviction due to nonpayment of rent or mortgage arrears,
3 homeowners' association fees, legal fees, or late fees if an applicant
4 can establish that such expenses are necessary to retain their housing.
5 Funds shall be allocated to social services districts with a population
6 of five million or fewer, for services and expenses related to the
7 payment of rent arrears necessary to retain housing and to households
8 that are in receipt of or who would be eligible for ongoing or emergency
9 public assistance pursuant to section one hundred thirty-one-a of this
10 title but have exhausted the allowable frequency of such payments
11 through the emergency safety net assistance or emergency assistance to
12 families programs. Each social services district to which funds are
13 allocated pursuant to this section shall use best efforts to make such
14 funds available to households for the purposes set forth in this
15 section.

16 (b) The office of temporary and disability assistance shall allocate
17 funding to social services districts with a population of five million
18 or fewer, with a methodology that shall consider the rate of eviction
19 filings and other indicators of need as determined by the office of
20 temporary and disability assistance.

21 (c) The office shall establish rules for the administration of the
22 program, including but not limited to:

23 (i) requiring payments shall not exceed a total of six months of
24 arrears in addition to payments previously made through the emergency
25 safety net assistance or emergency assistance to families programs;

26 (ii) providing that such payments shall not be limited by the shelter
27 allowance amount set forth in section one hundred thirty-one-a of this
28 title and shall not be part of the standard of need pursuant to such
29 section;

30 (iii) providing that funding allocated to social services districts
31 pursuant to this section shall not replace or reduce any other emergency
32 assistance allocations such districts would otherwise receive;

33 (iv) requiring program payments be made directly to the landlord or
34 property owner on behalf of a tenant. Tenants, landlords and property
35 managers shall be notified of any assistance provided under the program;

36 (v) providing that program payments may be issued to households who
37 are unable to reasonably demonstrate an ability to pay future shelter
38 expenses;

39 (vi) providing that districts may establish local criteria regarding
40 the use of their allocations and will maintain responsibility for not
41 exceeding their allocation issued pursuant to this section; and

42 (vii) providing that districts may elect to delegate the adminis-
43 tration of the program established pursuant to this section, in full or
44 in part, to another public agency, contractor or non-profit organiza-
45 tion.

46 2. In a form and manner prescribed by the office of temporary and
47 disability assistance, social services districts with a population of
48 five million or fewer shall submit annual reports to the office includ-
49 ing but not limited to the following information:

50 (a) the criteria used by such social services district to determine
51 program eligibility;

52 (b) the dollar value of arrears issued under the program; and

53 (c) basic demographic information on the households served including
54 but not limited to the:

55 (i) number of households served;

56 (ii) number of households served for multiple periods;

(iii) number and percentage of households with and without children;
(iv) number and percentage of households with an open public assistance (PA) case;
(v) age distribution of the primary tenant;
(vi) distribution of the number of children;
(vii) distribution of total payment amount; and
(viii) distribution of race and ethnicity.

3. The office of temporary and disability assistance shall submit a report to the governor, the temporary president of the senate, and the speaker of the assembly by the thirty-first of December of each year. Such report shall cover the twelve-month period ending on the thirtieth of September immediately preceding the date the report is due and shall include but not be limited to the information submitted pursuant to subdivision two of this section, in the aggregate for the state and for each county.

§ 3. This act shall take effect immediately.

PART CC

Section 1. The state finance law is amended by adding a new section 89-g to read as follows:

§ 89-g. Youth justice innovation fund. 1. A fund to be known as the "youth justice innovation fund" is hereby established in the custody of the state comptroller and the commissioner of taxation and finance.

2. The fund shall consist of fifty million dollars transferred to such account pursuant to a plan developed by the director of the budget from funds made available for the purposes of funding services for youth through the age of twenty-five, and any interest earnings which may accrue from the investment of monies in the fund. Nothing contained herein shall prevent the state from receiving grants, gifts or bequests for the purposes of the fund as defined in this section and depositing them into the fund according to law.

3. Monies of the fund shall be available to the division of criminal justice services and shall be provided to community-based organizations to be expended for services and programs with the purpose of youth development and preventing youth arrest and incarceration, including, but not limited to, those providing violence-prevention services for youth, alternatives to detention, placement and incarceration programs for youth, and reentry, education, and employment training and placement programs for youth through the age of twenty-five.

4. On or before the first day of March of each year, the director of the division of criminal justice services shall provide a written report to the temporary president of the senate, the speaker of the assembly, the minority leader of the senate, the minority leader of the assembly, the chair of the senate finance committee, the chair of the assembly ways and means committee, the chair of the senate committee on codes, the chair of the assembly committee on codes, the state comptroller, and the public. Such report shall include how the monies of the fund were utilized during the preceding calendar year, and shall include:

(a) the amount of money disbursed from the fund and the award process used for such disbursements;

(b) recipients of awards from the fund;

(c) the amount awarded to each recipient;

(d) the purposes for which such awards were granted; and

(e) a summary financial plan for such monies which shall include estimates of all receipts and all disbursements for the current and succeeding

1 ing fiscal years, along with the actual results from the prior fiscal
2 year.

3 5. Monies shall be payable from the fund on the audit and warrant of
4 the comptroller on vouchers approved and certified by the director of
5 the division of criminal justice services.

6 § 2. This act shall take effect immediately and shall apply to expend-
7 itures made on and after April 1, 2026.

8 PART DD

9 Section 1. Section 355 of the education law is amended by adding a new
10 subdivision 22 to read as follows:

11 22. The state university trustees shall adopt a policy for the
12 provision of emergency contraception available for purchase through at
13 least one vending machine, existing or new, located on each state-oper-
14 ated institution in the state university offering in-person student
15 instruction. The vending machine shall be located in a secure and
16 accessible area of campus. The location of the vending machine shall be
17 included on the institution's website.

18 (a) Emergency contraception made available through each vending
19 machine shall satisfy, at a minimum, all of the following requirements:

20 (i) The emergency contraception shall be sold only in the manufactur-
21 er's clearly labeled, original, unbroken, tamper-proof, and expiration-
22 dated packaging.

23 (ii) The emergency contraception may not be older than the manufactur-
24 er's expiration date.

25 (iii) The emergency contraception shall be stored in accordance with
26 manufacturer recommendations.

27 (b) For the purposes of this subdivision, the term "emergency contra-
28 ception" means over-the-counter medication to be self-administered that
29 is approved by the federal Food and Drug Administration that can signif-
30 icantly reduce the risk of pregnancy if taken within seventy-two hours
31 after unprotected sexual intercourse.

32 § 2. Section 6206 of the education law is amended by adding a new
33 subdivision 25 to read as follows:

34 25. The board of trustees shall adopt a policy requiring the provision
35 of emergency contraception available for purchase through at least one
36 vending machine, existing or new, located on each institution of the
37 city university of New York offering in-person student instruction. The
38 vending machine shall be located in a secure and accessible area of
39 campus. The location of the vending machine shall be included on the
40 institution's website.

41 (a) Emergency contraception made available through each vending
42 machine shall satisfy, at a minimum, all of the following requirements:

43 (i) The emergency contraception shall be sold only in the manufactur-
44 er's clearly labeled, original, unbroken, tamper-proof, and expiration-
45 dated packaging.

46 (ii) The emergency contraception may not be older than the manufactur-
47 er's expiration date.

48 (iii) The emergency contraception shall be stored in accordance with
49 manufacturer recommendations.

50 (b) For the purposes of this subdivision, the term "emergency contra-
51 ception" means over-the-counter medication to be self-administered that
52 is approved by the federal Food and Drug Administration that can signif-
53 icantly reduce the risk of pregnancy if taken within seventy-two hours
54 after unprotected sexual intercourse.

§ 3. This act shall take effect April 1, 2027. The boards of trustees for the state university of New York and the city university of New York shall adopt policies to implement the provisions of this act within 60 days after this act shall have become a law.

PART EE

Section 1. Section 6301 of the education law is amended by adding two new subdivisions 7 and 8 to read as follows:

7. "Emergency aid grant". A grant provided to an undergraduate student attending a community college, as defined in subdivision two of this section and subdivision two of section three hundred fifty of this chapter, and determined by such college to be eligible for such grant, who, due to unexpected or unforeseen events, requires financial assistance for expenses which may include but are not limited to food, clothing, housing, course materials, technology, transportation, medical expenses, or child care. An emergency aid grant shall not be used to pay outstanding tuition or fees or for the repayment of student loans.

8. "Emergency aid grant program". The program established pursuant to section sixty-three hundred twelve of this article wherein a community college provides emergency aid grants to students and for which the state provides annual matching funds to such college.

§ 2. The education law is amended by adding a new section 6312 to read as follows:

§ 6312. Emergency aid grant matching program. 1. Each community college established and operated pursuant to the provisions of this article shall establish an emergency aid grant program for students deemed eligible for such emergency aid. The state shall provide each community college an appropriation equal to one-half of all grants disbursed or to be disbursed in such program, provided that such appropriation shall not exceed twelve hundred fifty dollars per student who received or will receive an emergency aid grant and shall not exceed more than sixty-two thousand five hundred dollars per community college.

2. The board of trustees may establish requirements, as such board deems necessary, for community colleges to access the matching funds provided by the state pursuant to subdivision one of this section, provided that:

a. Emergency aid grants shall not be used to cover any outstanding tuition or fees owed to the state university of New York;

b. Emergency aid grants shall not be treated as income for the purposes of calculating financial aid offers or awards or when determining any expected student and/or family contribution; and

c. Community colleges shall demonstrate, to the satisfaction of the board, that, as a component of a campus emergency aid grant program, such college has other sufficient resources and services available to support students experiencing financial distress.

3. Within thirty days of the conclusion of every academic year, each community college shall submit the necessary data prescribed in section six hundred eighty-nine-b of this chapter to the New York state higher education services corporation for the purposes of the report required by such section.

§ 3. Section 350 of the education law is amended by adding two new subdivisions 14 and 15 to read as follows:

14. "Emergency aid grant" means a grant provided to an undergraduate student attending a state-operated institution, as defined in subdivision four of this section, and determined by such institution to be

1 eligible for such grant, who, due to unexpected or unforeseen events,
2 requires financial assistance for expenses which may include but are not
3 limited to food, clothing, housing, course materials, technology, trans-
4 portation, medical expenses, or child care. An emergency aid grant shall
5 not be used to pay outstanding tuition or fees or for the repayment of
6 student loans.

7 15. "Emergency aid grant program" means the program established pursu-
8 ant to section three hundred fifty-five-f of this article wherein a
9 state-operated institution provides emergency aid grants to students and
10 for which the state provides annual matching funds to such institution.

11 § 4. The education law is amended by adding a new section 355-f to
12 read as follows:

13 § 355-f. Emergency aid grant matching program. 1. Each state-operated
14 institution shall establish an emergency aid grant program for students
15 deemed eligible by such institution for such emergency aid. The state
16 shall provide each institution with an appropriation equal to one-half
17 of all grants disbursed or to be disbursed in such program, provided
18 that such appropriation shall not exceed twelve hundred fifty dollars
19 per student who received or will receive an emergency aid grant and
20 shall not exceed more than sixty-two thousand five hundred dollars per
21 state-operated institution.

22 2. The state university trustees may establish requirements, as such
23 trustees deem necessary, for state-operated institutions to access the
24 matching funds provided by the state pursuant to subdivision one of this
25 section, provided that:

26 a. Emergency aid grants shall not be used to cover any outstanding
27 tuition or fees owed to the state university of New York;

28 b. Emergency aid grants shall not be treated as income for the
29 purposes of calculating financial aid offers or awards or when determin-
30 ing any expected student and/or family contribution; and

31 c. State-operated institutions shall demonstrate, to the satisfaction
32 of the trustees, that, as a component of a campus emergency aid grant
33 program, such institution has other sufficient resources and services
34 available to support students experiencing financial distress.

35 3. Within thirty days of the conclusion of every academic year, each
36 state-operated institution shall submit the necessary data prescribed in
37 section six hundred eighty-nine-b of this title to the New York state
38 higher education services corporation for the purposes of the report
39 required by such section.

40 § 5. Section 6202 of the education law is amended by adding two new
41 subdivisions 10 and 11 to read as follows:

42 10. The term "emergency aid grant" shall mean a grant provided to an
43 undergraduate student attending a community college, as defined in
44 subdivision four of this section, or a senior college, as defined in
45 subdivision five of this section, and determined by such college to be
46 eligible for such grant, who, due to unexpected or unforeseen events,
47 requires financial assistance for expenses which may include but are not
48 limited to food, clothing, housing, course materials, technology, trans-
49 portation, medical expenses, or child care. An emergency aid grant shall
50 not be used to pay outstanding tuition or fees or for the repayment of
51 student loans.

52 11. The term "emergency aid grant program" shall mean the program
53 established pursuant to section sixty-two hundred thirty-five of this
54 article wherein a community college or senior college provides emergency
55 aid grants to students and for which the state provides annual matching
56 funds to such college.

§ 6. The education law is amended by adding a new section 6235 to read as follows:

§ 6235. Emergency aid grant matching program. 1. Each community college and senior college shall establish an emergency aid grant program for students deemed eligible by such college for such emergency aid. The state shall provide each college with an appropriation equal to one-half of all grants disbursed or to be disbursed in such program, provided that such appropriation shall not exceed twelve hundred fifty dollars per student who received or will receive an emergency aid grant and shall not exceed more than sixty-two thousand five hundred dollars per community college or senior college.

2. The board of trustees, as defined in subdivision one of section sixty-two hundred two of this article, may establish requirements, as such board deems necessary, for community colleges and senior colleges to access the matching funds provided by the state pursuant to subdivision one of this section, provided that:

a. Emergency aid grants shall not be used to cover any outstanding tuition or fees owed to the city university of New York;

b. Emergency aid grants shall not be treated as income for the purposes of calculating financial aid offers or awards or when determining any expected student and/or family contribution; and

c. A community college or senior college shall demonstrate, to the satisfaction of the board, that, as a component of a campus emergency aid grant program, such college has other sufficient resources and services available to support students experiencing financial distress.

d. Within thirty days of the conclusion of every academic year, each community college and senior college shall submit the necessary data prescribed in section six hundred eighty-nine-b of this chapter to the New York state higher education services corporation for the purposes of the report required by such section.

§ 7. The education law is amended by adding a new section 689-b to read as follows:

§ 689-b. Annual report on the emergency aid grant matching program. 1. The corporation shall collect from each community college as defined in subdivision two of section sixty-three hundred one of this chapter, state-operated institution as defined in subdivision four of section three hundred fifty of this title, community college as defined in subdivision four of section sixty-two hundred two of this chapter, and senior college as defined in subdivision five of section sixty-two hundred two of this chapter, the following data on each such college or institution's emergency aid grant programs on an annual basis:

(a) the number of students at each campus who received funds through the emergency aid grant programs established in section three hundred fifty-five-f of this title and sections sixty-three hundred twelve and sixty-two hundred thirty-five of this chapter, and the total amount of grants awarded;

(b) the average dollar amount provided to each student pursuant to such program;

(c) the percentage of students who received an emergency aid grant who are still enrolled in the city university of New York or the state university of New York, and the percentage who are not enrolled in such universities;

(d) the percentage of students who received an emergency aid grant who have successfully completed a degree program at the state university of New York or the city university of New York;

(e) post-graduation outcomes of students receiving emergency aid grants including further education, employment, and wages, to the extent such information is available to the corporation; provided that such data is presented in an anonymized and aggregated format;

(f) other information deemed necessary by the corporation to evaluate the effectiveness of the emergency aid grant program.

2. No later than thirty days after the corporation receives such information from community colleges, state-operated institutions, and senior colleges, the corporation shall compile such information into an annual report to be published on the corporation's website and transmitted to the governor, the speaker of the assembly, the temporary president of the senate, and the chairs of the senate higher education committee and the assembly higher education committee.

3. The corporation is authorized to promulgate rules and regulations to effectuate the provisions of this section.

§ 8. This act shall take effect August 1, 2027 and shall apply to the academic year next succeeding the date on which it shall have become a law. Effective immediately, the addition, amendment, and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

PART FF

Section 1. This act shall be known and may be cited as the "licensure incentives and fee-support for testing (LIFT) act".

§ 2. The education law is amended by adding a new section 7711 to read as follows:

§ 7711. Social work licensure examination voucher program. 1. The department shall establish a program to provide vouchers to eligible low-income individuals to cover the cost of the examination required for licensure as a licensed master social worker or licensed clinical social worker.

2. To be eligible for a voucher under this section, an applicant shall: (a) be a resident of the state; (b) be eligible to sit for the licensed master social worker or licensed clinical social worker examination; and (c) demonstrate income at or below a threshold established by the department by rule or regulation, based on income, as determined pursuant to section six hundred sixty-three of this chapter. Provided, however, that for applicants who would be considered emancipated pursuant to subdivision three of section six hundred sixty-three of this chapter, eligibility shall be determined without regard to parental income.

3. The department shall promulgate rules and regulations necessary to implement the provisions of this section.

§ 3. This act shall take effect on the one hundred twentieth day after it shall have become a law.

PART GG

Section 1. The social services law is amended by adding a new section 95-b to read as follows:

§ 95-b. SNAP and cash assistance fraud victims compensation program. 1. The office of temporary and disability assistance shall establish and maintain a SNAP and cash assistance fraud victims compensation program to compensate persons who receive benefits from the supplemental nutri-

1 tion assistance program (SNAP) or cash assistance program who have had
2 such benefits stolen or who have been defrauded of such benefits.

3 2. The SNAP and cash assistance fraud victims compensation program
4 shall have an application process which shall be provided in English and
5 languages other than English, including but not limited to the ten most
6 commonly spoken languages, aside from English, in the state.

7 3. The inspector general and the attorney general shall work with the
8 commissioner of temporary and disability assistance to determine whether
9 a person who receives benefits under the SNAP or cash assistance program
10 was defrauded of such benefits or if such benefits were otherwise
11 stolen.

12 § 2. The state finance law is amended by adding a new section 99-uu to
13 read as follows:

14 § 99-uu. SNAP and cash assistance fraud victims compensation fund. 1.
15 There is hereby established in the joint custody of the state comp-
16 troller and the commissioner of the office of temporary and disability
17 assistance a fund to be known as the SNAP and cash assistance fraud
18 victims compensation fund, hereinafter referred to as the "fund".

19 2. Money allocated to the fund shall be kept separate and shall not be
20 commingled with any other funds in the custody of the state comptroller.

21 3. The fund shall consist of all moneys appropriated for the purpose
22 of such account, moneys transferred to such account pursuant to law,
23 monies received from civil penalties regarding the supplemental nutri-
24 tion assistance program, contributions consisting of promises or grants
25 of any money or property of any kind or value, or any other thing of
26 value, including grants or other financial assistance from any agency of
27 government and moneys required by the provisions of this section or any
28 other law to be paid into or credited to this account.

29 4. Money expended from such fund shall be used consistent with the
30 SNAP and cash assistance fraud victims compensation program as estab-
31 lished under section ninety-five-b of the social services law.

32 § 3. This act shall take effect immediately.

33 PART HH

34 Section 1. The social services law is amended by adding a new section
35 131-y to read as follows:

36 § 131-y. Youth employment immersion pilot program. 1. For the purposes
37 of this section, the following terms shall have the following meanings:

38 (a) "Office" means the office of temporary and disability assistance.

39 (b) "Program" means the youth employment immersion pilot program
40 established under this section.

41 (c) "Eligible youths and young adults" means economically disadvan-
42 tagged state residents who are between the ages of sixteen and twenty-
43 four who are not currently employed, and (i) for those age sixteen
44 through eighteen, are enrolled in high school or a high school equiv-
45 alency program, or (ii) for those age nineteen through twenty-four, have
46 graduated from high school or received high school equivalency. The term
47 "eligible youths and young adults" shall not include individuals who
48 have completed, or are currently enrolled in, post-secondary education,
49 or a business, professional, vocational, technical, or trade school
50 licensed or approved by the regents, or an apprenticeship program.

51 (d) "Economically disadvantaged" means state residents who are
52 currently receiving safety net or family assistance or who reside in a
53 household that would be eligible for receipt of safety net or family
54 assistance based on means testing.

1 (e) "Professional and transferable skills" shall include, but not be
2 limited to:

- 3 (i) collaboration;
4 (ii) communication;
5 (iii) creativity;
6 (iv) critical thinking; and
7 (v) self-advocacy.

8 2. The office shall establish a youth employment immersion pilot
9 program. The program shall be administered by the local social services
10 districts with supervision and regulation by the office. The program
11 shall be for eligible youths and young adults which shall include:

12 (a) up to twenty-five percent of an eligible youth or young adult's
13 time with the program being spent on education and employment readiness,
14 including, but not limited to:

- 15 (i) attending programs which teach workforce readiness, skill develop-
16 ment, financial literacy, or digital literacy;
17 (ii) earning a certification or license; or
18 (iii) being provided with job placement and retention services; and
19 (b) at least seventy-five percent of an eligible youth or young
20 adult's time with the program being spent engaging in paid employment
21 that builds professional and transferable skills.

22 3. The program shall permit eligible youths and young adults to apply
23 for participation in the program for a period of up to one year. Youth
24 and young adults shall not be permitted to remain as a participant in
25 the program if they (i) are ages age sixteen through eighteen and drop
26 out of high school; or (ii) otherwise enter post-secondary education, or
27 a business, professional, vocational, technical, or trade school
28 licensed or approved by the board of regents or an apprenticeship
29 program while enrolled in the program.

30 4. Youths and young adults who complete a full year of the program
31 shall have the option of re-applying to extend their participation in
32 the program by one year if they remain eligible youths and young adults
33 pursuant to the criteria set forth in subdivision three of this section.

34 5. The program shall perform outreach to eligible youths and young
35 adults at: high school equivalency programs; high schools, specifically
36 reaching out to students who do not have plans after graduation; and
37 public assistance work readiness programs. The program shall also reach
38 out to youths and young adults who are being released by the criminal
39 justice system or non-secure placement programs.

40 6. The program may provide employers with subsidies of up one-third of
41 the gross wages for up to one year for the hiring of a participant in
42 the program.

43 7. Program participants shall be compensated for employment, education
44 and employment readiness components at a rate equal to two hundred
45 sixty-five percent of the federal poverty line.

46 § 2. 1. A youth or young adult employment immersion pilot program is
47 hereby established by the office. The office shall select three local
48 social services districts, with one being located in the city of New
49 York, and the others reflecting geographic diversity. The pilot program
50 shall be established and operational within 9 months of the effective
51 date of this act and remain operational for a minimum of 24 months to
52 provide eligible youth and young adults with services and employment or
53 connection to employment for the full duration of the pilot.

54 (a) The local social services district may operate the program in
55 coordination with the applicable local youth bureau.

(b) Nothing in this section shall limit a local social services district or youth bureau from contracting with a not-for-profit entity to effectuate the youth employment immersion pilot program.

2. Throughout the pilot, the local social services district shall evaluate program participants and report the following information to the office, on a schedule determined by the office, which does not include any personally identifying information of any pilot program participant:

(a) the number of participants and the length of time each participant was in the pilot program;

(b) the number of participants who obtained certifications and/or credentials during their participation in the pilot program;

(c) the number of participants who obtained gainful employment during the course of the pilot program; and

(d) any other information requested by the office.

3. The office shall prepare and submit the report, containing the data analyzation, annually to the governor, the temporary president of the senate, the speaker of the assembly, the chair of the assembly committee on social services, and the chair of the senate committee on social services no later than ninety days following the conclusion of the two year pilot program.

4. For the purposes of this section, the term "office" shall mean the office of temporary and disability assistance.

§ 3. Subparagraph (ix) of paragraph (a) of subdivision 8 of section 131-a of the social services law, as added by section 1 of subpart D of part XX of chapter 55 of the laws of 2020, is amended to read as follows:

(ix) all of the income derived from participation in the summer youth employment program or youth employment immersion pilot program, provided however, that such income shall be exempt only for an individual who is not older than age twenty-four at the time of enrollment in the summer youth employment program or youth employment immersion pilot program and such disregard must be applied for the length of the individual's participation in such program. The commissioner shall seek any federal waiver necessary to effectuate the one-time earned income disregard pursuant to this subdivision.

§ 4. The office of temporary and disability assistance shall submit to the United States Department of Health and Human Services and the United States Department of Agriculture Food and Nutrition Service any amendments to the state plan which are necessary to effectuate the provisions of this act.

§ 5. This act shall take effect immediately; provided, however, that:

(a) sections one, two and three of this act shall take effect upon approval by the United States Department of Health and Human Services and the United States Department of Agriculture Food and Nutrition Service of the amendments to the state plan submitted by the office of temporary and disability assistance pursuant to section four of this act;

(b) the office of temporary and disability assistance shall notify the legislative bill drafting commission upon the occurrence of the approval of the amendments in the state plan provided for under paragraph (a) of this section in order that the commission may maintain an accurate and timely effective data base of the official text of the laws of the state of New York in furtherance of effectuating the provisions of section 44 of the legislative law and section 70-b of the public officers law; and

1 (c) effective immediately, the addition, amendment and/or repeal of
2 any rule or regulation necessary for the implementation of this act on
3 its effective date are authorized to be made and completed on or before
4 such effective date.

5 PART II

6 Section 1. The private housing finance law is amended by adding a new
7 article 31-A to read as follows:

8 ARTICLE 31-A
9 JOBS AND HOUSING ACT

10 Section 1283. Short title.

11 1284. Definitions.

12 1285. Jobs and housing pilot program.

13 1286. Report.

14 § 1283. Short title. This article shall be known and may be cited as
15 the "jobs and housing pilot program".

16 § 1284. Definitions. For the purposes of this article:

17 1. "Agency" shall mean the housing finance agency established pursuant
18 to section forty-three of this chapter.

19 2. "Eligible project" shall mean preservation of buildings owned under
20 article two, four, five, or eleven of this chapter and operated as coop-
21 erative housing or new construction of rental or ownership multiple
22 dwellings affordable to persons of low and moderate incomes.

23 3. "Project labor agreement" shall mean a pre-hire collective bargain-
24 ing agreement between an owner or contractor and bona fide building and
25 construction trade labor organization which has established itself as
26 the collective bargaining representative for all persons who will
27 perform work on such a project, and which provides that only contractors
28 and subcontractors who sign a pre-negotiated agreement with the labor
29 organization can perform work on such a project.

30 4. "Building service employee" shall mean any person who is regularly
31 employed at, and performs work in connection with the care or mainte-
32 nance of, an eligible multiple dwelling, including, but not limited to a
33 watchman, guard, doorman, building cleaner, porter, handyman, janitor,
34 gardener, groundskeeper, elevator operator and starter, and window
35 cleaner; provided, however, that building service employee shall not
36 include persons regularly scheduled to work fewer than eight hours per
37 week.

38 § 1285. Jobs and housing pilot program. 1. Within amounts appropriated
39 or otherwise available therefor, the agency shall develop and administer
40 a jobs and housing pilot program to construct and preserve housing,
41 including workforce housing, that is affordable to low and moderate
42 income persons, and creates good jobs for those who build and work in
43 such housing. The agency is hereby authorized to take administrative
44 actions when necessary to comply with the requirements within this arti-
45 cle.

46 2. The agency shall post on its website the request for applications
47 for eligible projects to apply for funding awards.

48 3. In order to qualify for a funding award under the program, the
49 applicant shall:

50 (a) demonstrate a plan to use contractors that participate in appren-
51 ticeship programs registered pursuant to article twenty-three of the
52 labor law; and

(b) attest to responsibility for ensuring that all demolition, construction, rehabilitation, renovation, retrofit or repair work is subject to article eight of the labor law, including the applicable prevailing wage pursuant to section two hundred twenty of the labor law. As part of such attestation, the applicant shall agree to joint and several responsibility for any penalties assessed under article eight of the labor law that are against any contractor or subcontractor on the applicant's eligible project under this program. Where the applicant agrees to enter into a project labor agreement, this paragraph shall not apply; and

(c) attest to responsibility for ensuring that all building service employees employed by the applicant for an eligible project subject to this article shall receive the applicable prevailing wage for the eligible project. As part of such attestation, the applicant shall agree to joint and several responsibility for any penalties assessed under article nine of the labor law that are against any contractor or subcontractor on the applicant's eligible project under this program; and

(d) demonstrate a commitment to utilizing financing, in part, from a labor organization's pension fund or a commingled fund of pension fund investments with a demonstrated track record of successful investment in both new construction and substantial rehabilitation of affordable housing.

4. Nothing in this article shall impair eligible projects receiving funding awards under this article from concurrently receiving funding or benefits for the construction or preservation of housing, including but not limited to real property tax exemptions, tax credit financing, bond financing, subordinate debt, grants, credit enhancement and guarantees, and other such funding or benefits as may be necessary to ensure the feasibility of eligible projects receiving funding awards under this article.

5. To certify compliance with subdivision three of this section, the agency shall designate the fiscal officer pursuant to article eight and article nine of the labor law as the enforcement officer on such eligible projects.

§ 1286. Report. 1. No later than three years following the effective date of this article, the division of housing and community renewal shall issue a report on the jobs and housing pilot program containing data on program applications and awards. Such report shall include, but not be limited to:

- (a) the number of applications for funding received;
- (b) the number of applications selected for award and contract;
- (c) the amount of funding disbursed, by eligible project;
- (d) the number of new housing units financed; and
- (e) the number of preserved housing units financed.

2. Such report required pursuant to subdivision one of this section shall be posted and made publicly available on the division of housing and community renewal's website in a clear and conspicuous manner.

§ 2. This act shall take effect immediately.

PART JJ

Section 1. The state finance law is amended by adding a new section 99-uu to read as follows:

§ 99-uu. New York state worker protection and labor law enforcement fund. 1. There is hereby established in the joint custody of the state comptroller and the commissioner of taxation and finance a special fund

1 to be known as the New York state worker protection and labor law
2 enforcement fund.

3 2. Such fund shall consist of all monetary damages and penalties
4 recovered by the department of labor for employer violations, unless
5 otherwise designated, of articles two, five, six, eight, nine, nineteen,
6 nineteen-B, twenty-C, twenty-five-A, twenty-five-B, and twenty-five-C of
7 the labor law or with any regulations related thereto and all other
8 moneys appropriated thereto from any other fund or source pursuant to
9 law; provided, however that no monies due and owing to any other party
10 shall be dedicated to the fund. Nothing contained in this section shall
11 prevent the state from receiving grants, gifts or bequests for the
12 purposes of the fund as defined in this section and depositing them into
13 the fund according to law.

14 3. The monies in the fund, after appropriation by the legislature,
15 shall be available to the commissioner of labor for the sole purpose of
16 supplementing the department's labor law enforcement duties; provided,
17 however, that such funding shall be appropriated in addition to any
18 other monies appropriated to the department for the state fiscal year in
19 effect on the effective date of this section.

20 4. On or before January first of each year, the department of labor
21 shall provide a written report detailing how the monies of the fund were
22 utilized during the preceding fiscal year. Such report shall be provided
23 to the temporary president of the senate, the speaker of the assembly,
24 the chair of the senate finance committee, the chair of the assembly
25 ways and means committee, the chair of the senate committee on labor,
26 the chair of the assembly labor committee, and the state comptroller.
27 Such report shall be posted on the department's website and shall
28 include:

29 (a) the number of enforcement proceedings initiated for employer
30 violations of articles two, five, six, eight, nine, nineteen, nine-
31 teen-B, twenty-C, twenty-five-A, twenty-five-B, and twenty-five-C of the
32 labor law or any regulations related thereto, the name of the entity
33 against which such proceeding was initiated and the amount collected for
34 each such proceeding, if any;

35 (b) the amount of money available and dispersed from the fund over the
36 previous twelve months;

37 (c) a description on how such monies were used, including the number
38 of enforcement personnel hired or supported by such monies; and

39 (d) a summary financial plan for such monies which shall include esti-
40 mates of all receipts and all disbursements for the next fiscal year.

41 § 2. This act shall take effect April 1, 2026.

42 PART KK

43 Section 1. Subdivisions 3, 4, and 5 of section 27-b of the labor law,
44 as added by chapter 82 of the laws of 2006, are amended to read as
45 follows:

46 3. Risk evaluation and determination. Every employer shall evaluate
47 its workplace or workplaces to determine the presence of factors or
48 situations in such workplace or workplaces that might place employees at
49 risk of occupational assaults and homicides. Examples of such factors
50 shall include, but not be limited to:

51 a. working in public settings (e.g., social services or other govern-
52 mental workers, police officers, firefighters, teachers, public trans-
53 portation drivers, health care workers, and service workers);

54 b. working late night or early morning hours;

- c. exchanging money with the public;
- d. working alone or in small numbers;
- e. abusive conduct and bullying in the workplace;
- f. uncontrolled access to the workplace; and
- ~~[f.]~~ g. areas of previous security problems.

4. Written workplace violence prevention program. Every employer with at least twenty full time permanent employees shall develop and implement a written workplace violence prevention program for its workplace or workplaces that includes the following:

a. a list of the risk factors identified in subdivision three of this section that are present in such workplace or workplaces;

b. the methods the employer will use to prevent incidents of occupational assaults and homicides at such workplace or workplaces, including but not limited to the following:

- (1) making high-risk areas more visible to more people;
- (2) installing good external lighting;
- (3) using drop safes or other methods to minimize cash on hand;
- (4) posting signs stating that limited cash is on hand;
- (5) providing training in conflict resolution and nonviolent self-defense responses; and
- (6) establishing and implementing reporting systems for incidents of aggressive behavior, abusive conduct, and bullying.

5. Employee information and training. a. Every employer with at least twenty permanent full time employees shall make the written workplace violence prevention program available, upon request, to its employees, their designated representatives and the department.

b. Every employer shall provide its employees with ~~[the following]~~ information and training on preventing and reporting workplace bullying and abusive conduct and the risks of occupational assaults and homicides in their workplace or workplaces at the time of their initial assignment and annually thereafter:

(1) employees shall be informed of the requirements of this section, the risk factors in their workplace or workplaces, and the location and availability of the written workplace violence prevention program required by this section; and

(2) employee training shall include at least: (a) how how to identify and report workplace bullying and abusive conduct and the measures employees can take to protect themselves from such risks, including specific procedures the employer has implemented to protect employees, such as appropriate work practices, emergency procedures, use of security alarms and other devices, and (b) the details of the written workplace violence prevention program developed by the employer.

§ 2. This act shall take effect on the one hundred eightieth day after it shall have become a law.

PART LL

Section 1. Paragraph h of subdivision 2 of section 355 of the education law is amended by adding a new subparagraph 1-a to read as follows:

(1-a) The trustees shall implement a program to permit any student who has been admitted to a state-operated institution of the state university to attend one class per semester without the payment of tuition and fees if such student serves as an active volunteer firefighter, as defined in subdivision one of section two hundred fifteen of the general municipal law, volunteer emergency medical services provider, or volunteer auxiliary police officer, provided that the provisions of this

1 subparagraph shall only apply to costs of courses taken toward the
2 completion of one undergraduate degree program.

3 (i) The trustees shall provide an application process and administer
4 the program according to the following criteria:

5 (A) Any student eligible for resident tuition rates is eligible for
6 this program, provided that at the time of application, such student
7 submits proof of membership in good standing of a volunteer fire company
8 or department, volunteer emergency medical services provider or a volun-
9 teer auxiliary police officer of a police department within the state of
10 New York.

11 (B) The student shall be required to maintain status as a member in
12 good standing of the volunteer fire company or department, volunteer
13 emergency medical service provider or police department in which such
14 student serves as an auxiliary police officer through the completion of
15 such student's academic program.

16 (C) The student shall be required to maintain a cumulative grade point
17 average (G.P.A.) of at least 2.5 in order to remain eligible for the
18 program.

19 (ii) Any student who elects to participate in the program under this
20 subparagraph shall be required to apply for tuition assistance program
21 funding. Funds awarded on the tuition assistance program shall be
22 applied towards the cost of tuition prior to an award under this clause.

23 (iii) Any student who elects to participate in the program under this
24 subparagraph and is otherwise eligible for the excelsior scholarship
25 program shall be required to apply for same. Funds awarded through the
26 excelsior scholarship program shall be applied towards the cost of
27 tuition prior to an award under this clause.

28 (iv) Students shall be responsible for all other costs including hous-
29 ing, fees and other non-tuition related charges.

30 § 2. Subdivision 7 of section 6206 of the education law is amended by
31 adding a new paragraph (h) to read as follows:

32 (h) The trustees shall implement a program to permit any student who
33 has been admitted to an institution operated by the city university to
34 attend one class per semester without the payment of tuition and fees if
35 such student serves as an active volunteer firefighter, as defined in
36 subdivision one of section two hundred fifteen of the general municip-
37 al law, volunteer emergency medical services provider, or volunteer
38 auxiliary police officer, provided that the provisions of this paragraph
39 shall only apply to costs of courses taken toward the completion of one
40 undergraduate degree program.

41 (i) The trustees shall provide an application process and administer
42 the program according to the following criteria:

43 (A) Any student eligible for resident tuition rates is eligible for
44 this program, provided that at the time of application, such student
45 submits proof of membership in good standing of a volunteer fire company
46 or department, volunteer medical services provider or a volunteer auxil-
47 iary police officer of a police department within the state of New York.

48 (B) The student shall be required to maintain status as a member in
49 good standing of the volunteer fire company or department, volunteer
50 emergency medical service provider or police department in which such
51 student serves as an auxiliary police officer through the completion of
52 such student's academic program.

53 (C) The student shall be required to maintain a cumulative grade point
54 average (G.P.A.) of at least 2.5 in order to remain eligible for the
55 program.

(ii) Any student who elects to participate in the program under this paragraph shall be required to apply for tuition assistance program funding. Funds awarded on the tuition assistance program shall be applied towards the cost of tuition prior to an award under this subparagraph.

(iii) Any student who elects to participate in the program under this subparagraph and is otherwise eligible for the excelsior scholarship program shall be required to apply for same. Funds awarded through the excelsior scholarship program shall be applied towards the cost of tuition prior to an award under this clause.

(iv) Students shall be responsible for all other costs including housing, fees and other non-tuition related charges.

§ 3. Subdivision 1 of section 6304 of the education law is amended by adding a new paragraph e to read as follows:

e. The trustees, sponsors or other governing body of a community college shall implement a program to permit any student who has been admitted to such community college to attend one class per semester without the payment of tuition and fees if such student serves as an active volunteer firefighter, as defined in subdivision one of section two hundred fifteen of the general municipal law, volunteer emergency medical services provider, or volunteer auxiliary police officer, provided that the provisions of this subparagraph shall only apply to costs of courses taken toward the completion of one undergraduate degree program.

(i) The trustees shall provide an application process and administer the program according to the following criteria:

(A) Any student eligible for resident tuition rates is eligible for this program, provided that at the time of application, such student submits proof of membership in good standing of a volunteer fire company or department, volunteer medical services provider or a volunteer auxiliary police officer of a police department within the state of New York.

(B) The student shall be required to maintain status as a member in good standing of the volunteer fire company or department, volunteer emergency medical service provider or police department in which such student serves as an auxiliary police officer through the completion of such student's academic program.

(C) The student shall be required to maintain a cumulative grade point average (G.P.A.) of at least 2.5 in order to remain eligible for the program.

(ii) Any student who elects to participate in the program under this paragraph shall be required to apply for tuition assistance program funding. Funds awarded on the tuition assistance program shall be applied towards the cost of tuition prior to an award under this subparagraph.

(iii) Any student who elects to participate in the program under this subparagraph and is otherwise eligible for the excelsior scholarship program shall be required to apply for same. Funds awarded through the excelsior scholarship program shall be applied towards the cost of tuition prior to an award under this clause.

(iv) Students shall be responsible for all other costs including housing, fees and other non-tuition related charges.

§ 4. This act shall take effect July 1, 2027.

1 Section 1. Section 200 of the workers' compensation law, as amended by
2 section 1 of part SS of chapter 54 of the laws of 2016, is amended to
3 read as follows:

4 § 200. Short title. This article shall be known and may be cited as
5 the "disability [~~benefits law~~] and [~~the~~] paid family leave benefits
6 law."

7 § 2. Subdivisions 14, 15 and 22 of section 201 of the workers' compen-
8 sation law, subdivision 14 as amended and subdivisions 15 and 22 as
9 added by section 2 of part SS of chapter 54 of the laws of 2016, are
10 amended to read as follows:

11 14. "A day of disability" means any day on which the employee was
12 prevented from performing work because of disability[, ~~including any day~~
13 ~~which the employee uses for family leave,~~] and for which the employee
14 has not received [~~his or her~~] the employee's regular remuneration.

15 15. "Family leave" shall mean any leave taken by an employee from
16 work: (a) to participate in providing care, including physical or
17 psychological care, for a family member of the employee made necessary
18 by a serious health condition of the family member; or (b) to bond with
19 the employee's child during the first twelve months after the child's
20 birth, or the first twelve months after the placement of the child for
21 adoption or foster care with the employee or on or after January first,
22 two thousand twenty-seven until January first, two thousand thirty-one,
23 for the six weeks immediately following a pregnancy loss if the employee
24 who experienced the pregnancy loss had been deemed eligible to take
25 family leave benefits under this article based on an expected birth or
26 placement and would otherwise subsequently be deemed ineligible for
27 family leave benefits due to pregnancy loss; or (c) because of any qual-
28 ifying exigency as interpreted under the family and medical leave act,
29 U.S.C.S § 2612(a)(1)(e) and 29 C.F.R. S.825.126[~~(a)(1)-(8)~~], arising
30 out of the fact that the spouse, domestic partner, child, or parent of
31 the employee is on active duty (or has been notified of an impending
32 call or order to active duty) in the armed forces of the United States.

33 22. "Health care provider" shall mean for the purpose of [~~family~~
34 ~~leave~~] this article, a person licensed under article one hundred thir-
35 ty-one, one hundred thirty-one-B, one hundred thirty-two, one hundred
36 thirty-three, one hundred thirty-six, one hundred thirty-nine, one
37 hundred forty-one, one hundred forty-three, one hundred forty-four, one
38 hundred fifty-three, one hundred fifty-four, one hundred fifty-six or
39 one hundred fifty-nine of the education law or a person licensed under
40 the public health law, article one hundred forty of the education law or
41 article one hundred sixty-three of the education law.

42 § 3. Section 203-a of the workers' compensation law, as added by
43 section 4 of part SS of chapter 54 of the laws of 2016, is amended to
44 read as follows:

45 § 203-a. Retaliatory action prohibited for [~~family~~] leave. 1. The
46 provisions of section one hundred twenty of this chapter and section two
47 hundred forty-one of this article shall be applicable to family and
48 disability leave.

49 2. Nothing in this section shall be deemed to diminish the rights,
50 privileges, or remedies of any employee under any collective bargaining
51 agreement or employment contract.

52 § 4. Section 203-b of the workers' compensation law, as added by
53 section 4 of part SS of chapter 54 of the laws of 2016, is amended to
54 read as follows:

55 § 203-b. Reinstatement following [~~family~~] leave. Any eligible employee
56 of a covered employer who takes leave under this article shall be enti-

1 tled, on return from such leave, to be restored by the employer to the
2 position of employment held by the employee when the leave commenced, or
3 to be restored to a comparable position with comparable employment bene-
4 fits, pay and other terms and conditions of employment. The taking of
5 family or disability leave shall not result in the loss of any employ-
6 ment benefit accrued prior to the date on which the leave commenced.
7 Nothing in this section shall be construed to entitle any restored
8 employee to the accrual of any seniority or employment benefits during
9 any period of leave, or any right, benefit or position to which the
10 employee would have been entitled had the employee not taken the leave.

11 § 5. Section 203-c of the workers' compensation law, as added by
12 section 4 of part SS of chapter 54 of the laws of 2016, is amended to
13 read as follows:

14 § 203-c. Health insurance during [~~family~~] leave. In accordance with
15 the Family and Medical Leave Act (29 U.S.C. §§ 2601-2654), during any
16 period of family or disability leave the employer shall maintain any
17 existing health benefits of the employee in force for the duration of
18 such leave as if the employee had continued to work from the date [~~he or~~
19 ~~she~~] the employee commenced family or disability leave until the date
20 [~~he or she~~] the employee returns to employment.

21 § 5-a. Section 203-c of the workers' compensation law, as amended by
22 chapter 72 of the laws of 2026, is amended to read as follows:

23 § 203-c. Health insurance during [~~family~~] leave. In accordance with
24 the Family and Medical Leave Act (29 U.S.C. §§ 2601-2654), during any
25 period of family or disability leave the employer shall maintain any
26 existing health benefits of the employee in force for the duration of
27 such leave as if the employee had continued to work from the date such
28 employee commenced family or disability leave until the date such
29 employee returns to employment. Notwithstanding the foregoing,
30 construction employees shall maintain any existing union health plan or
31 fund benefits in force for the duration of family or disability leave as
32 if the construction employee had continued to work from the date they
33 commenced family or disability leave until the date the construction
34 employee returns to employment. Nothing herein prevents parties to a
35 collective bargaining agreement for construction employees from provid-
36 ing additional terms including, but not limited to, payment of health
37 contributions for such employees on leave time, whether leave time is
38 considered hours worked for purposes of eligibility in the health plan
39 or fund, or other terms that do not conflict with this section.

40 § 6. Section 204 of the workers' compensation law, as amended by
41 section 5 of part SS of chapter 54 of the laws of 2016, is amended to
42 read as follows:

43 § 204. Disability and family leave during employment. 1. Disability
44 benefits shall be payable to an eligible employee for disabilities,
45 beginning with the eighth day of disability and thereafter during the
46 continuance of disability, subject to the limitations as to maximum and
47 minimum amounts and duration and other conditions and limitations in
48 this section and in sections two hundred five and two hundred six of
49 this article. Family leave benefits shall be payable to an eligible
50 employee for the first full day when family leave is required and there-
51 after during the continuance of the need for family leave, subject to
52 the limitations as to maximum and minimum amounts and duration and other
53 conditions and limitations in this section and in sections two hundred
54 five and two hundred six of this article. Successive periods of disabil-
55 ity or family leave caused by the same or related injury or sickness or

1 qualifying event shall be deemed a single period of disability or family
2 leave only if separated by less than three months.

3 2. (a) The weekly benefit for family leave that occurs (i) on or after
4 January first, two thousand eighteen shall not exceed eight weeks during
5 any fifty-two week calendar period and shall be fifty percent of the
6 employee's average weekly wage but shall not exceed fifty percent of the
7 state average weekly wage, (ii) on or after January first, two thousand
8 nineteen shall not exceed ten weeks during any fifty-two week calendar
9 period and shall be fifty-five percent of the employee's average weekly
10 wage but shall not exceed fifty-five percent of the state average weekly
11 wage, (iii) on or after January first, two thousand twenty shall not
12 exceed ten weeks during any fifty-two week calendar period and shall be
13 sixty percent of the employee's average weekly wage but shall not exceed
14 sixty percent of the state average weekly wage, and (iv) on or after
15 January first of each succeeding year, shall not exceed twelve weeks
16 during any fifty-two week calendar period and shall be sixty-seven
17 percent of the employee's average weekly wage but shall not exceed
18 sixty-seven percent of the New York state average weekly wage in effect.
19 The superintendent of financial services shall have discretion to delay
20 the increases in the family leave benefit level provided in subpara-
21 graphs (ii), (iii), and (iv) of this paragraph by one or more calendar
22 years. In determining whether to delay the increase in the family leave
23 benefit for any year, the superintendent of financial services shall
24 consider: (1) the current cost to employees of the family leave benefit
25 and any expected change in the cost after the benefit increase; (2) the
26 current number of insurers issuing insurance policies with a family
27 leave benefit and any expected change in the number of insurers issuing
28 such policies after the benefit increase; (3) the impact of the benefit
29 increase on employers' business and the overall stability of the program
30 to the extent that information is readily available; (4) the impact of
31 the benefit increase on the financial stability of the disability and
32 family leave insurance market and carriers; and (5) any additional
33 factors that the superintendent of financial services deems relevant. If
34 the superintendent of financial services delays the increase in the
35 family leave benefit level for one or more calendar years, the family
36 leave benefit level that shall take effect immediately following the
37 delay shall be the same benefit level that would have taken effect but
38 for the delay. The weekly benefits for family leave that occurs on or
39 after January first, two thousand eighteen shall not be less than one
40 hundred dollars per week except that if the employee's wages at the time
41 of family leave are less than one hundred dollars per week, the employee
42 shall receive ~~his or her~~ the employee's full wages. Benefits may be
43 payable to employees for paid family leave taken intermittently or for
44 less than a full work week in increments of one full day or one fifth of
45 the weekly benefit.

46 (b) The weekly benefit which the disabled employee is entitled to
47 receive for the first twelve weeks of disability commencing: (i) on or
48 after January first, two thousand twenty-eight shall be fifty-five
49 percent of the employee's average weekly wage but shall not exceed fifty
50 percent of the state average weekly wage; (ii) on or after January
51 first, two thousand twenty-nine shall be sixty percent of the employee's
52 average weekly wage but shall not exceed fifty-five percent of the state
53 average weekly wage; (iii) on or after January first, two thousand thir-
54 ty shall be sixty-seven percent of the employee's weekly average wage
55 but shall not exceed sixty percent of the state average weekly wage; and
56 (iv) on or after January first of each succeeding year, shall be sixty-

seven percent of the employee's average weekly wage but shall not exceed sixty-seven percent of the state average weekly wage. The weekly benefit which the disabled employee is entitled to receive for the periods of disability after the twelfth week of disability and through the twenty-sixth week of disability on or after January first, two thousand twenty-eight and each succeeding year shall be thirty percent of the employee's average weekly wage but shall not exceed thirty percent of the state average weekly wage. The chair of the workers' compensation board, in consultation with the superintendent of financial services, shall have discretion to increase the benefit level for the period of disability after the twelfth week of disability through the twenty-sixth week of disability, provided that such benefit shall not exceed sixty-seven percent of the state average weekly wage. In determining whether to increase the disability benefit for any year, the chair of the workers' compensation board in consultation with the superintendent of financial services shall consider factors including but not limited to utilization of the current benefit, the expected utilization of any increase, the need for a benefit increase, the current contribution cost to employees and employers and the expected cost after any such benefit increase; the current number of insurers issuing insurance policies with a disability benefit and any expected change in the number of insurers issuing such policies after the benefit increase; and any additional factors that the chair of the workers' compensation board and the superintendent of financial services deems relevant. The weekly benefit which the disabled employee is entitled to receive for disability leave that occurs on or after January first, two thousand twenty-eight shall not be less than one hundred dollars per week except that if the employee's wages at the time of disability leave are less than one hundred dollars per week, the employee shall receive the employee's full wages. The weekly benefit which the disabled employee is entitled to receive for disability commencing on or after May first, nineteen hundred eighty-nine and prior to January first, two thousand twenty-eight shall be one-half of the employee's weekly wage, but in no case shall such benefit exceed one hundred seventy dollars; except that if the employee's average weekly wage is less than twenty dollars, the benefit shall be such average weekly wage. The weekly benefit which the disabled employee is entitled to receive for disability commencing on or after July first, nineteen hundred eighty-four shall be one-half of the employee's weekly wage, but in no case shall such benefit exceed one hundred forty-five dollars; except that if the employee's average weekly wage is less than twenty dollars, the benefit shall be such average weekly wage. The weekly benefit which the disabled employee is entitled to receive for disability commencing on or after July first, nineteen hundred eighty-three and prior to July first, nineteen hundred eighty-four shall be one-half of the employee's average weekly wage, but in no case shall such benefit exceed one hundred thirty-five dollars nor be less than twenty dollars; except that if the employee's average weekly wage is less than twenty dollars the benefit shall be such average weekly wage. The weekly benefit which the disabled employee is entitled to receive for disability commencing on or after July first, nineteen hundred seventy-four, and prior to July first, nineteen hundred eighty-three, shall be one-half of the employee's average weekly wage, but in no case shall such benefit exceed ninety-five dollars nor be less than twenty dollars; except that if the employee's average weekly wage is less than twenty dollars, the benefit shall be such average weekly wage. The weekly benefit which the disabled employee is entitled to receive

1 for disability commencing on or after July first, nineteen hundred
2 seventy and prior to July first, nineteen hundred seventy-four shall be
3 one-half of the employee's average weekly wage, but in no case shall
4 such benefit exceed seventy-five dollars nor be less than twenty
5 dollars; except that if the employee's average weekly wage is less than
6 twenty dollars the benefit shall be such average weekly wage. ~~[For any~~
7 ~~period of disability less than a full week, the benefits payable shall~~
8 ~~be calculated by dividing the weekly benefit by the number of the~~
9 ~~employee's normal work days per week and multiplying the quotient by the~~
10 ~~number of normal work days in such period of disability.]~~ Benefits may
11 be payable to employees for disability leave taken intermittently or for
12 less than a full work week in increments of one full day or one-fifth of
13 the weekly benefit. The weekly benefit for a disabled employee who is
14 concurrently eligible for benefits in the employment of more than one
15 covered employer shall, within the maximum and minimum herein provided,
16 be one-half of the total of the employee's average weekly wages received
17 from all such covered employers, and shall be allocated in the propor-
18 tion of ~~[their]~~ the employee's respective average weekly wage payments.

19 (c) Provided that the provisions of paragraph (b) of this subdivision
20 concerning benefits on or after January first, two thousand twenty-eight
21 and subparagraphs (i) and (ii) of paragraph (a) of subdivision three of
22 section two hundred nine of this article may be waived by a covered
23 employer subject to a collective bargaining agreement with a bona fide
24 labor organization in effect on January first, two thousand twenty-eight
25 for employees subject to such collective bargaining agreement for a
26 disability commencing between January first, two thousand twenty-eight
27 and until January first, two thousand thirty-one; and provided that for
28 such waiver to be valid, it shall explicitly reference this section and
29 be agreed to by the bona fide labor organization. Nothing herein shall
30 prevent a collective bargaining agreement from providing temporary disa-
31 bility benefits greater than the benefits required herein.

32 § 7. Subdivision 2 of section 206 of the workers' compensation law, as
33 amended by section 7 of part SS of chapter 54 of the laws of 2016, is
34 amended to read as follows:

35 2. If an employee who is eligible for disability benefits under
36 section two hundred three or two hundred seven of this article is disa-
37 bled and has claimed or subsequently claims workers' compensation bene-
38 fits under this chapter or benefits under the volunteer firefighters'
39 benefit law or the volunteer ambulance workers' benefit law, and such
40 claim is controverted on the ground that the employee's disability was
41 not caused by an accident that arose out of and in the course of ~~[his]~~
42 the employee's employment or by an occupational disease, or by an injury
43 in line of duty as a volunteer firefighter or volunteer ambulance work-
44 er, the employee shall be entitled in the first instance to receive
45 benefits under this article for ~~[his or her]~~ the employee's disability.
46 If benefits have been paid under this article in respect to a disability
47 alleged to have arisen out of and in the course of the employment or by
48 reason of an occupational disease, or in line of duty as a volunteer
49 firefighter or a volunteer ambulance worker, the employer or carrier or
50 the chair making such payment may, at any time before award of workers'
51 compensation benefits, or volunteer firefighters' benefits or volunteer
52 ambulance workers' benefits, is made, file with the board a claim for
53 reimbursement out of the proceeds of such award to the employee for the
54 period for which disability benefits were paid to the employee under
55 this article, and shall have a lien against the full award for
56 reimbursement, notwithstanding the provisions of section thirty-three of

1 this chapter or section twenty-three of the volunteer firefighters'
2 benefit law or section twenty-three of the volunteer ambulance workers'
3 benefit law provided the insurance carrier liable for payment of the
4 award receives, before such award is made, a copy of the claim for
5 reimbursement from the employer, carrier or chair who paid disability
6 benefits, or provided the board's decision and award directs such
7 reimbursement therefrom.

8 § 8. Paragraph (a) of subdivision 3 of section 209 of the workers'
9 compensation law, as amended by section 10 of part SS of chapter 54 of
10 the laws of 2016, is amended to read as follows:

11 (a) Disability benefits. (i) The contribution of each such employee to
12 the cost of disability benefits provided by this article shall be one-
13 half of one per centum of the employee's wages paid to ~~[him or her]~~ the
14 employee on and after July first, nineteen hundred fifty, but not in
15 excess of sixty cents per week.

16 (ii) Beginning January first, two thousand twenty-eight, the maximum
17 employee contribution that a covered employer is authorized to collect
18 from each employee for the cost of disability benefits provided by this
19 article shall be one-half of one per centum of the employee's wages but
20 shall not exceed two dollars and twenty cents per week provided, howev-
21 er, that the employee contribution shall be pursuant to subparagraph (i)
22 of this paragraph where such employee is covered under paragraph (c) of
23 subdivision two of section two hundred four of this article.

24 (iii) Beginning January first, two thousand thirty-one, the maximum
25 employee contribution that a covered employer is authorized to collect
26 from each employee for the cost of disability benefits provided by this
27 article shall be one-half of one per centum of the employee's wages, but
28 shall not exceed forty percent of the average of the combination of all
29 employee and employer contributions to disability benefits provided
30 pursuant to paragraph (b) of subdivision two of section two hundred four
31 of this article during the prior calendar year, as determined annually
32 by the superintendent of financial services pursuant to subsection (n)
33 of section four thousand two hundred thirty-five of the insurance law.
34 A self-insurer shall submit reports to the superintendent of financial
35 services for the purpose of determining forty percent of the average of
36 the combination of all employee and employer contributions to disability
37 benefits provided pursuant to paragraph (b) of subdivision two of
38 section two hundred four of this article during the prior calendar year,
39 pursuant to subsection (n) of section four thousand two hundred thirty-
40 five of the insurance law.

41 § 9. The opening paragraph of section 211 of the workers' compensation
42 law, as amended by section 12 of part SS of chapter 54 of the laws of
43 2016, is amended to read as follows:

44 A covered employer, unless provided with a waiver pursuant to section
45 204(2)(c), shall, with ~~[his or her]~~ such employer's own contributions
46 and the contributions of ~~[his]~~ such employer's employees, provide disa-
47 bility and after January first, two thousand eighteen, family leave
48 benefits to ~~[his or her]~~ such employer's employees in one or more of the
49 following ways:

50 § 10. The opening paragraph and subdivision 1 of section 214 of the
51 workers' compensation law, as amended by section 26 of part GG of chap-
52 ter 57 of the laws of 2013, are amended to read as follows:

53 There is hereby created a fund which shall be known as the special
54 fund for disability benefits to provide for the payment of ~~[disability]~~
55 benefits under sections two hundred seven, two hundred thirteen and
56 attendance fees under section two hundred thirty-two of this article.

1 1. As promptly as practicable after April first, in each year, the
2 ~~[chairman]~~ chair shall ascertain the condition of the fund, and if as of
3 any such date the net assets of the fund shall be one million dollars or
4 more below the sum of twelve million dollars, the ~~[chairman]~~ chair shall
5 assess and collect an amount sufficient to restore the fund to an amount
6 equal to twelve million dollars.~~[-]~~ Such assessment shall be included in
7 the assessment rate established pursuant to subdivision two of section
8 one hundred fifty-one of this chapter. Such assessments shall be depos-
9 ited with the commissioner of taxation and finance and transferred to
10 the benefit of such fund upon payment of debt service, if any, pursuant
11 to section one hundred fifty-one of this chapter.

12 § 11. Subdivision 1 of section 217 of the workers' compensation law,
13 as amended by section 16 of part SS of chapter 54 of the laws of 2016,
14 is amended to read as follows:

15 1. Written notice and proof of disability or proof of need for family
16 leave shall be furnished to the employer by or on behalf of the employee
17 claiming benefits or, in the case of a claimant under section two
18 hundred seven of this article, to the chair, within thirty days after
19 commencement of the period of disability. Additional proof shall be
20 furnished thereafter from time to time as the employer or carrier or
21 chair may require but not more often than once each week. Such proof
22 shall include a statement of disability by the employee's ~~[attending~~
23 ~~physician or attending podiatrist or attending chiropractor or attending~~
24 ~~dentist or attending psychologist or attending certified nurse midwife~~
25 ~~or family leave care recipient's health care provider, or in the case of~~
26 ~~an employee who adheres to the faith or teachings of any church or~~
27 ~~denomination, and who in accordance with its creed, tenets or principles~~
28 ~~depends for healing upon prayer through spiritual means alone in the~~
29 ~~practice of religion, by an accredited practitioner,]~~ health care
30 provider containing facts and opinions as to such disability in compli-
31 ance with regulations of the chair. Failure to furnish notice or proof
32 within the time and in the manner above provided shall not invalidate
33 the claim but no benefits shall be required to be paid for any period
34 more than two weeks prior to the date on which the required proof is
35 furnished unless it shall be shown to the satisfaction of the chair not
36 to have been reasonably possible to furnish such notice or proof and
37 that such notice or proof was furnished as soon as possible; provided,
38 however, that no benefits shall be paid unless the required proof ~~[of~~
39 ~~disability]~~ is furnished within the period of actual disability or fami-
40 ly leave that does not exceed the statutory maximum period permitted
41 under section two hundred four of this article. No limitation of time
42 provided in this section shall run as against any disabled employee who
43 is mentally incompetent, or physically incapable of providing such
44 notice as a result of a serious medical condition, or a minor so long as
45 such person has no guardian of the person and/or property.

46 § 12. Section 218 of the workers' compensation law, as added by chap-
47 ter 600 of the laws of 1949, subdivision 2 as amended by chapter 809 of
48 the laws of 1985, is amended to read as follows:

49 § 218. ~~[Disability benefit]~~ Benefit rights inalienable. 1. Any agree-
50 ment by an employee to waive ~~[his]~~ the employee's rights under this
51 article shall be void.

52 2. Disability or family leave benefits payable under this article
53 shall not be assigned or released, except as provided in this article,
54 and shall be exempt from all claims of creditors and from levy,
55 execution and attachment or other remedy for recovery or collection of a
56 debt, which exemption may not be waived provided, however, that such

1 benefits shall be subject to an income execution or order for support
2 enforcement pursuant to section fifty-two hundred forty-one or fifty-two
3 hundred forty-two of the civil practice law and rules.

4 § 13. Section 221 of the workers' compensation law, as amended by
5 section 19 of part SS of chapter 54 of the laws of 2016, is amended to
6 read as follows:

7 § 221. Determination of contested claims for disability and family
8 leave benefits. In accordance with regulations adopted by the chair,
9 within twenty-six weeks of written notice of rejection of claim, the
10 employee may file with the chair a notice that [~~his or her~~] the employ-
11 ee's claim for disability or family leave benefits has not been paid,
12 and the employee shall submit proof of disability or entitlement to
13 family leave and of [~~his or her~~] the employee's employment, wages and
14 other facts reasonably necessary for determination of the employee's
15 right to such benefits. Failure to file such notice within the time
16 provided, may be excused if it can be shown not to have been reasonably
17 possible to furnish such notice and that such notice was furnished as
18 soon as possible. On demand the employer or carrier shall forthwith
19 deliver to the board the original or a true copy of the health care
20 provider's report, wage and employment data and all other documentation
21 in the possession of the employer or carrier with respect to such claim.

22 The chair or designee, shall have full power and authority to deter-
23 mine all issues in relation to every such claim for disability benefits
24 required or provided under this article, and shall file its decision in
25 the office of the [~~chairman~~] chair. Upon such filing, the [~~chairman~~]
26 chair shall send to the parties a copy of the decision. Either party may
27 present evidence and be represented by counsel at any hearing on such
28 claim. The decision of the board shall be final as to all questions of
29 fact and, except as provided in section twenty-three of this chapter, as
30 to all questions of law. Every decision shall be complied with in
31 accordance with its terms within ten days thereafter except as permitted
32 by law upon the filing of a request for review, and any payments due
33 under such decision shall draw simple interest from thirty days after
34 the making thereof at the rate provided in section five thousand four of
35 the civil practice law and rules. The chair shall adopt rules and regu-
36 lations to carry out the provisions of this article including but not
37 limited to resolution of contested claims and requests for review there-
38 of, and payment of costs for resolution of disputed claims by carriers.
39 Any designated process shall afford the parties the opportunity to pres-
40 ent evidence and to be represented by counsel in any such proceeding.
41 The chair shall have the authority to provide for alternative dispute
42 resolution procedures for claims arising under disability and family
43 leave, including but not limited to referral and submission of disputed
44 claims to a neutral arbitrator under the auspices of an alternative
45 dispute resolution association pursuant to article seventy-five of the
46 civil practice law and rules. Neutral arbitrator shall mean an arbitra-
47 tor who does not have a material interest in the outcome of the arbi-
48 tration proceeding or an existing and substantial relationship, includ-
49 ing but not limited to pecuniary interests, with a party, counsel or
50 representative of a party. Any determination made by alternative dispute
51 resolution shall not be reviewable by the board and the venue for any
52 appeal shall be to a court of competent jurisdiction.

53 § 14. Section 228 of the workers' compensation law, as added by
54 section 27 of part GG of chapter 57 of the laws of 2013, is amended to
55 read as follows:

§ 228. Administrative expenses. 1. The estimated annual expenses necessary for the workers' compensation board to administer the provisions of the disability and paid family leave benefits law shall be borne by all affected employers and included as part of the assessment rate generated pursuant to subdivision two of section one hundred fifty-one of this chapter.

2. Annually, as soon as practicable after the first day of April, the chair and department of audit and control shall ascertain the total amount of actual expenses.

§ 15. Subsection (n) of section 4235 of the insurance law is amended by adding a new paragraph 4 to read as follows:

(4)(A) The superintendent shall establish by September first of each year the maximum employee contribution that a covered employer, as defined in section two hundred two of the workers' compensation law, is authorized to collect from each employee for the cost of disability benefits provided pursuant to article nine of the workers' compensation law through a group accident and health insurance policy or through a self-funded employer for its employees. Beginning January first, two thousand twenty-eight, the maximum employee contribution amount shall be two dollars and twenty cents per week, and beginning January first, two thousand thirty-one, the maximum employee contribution shall be one-half of one percent of the employee's wages but shall not exceed forty percent of the average of the combination of all employee and employer contributions to disability benefits provided pursuant to paragraph (b) of subdivision two of section two hundred four of the workers' compensation law during the prior calendar year, which the superintendent shall determine and publish on the department's website.

(B) A self-funded employer shall submit reports to the superintendent for the purpose of determining forty percent of the average of the combination of all employee and employer contributions to disability benefits provided pursuant to paragraph (b) of subdivision two of section two hundred four of the workers' compensation law. A self-funded employer shall submit a report to the superintendent by July first, two thousand twenty-seven that sets forth employee and employer contributions to disability benefits provided pursuant to paragraph (b) of subdivision two of section two hundred four of the workers' compensation law for the year ending two thousand twenty-six, in a format determined by the superintendent. Beginning April first, two thousand twenty-eight, and annually thereafter, a self-funded employer shall submit a report to the superintendent that sets forth employee and employer contributions to disability benefits provided pursuant to paragraph (b) of subdivision two of section two hundred four of the workers' compensation law for the prior calendar year, in a format determined by the superintendent.

§ 16. Section 2605 of the insurance law is amended to read as follows:

§ 2605. Penalty for violating workers' compensation law. The superintendent may impose a penalty not to exceed twenty-five hundred dollars per violation upon any insurer required to be licensed under the provisions of this chapter, if, after notice to and a hearing of such insurer, ~~he~~ the superintendent finds it has unreasonably failed to comply with the workers' compensation law.

§ 17. This act shall take effect immediately and shall apply to all policies issued, renewed, modified, altered, or amended on or after January 1, 2028; provided, however, that if chapter 651 of the laws of 2025, as amended by chapter 72 of the laws of 2026, shall not have taken effect on or before such effective date then section five-a of this act

1 shall take effect on the same date and in the same manner as such chap-
2 ter of the laws of 2025, takes effect.

3 PART NN

4 Section 1. Subdivision 11 of section 458-a of the real property tax
5 law, as amended by chapter 77 of the laws of 2026, is amended to read as
6 follows:

7 11. In addition to any other exemption from taxation on real property
8 which may be allowed to veterans pursuant to the provisions of this
9 chapter, including subdivision three of section four hundred fifty-eight
10 of this title, the primary residence of any seriously disabled veteran
11 ~~[who]~~ shall be fully exempt from taxation and special district charges,
12 assessments and special ad valorem levies, provided that such veteran
13 meets all other requirements of this section and such veteran has met at
14 least one of the criteria set forth in paragraph (a) of this subdivi-
15 sion and at least one of the criteria set forth in paragraph (b) of
16 this subdivision:

17 (a)(i) was discharged or released therefrom under honorable condi-
18 tions; or

19 (ii) has a qualifying condition, as defined in section one of the
20 veterans' services law, and has received a discharge other than bad
21 conduct or dishonorable from such service; or

22 (iii) is a discharged LGBT veteran, as defined in section one of the
23 veterans' services law, and has received a discharge other than bad
24 conduct or dishonorable from such service; and

25 (b) (i) is considered to be permanently and totally disabled as a
26 result of military service; or

27 (ii) is rated one hundred percent disabled by the United States
28 department of veterans affairs[+].

29 ~~[(iii) has been rated by the United States department of veterans~~
30 ~~affairs as individually unemployable; and~~

31 ~~(iv) who is eligible for pecuniary assistance from the United States~~
32 ~~government, or has received pecuniary assistance from the United States~~
33 ~~government and has applied such assistance toward the acquisition or~~
34 ~~modification of a suitable housing unit with special features or movable~~
35 ~~facilities made necessary by the nature of the veterans' disability, and~~
36 ~~the necessary land therefor shall be fully exempt from taxation and~~
37 ~~special district charges, assessments and special ad valorem levies,~~
38 ~~provided that such veteran meets all other requirements of this~~
39 ~~section.]~~

40 In no case shall the taxable assessed value of the property of a qual-
41 ifying veteran be reduced below zero. Nothing contained herein shall be
42 construed to require or authorize the discontinuance of any exemption
43 granted pursuant to subdivision three of section four hundred fifty-
44 eight of this title.

45 § 2. This act shall take effect immediately and shall apply to assess-
46 ment rolls based on taxable status dates occurring on and after October
47 1, 2026.

48 PART OO

49 Section 1. Subdivision 1 of section 669-h of the education law, as
50 amended by section 1 of part T of chapter 56 of the laws of 2018, is
51 amended to read as follows:

1 1. Eligibility. An excelsior scholarship award shall be made to an
2 applicant who: (a) is matriculated in an approved program leading to an
3 undergraduate degree at a New York state public institution of higher
4 education; (b) if enrolled in (i) a public institution of higher educa-
5 tion prior to application, has completed at least thirty combined cred-
6 its per year following the student's start date, or its equivalent,
7 applicable to ~~[his or her]~~ their program or programs of study or (ii) an
8 institution of higher education prior to application, has completed at
9 least thirty combined credits per year following the student's start
10 date, or its equivalent, applicable to ~~[his or her]~~ their program or
11 programs of study and which were accepted upon transfer to a public
12 institution of higher education; (c) enrolls in at least twelve credits
13 per semester and completes at least thirty combined credits per year
14 following the student's start date, or its equivalent, applicable to
15 ~~[his or her]~~ their program or programs of study except in limited
16 circumstances as prescribed by the corporation in regulation. Notwith-
17 standing, in the student's last semester, the student may take at least
18 one course needed to meet ~~[his or her]~~ their graduation requirements and
19 enroll in and complete at least twelve credit hours or its equivalent.
20 For students who are disabled as defined by the Americans with Disabili-
21 ties Act of 1990, 42 USC 12101, the corporation shall prescribe rules
22 and regulations that allow applicants who are disabled to be eligible
23 for an award pursuant to this section based on modified criteria; (d)
24 for the first semester applying for such scholarship, has an adjusted
25 gross income for the qualifying year, as such terms are defined in this
26 subdivision, equal to or less than: (i) one hundred thousand dollars for
27 recipients receiving an award in the two thousand seventeen--two thou-
28 sand eighteen academic year; (ii) one hundred ten thousand dollars for
29 recipients receiving an award in the two thousand eighteen--two thousand
30 nineteen academic year; and (iii) one hundred twenty-five thousand
31 dollars for recipients receiving an award in the two thousand nineteen-
32 -two thousand twenty academic year and thereafter; and (e) complies with
33 the applicable provisions of this article and all requirements promul-
34 gated by the corporation for the administration of the program. Adjusted
35 gross income shall be the total of the combined adjusted gross income of
36 the applicant and the applicant's parents or the applicant and the
37 applicant's spouse, if married. Qualifying year shall be the adjusted
38 gross income as reported on the federal income tax return, or as other-
39 wise obtained by the corporation, for the calendar year coinciding with
40 the tax year established by the U.S. department of education to qualify
41 applicants for federal student financial aid programs authorized by
42 Title IV of the Higher Education Act of nineteen hundred sixty-five, as
43 amended, for the school year in which application for assistance is
44 made. Provided, however, if an applicant demonstrates to the corporation
45 that there has been a change in such applicant's adjusted gross income
46 in the year(s) subsequent to the qualifying year which would qualify
47 such applicant for an award, the corporation shall review and make a
48 determination as to whether such applicant meets the requirement set
49 forth in paragraph (d) of this subdivision based on such year. Provided,
50 further that such change was caused by the death, permanent and total
51 physical or mental disability, divorce, or separation by judicial decree
52 or pursuant to an agreement of separation which is filed with a court of
53 competent jurisdiction of any person whose income was required to be
54 used to compute the applicant's total adjusted gross income. Provided
55 further, however, that a recipient's maximum allowable adjusted gross
56 income shall increase by three per centum after the first semester of

1 such scholarship and may increase further where the corporation, in its
2 discretion, determines that such a further increase shall not disqualify
3 an applicant.

4 § 2. This act shall take effect immediately.

5 § 2. Severability clause. If any clause, sentence, paragraph, subdivi-
6 sion, section or part of this act shall be adjudged by any court of
7 competent jurisdiction to be invalid, such judgment shall not affect,
8 impair, or invalidate the remainder thereof, but shall be confined in
9 its operation to the clause, sentence, paragraph, subdivision, section
10 or part thereof directly involved in the controversy in which such judg-
11 ment shall have been rendered. It is hereby declared to be the intent of
12 the legislature that this act would have been enacted even if such
13 invalid provisions had not been included herein.

14 § 3. This act shall take effect immediately provided, however, that
15 the applicable effective date of Parts A through 00 of this act shall be
16 as specifically set forth in the last section of such Parts.